

THE MARK OF CAIN



CAROLYN WELLS

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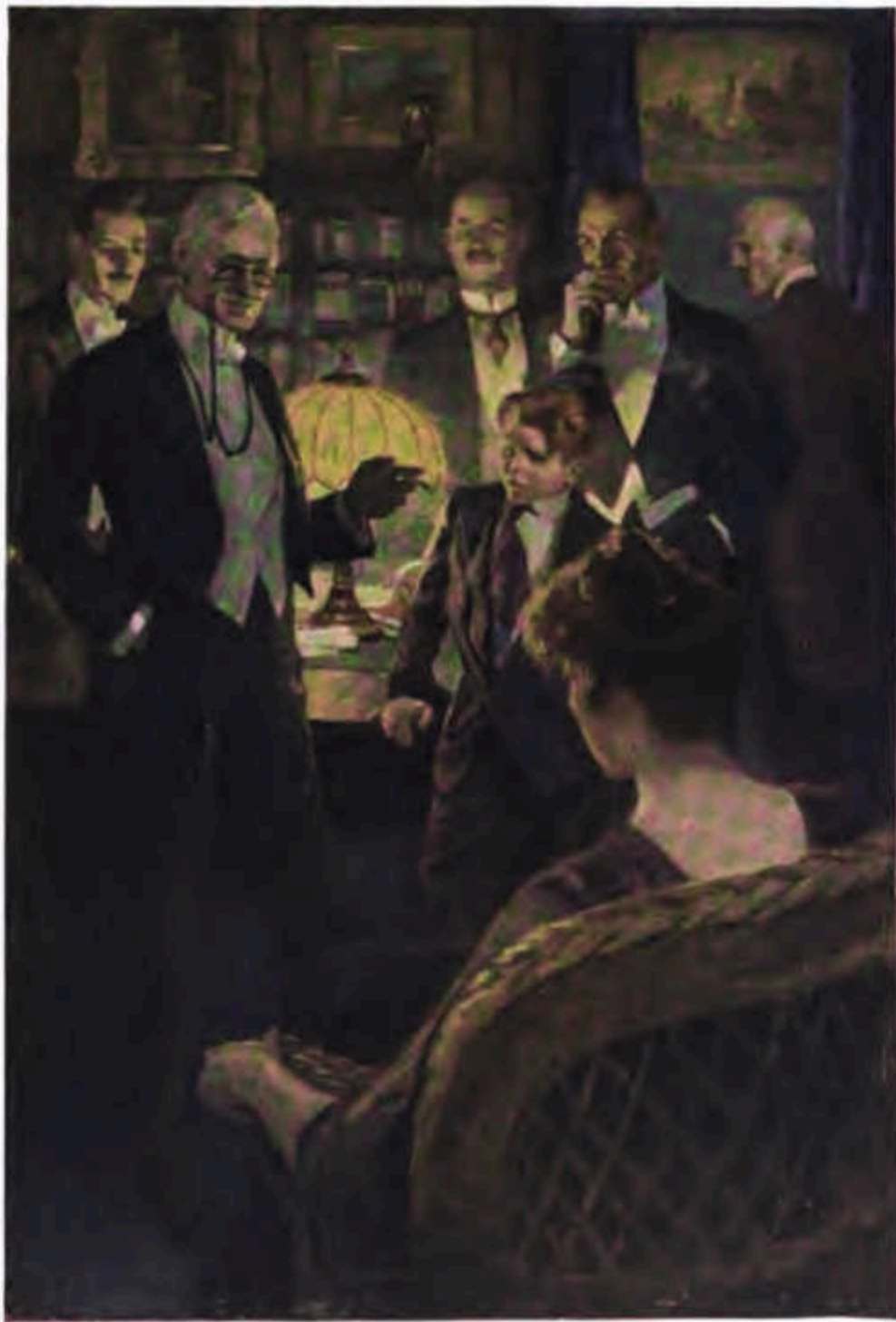
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*** START OF THE PROJECT GUTENBERG EBOOK THE MARK OF
CAIN ***



“SEND AWAY THAT BOY! ORDER HIM OUT, AVICE!”

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THE MARK OF CAIN

By CAROLYN WELLS

Author of "A Chain of Evidence," "The Gold Bag," "The White Alley," etc.

WITH A FRONTISPIECE IN COLOR BY
GAYLE HOSKINS



PHILADELPHIA AND LONDON
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THE MARK OF CAIN

CHAPTER I

THROUGH THE GREEN CORD

Judge Hoyt's strong, keen face took on a kindlier aspect and his curt "Hello!" was followed by gentler tones, as he heard the voice of the girl he loved, over the telephone.

"What is it, Avice?" he said, for her speech showed anxiety.

"Uncle Rowly,—he hasn't come home yet."

"He hasn't? Well, I hope he'll turn up soon. I want to see him. I was coming up this evening."

"Come now," said Avice; "come now, and dine here. I am so anxious about uncle."

"Why, Avice, don't worry. He is all right, of course."

"No he isn't. I feel a presentiment something has happened to him. He never was so late as this before, unless we knew where he was. Do come right up, won't you, Judge?"

"Certainly I will; I'm very glad to. But I'm sure your fears are groundless. What about Mrs. Black? Is she alarmed?"

"No, Eleanor laughs at me."

"Then I think you needn't disturb yourself. Surely she——"

“Yes, I know what you’re going to say, but she isn’t a bit fonder of Uncle Rowly than I am. Good-by.”

Avice hung up the receiver with a little snap. She was willing that Mrs. Black should marry her uncle, but she did hate to be relegated to second place in the household. Already the handsome widow was asserting her supremacy, and while Avice acknowledged the justice of it, it hurt her pride a little.

“I’ve asked Judge Hoyt to dinner,” she said, as she returned to her post at the window.

Mrs. Black glanced up from the evening paper she was reading and murmured an indistinct acquiescence.

It was late June, yet the city home of the Trowbridges was still occupied by the family. As Avice often said, the big town house was cooler than most summer resorts, with their small rooms and lack of shade. Here, the linen-swathed furniture, the white-draped chandeliers and pictures, the rugless floors, all contributed to an effect of coolness and comfort.

Avice, herself, in her pretty white gown, fluttered from one window to another, looking out for her uncle.

“Mrs. Black, why do you suppose Uncle Rowly doesn’t come? He said he would be home early, and it’s after six o’clock now!”

“I don’t know Avice, I’m sure. Do be quiet! You fluster around so, you make me nervous.”

“I’m nervous myself, Eleanor. I’m afraid something has happened to uncle. Do you suppose he has had a stroke, or anything?”

“Nonsense, child, of course, not. He has been detained at the office for something.”

“No he hasn’t; I telephoned there and the office is closed.”

“Then he has gone somewhere else.”

“But he said he would be home by five.”

“Well, he isn’t. Now, don’t worry; that can do no good.”

But Avice did worry. She continued to flit about, dividing her attention between the clock and the window.

The girl had been an orphan from childhood, and Rowland Trowbridge had been almost as a father to her. Avice loved him and watched over him as a daughter; at least, that had been the case until lately. A few weeks since, Mr. Trowbridge had succumbed to the rather florid charms of Mrs. Black, his housekeeper, and told Avice he would marry her in a month.

Though greatly surprised and not greatly pleased, Avice had accepted the situation and treated the housekeeper with the same pleasant courtesy she had always shown her. The two “got along” as the phrase is, though their natures were not in many ways congenial.

Avice remained at the window till she saw at last Leslie Hoyt’s tall form approaching. She ran to open the door herself.

“Oh, Judge Hoyt,” she cried, “Uncle hasn’t come yet! There must be something wrong! What can we do?”

“I don’t know, Avice, dear. Tell me all about it.”

[10]

“There’s nothing to tell, only that uncle said he would be home at five, and it’s almost seven and he isn’t here! Such a thing never happened before.”

“Good evening, Judge Hoyt,” said Mrs. Black’s cool, measured voice as they entered the drawing-room. “I think

our Avice is unnecessarily alarmed. I'm sure Mr. Trowbridge can take care of himself."

"That is doubtless true," and for the first time a note of anxiety crept into Hoyt's tone; "but as Avice says, it is most unusual."

Mrs. Black smiled indifferently and returned to her paper.

Leslie Hoyt was so frequent a visitor at the house, that he was never treated formally. He seated himself in an easy chair, and took a cigarette case from his pocket, while Avice continued her nervous journeys between the clock and the window.

"We won't wait dinner after seven," said Mrs. Black, in a voice that might mean either command or suggestion, as her hearers preferred.

"You may have it served now, if you like," returned Avice, "but I shan't go to the table until uncle comes."

Now, it had been nearly two hours before this that a telephone call had been received at police headquarters.

"Is dees polizia stazione?" Inspector Collins had heard, as he held the receiver to his ear.

Through the green cord the broken voice spoke in a halting way, as if uncertain how to word the message.

"Yes; who is speaking?" Collins replied.

[11]

"Meester Rowlan' Trowbridga,—he is dead-a."

"I can't hear you! What's all that racket where you are?"

"My bambini—my children. They have-a da whoopa-cough."

“It’s more than children making all that noise! Who are you?”

“Not matter. I say, Meester Trowbridga—he dead-a.”

“Rowland Trowbridge dead! Where—who are you?”

“You find-a heem. Bringa da bod’ home.”

“Where is he?”

“Van Cortaland’ Park. By da gollif play. You go finda da man —Bringa da bod’ home.”

“See here, you tell me who you are!”

But a sudden click told that the message was finished, and after a few impatient hellos, Collins hung up the receiver.

“Rubbish!” he said to himself; “some Dago woman trying to be funny. But a queer thing,—Rowland Trowbridge! Phew, if it should be! I’ll just call up his house.”

Collins called up the Trowbridge house on Fifth Avenue. Not to alarm any one he merely inquired if Mr. Trowbridge was at home. The answer was no, and, glancing at the clock, Collins called up Mr. Trowbridge’s office in the Equitable Building. There was no response, and as it was five o’clock, he assumed the office was already closed.

“I’ve got a hunch there’s something in it,” he mused, and acting on his conviction, he called up the Van Cortlandt Park Precinct Station, and told the story.

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Captain Pearson, who took the message, shrugged his shoulders at its dubious authority, but he assembled several detectives and policemen, and set off with them in a patrol car for the golf links.

Up to Van Cortlandt Park they went, past the gay-coated, gay-voiced golf players, on along the broad road to the woods beyond.

“By golly! There he is!” cried one of the detectives, whose expectant eyes noted a dark heap on the ground, well back among the trees.

Jumping from the car and running across the uneven, root-roughened ground, they found the dead body of Rowland Trowbridge.

Dressed in his business clothes, his hat on the ground near by, the body was contorted, the hands clenched, and the face showed an expression of rage, that betokened a violent death.

“He put up a fight,” observed Pearson. “Poor man, he had no chance. Somebody stabbed him.”

A gash in the blood-stained waistcoat proved that the aim at the victim’s heart had been all too sure, and his frantic, convulsive struggles of no avail.

Eagerly the men looked for clues. But they found nothing save the dead man and his own belongings. The scene of the tragedy was not very far from the road, but it was well screened by the thick summer foliage, and the rocks and high tree roots hid the body on the ground from the sight of passers-by.

“Footprints?” said Lieutenant Pearson, musingly.

[13]

“Nothing doing,” returned Detective Groot. “Some few depressions here and there—of course, made by human feet—but none clear enough to be called a footprint.”

“And the ground is too stony and grassy to show them. Look well, though, boys. No broken cuff-links, or dropped gloves?”

It's a canny murderer who doesn't leave a shred of incriminating evidence."

"It's a fool murderer who does," returned Groot. "And this affair is not the work of a fool. Probably they've been spotting Mr. Trowbridge for months. These millionaires are fair game for the Dago slayers."

"Why Dago?"

"Didn't an Italian woman turn in the call? How could she know of it unless some of her own people did it?"

"But there seems to be no robbery. Here's his watch and scarfpin all right."

"And his roll?"

"Yes," said Pearson, after an investigation of the dead man's pockets. "Bills and change. Nothing taken, apparently."

"Valuable papers, maybe."

"Not a Dago, then. Your theories don't hang together. Well, this will create some stir in the Street! Biggest sensation in years. Rowland Trowbridge! Phew! Won't the papers go crazy!"

[14]

"What family has he? Wife?"

"No, nor child. Only a niece, but she's the apple of his eye. We'll get Collins to telephone to the house. It's an awful business."

The business was awful, and its awful details took so much time that it was seven o'clock before Inspector Collins called up the Trowbridge home.

“Maybe that’s uncle now!” cried Avice, and springing from her chair she went to the ringing telephone.

“Hello—yes—no,—oh, *tell* me!—I am Miss Trowbridge,—no, his niece,—please come here, Judge Hoyt!”

Leslie Hoyt took the receiver from the hand of the agitated girl, and received this message from the police station.

“Yes, sir; I couldn’t tell the young lady, sir. Do you belong to the family? Well, then, there’s no use beatin’ round the bush. Mr. Trowbridge is dead. We found his body in Van Cortlandt Park woods. Will you come here to identify it?”

“Wait a minute! Let me think!” and Hoyt strove to control himself. “Avice, you were right. Something has happened.”

“Oh, Uncle Rowly!”

“Yes,—” and Hoyt’s voice faltered, “he has been—has been hurt. They—they have found him——”

“I know,” said Avice, standing perfectly still, while her face went white. “You needn’t tell me. I know. He is dead.”

[15]

Hoyt looked at her dumbly, not contradicting. He had loved the girl for years, but though she liked him, she would give him no promise, and he still hoped and waited. He turned back to answer the insistent telephone. “Yes; of course, there is nothing else to do. Tell the coroner. I will go there at once. Are you sure of what you tell me?”

“There can be no doubt,” he said gently, as he finally left the telephone. “There are letters in his pockets, and some of the policemen know him. Avice, dear!”

But Avice had flung herself on a couch, her face buried in the pillows, and was sobbing her heart out.

“Let her cry,” said Mrs. Black, softly, as she laid her long white hand gently upon the bowed head; “it will do her good. Tell me all, Judge Hoyt. I am the one in charge now.”

The woman’s handsome face showed dignity and authority rather than grief, but Leslie Hoyt was merely the dead man’s lawyer, and had no right to intrude personal comment or sympathy. He had long been a close friend of Rowland Trowbridge and his niece, but with the housekeeper his acquaintance was but formal.

“I know very little, Mrs. Black,” he said, his eyes wandering to the convulsed figure on the couch. “The inspector merely told me that Mr. Trowbridge has been killed and that some one must go to the police station to represent the family. As his lawyer, it is appropriate that I should go, and, indeed, it seems to me there is no one else who could—” his voice broke as he looked again at Avice, now sitting up and staring, wide-eyed at him.

[16]

“Yes, do go, Judge Hoyt,” she cried; “you are the one—who else could? Not I, surely,—you don’t want me to go, do you?”

“No, Avice, no, dear,” said Mrs. Black, soothingly. “Nobody thought of your going. Judge Hoyt has kindly consented——”

“I will stop for Doctor Fulton, I think, and ask him to go with me,” and Leslie Hoyt took up his hat. “You had better go to your room, Avice. It may be a long time before my return.”

“I will look after her,” and Mrs. Black nodded her head. “I will attend to everything.”

She accompanied Hoyt to the door, saying in low tones, “When you come back, will you bring the the—will you bring Mr. Trowbridge with you?”

“I can’t be sure. There are so many formalities to be looked after. Try to keep Avice as quiet as possible. It will be a trying scene at best, when we return.”

“I will do all I can for her. How fortunate that you are here, Judge Hoyt.”

“Indeed, yes. Had I not been, the girl might have insisted on going on this awful errand.”

The judge walked the few blocks to Doctor Fulton’s office, and luckily finding him in, they both went at once in the doctor’s car to the scene of the tragedy.

“Let me give you some quieting draught, Avice dear,” said Mrs. Black, as she returned to the girl, “and then I’m going to send you to bed.”

[17]

“Indeed, you’ll do nothing of the kind. I have quite as much right here as you have.”

“Of course you have,” and the lady’s voice was as straightforward as her words. “I only want to spare you the shock.”

“I don’t want to be spared, I want to know all about everything that goes on. I won’t be treated as a child or an imbecile! I want to help.”

“But, my dear, there is nothing to do.”

“There will be. If Uncle Rowly has been killed, some one has done the deed, and I shall never rest until I find out who did it, and bring him to justice! How can you sit there so calmly? Don’t you care? You, who pretended to love him!”

“There, there, Avice, don’t get so excited. I know how you must feel, but——”

“Don’t talk to me, Eleanor! You drive me crazy!”

Offended, and a little frightened at the girl’s vehemence, the older woman ceased all attempts at conversation, and busied herself about the rooms, with those futile, nervous little motions that most women indulge in under stress of great excitement.

“I think, Avice, dear, you ought to try to eat some dinner,” she suggested. “Shall we go out together?”

But Avice only looked at her in dumb reproach, and closed her eyes as if to dismiss the subject.

Mrs. Black went into the dining-room alone.

[18]

“There has been an accident, Stryker,” she said to the butler, thinking it unwise to say more at the present. “They will bring Mr. Trowbridge home after a time. Meantime, say nothing to the other servants, and give me my dinner, for I feel I must try to eat something.”

Mrs. Black’s face was inscrutable as she sat at the well-appointed table. She ate a little of the dishes Stryker brought, but her thoughts were evidently far away. She frowned now and then, and once she smiled, but mostly she seemed in a brown study, and as if she had weighty affairs on her mind. Not a tear did she shed, nor did she look bowed with sorrow; indeed, her fine, well-poised head held itself a little higher than usual as she gave low-voiced orders to the butler now and then.

She returned to the drawing-room and the weary hours dragged by. Occasionally the two women spoke to each other, but only of trivialities, or necessary details of arrangement. No word of sympathy or common grief passed between them.

At last they heard steps outside, and they knew Rowland Trowbridge was being brought into his house for the last time.

Judge Hoyt came in first and kept the two women in the drawing-room while the bearers took their tragic burden up to Mr. Trowbridge's own room. Shortly afterward Doctor Fulton came down.

"Mr. Trowbridge was murdered," he said briefly. "Stabbed with a dagger. He has been dead five or six hours now. Perhaps more."

[19]

"Who did it?" cried Avice, looking more like an avenging angel than a grief-stricken girl.

"They have no idea. The coroner must try to determine that."

"The coroner!" exclaimed Mrs. Black in horror.

Avice turned on her. "Yes, coroner," she said; "how else can we find out who killed Uncle Rowly, and punish him,—and kill *him*!"

Every one stared at Avice. The policeman in the hall looked in at the doorway, as her ringing tones reached him. The girl was greatly excited and her eyes blazed like stars. But she stood quietly, and spoke with repressed force.

"What is the first thing to do?" she said, turning to Doctor Fulton, and then glancing past him to the policeman in the doorway.

"Wait, Avice, wait," put in Leslie Hoyt; "let us consider a moment."

"There is nothing to be considered, Leslie. Uncle is dead. We must discover who killed him. We must get the best

detectives, and we must never rest until we have brought the villain to justice.”

“Of course, of course, Avice,” said Mrs. Black, soothingly, “but we can’t hurry so, child.”

“We *must* hurry! It is only by beginning at once that we can find clues and things. Delay means opportunity for the criminal to escape!”

Hoyt and Doctor Fulton looked at the girl in amazement. Where had she learned these terms that fell so readily from her tongue?

[20]

“She is right,” said Judge Hoyt, sadly. “There must be no unnecessary delay in these matters. But the law moves slowly, at best. Everything possible will be done, Avice; you may rest assured of that. The coroner is upstairs now, and when he comes down he will want to talk with you. You won’t object?”

“Indeed, no. I want to see him. Why, only think, I know nothing,—*nothing*, as yet, as to how Uncle Rowly met his death!”

[21]

CHAPTER II

WHO COULD HAVE DONE IT?

Coroner Berg came down stairs and joined the group in the drawing-room. He was a bristling, fussy little man, with a decided sense of his own importance and evidently inclined to make much of his office. His sparse, sandy hair stood out straight from his head, and his light blue eyes darted from one to another of the impatient people awaiting his report.

“Sad case,” he said, wringing his hands; “very sad case. Fine man like that, struck down in the prime of life. Awful!”

“We know that,” and Avice looked annoyed at what she thought intrusive sympathy. “But who did it? What have you found out?”

“Very little, Miss,” answered Berg. “Your uncle was killed by a dagger thrust, while up in Van Cortlandt Park woods. His body was found in a lonely spot up there, and there is no trace of the murderer. The police were informed of the murder by telephone, which is a mighty queer performance if you ask me! They say a Dago woman called up headquarters and told the story.”

“Extraordinary!” said Hoyt; “an Italian?”

“Yes, sir; they say she sounded like one, anyhow.”

“And a dagger or stiletto was used,” said Doctor Fulton, thoughtfully; “that looks like Italian work. Had your uncle

any Italian enemies, Miss Trowbridge?”

“Not that I know of,” and Avice spoke a little impatiently; “but uncle had no enemies that I know of. At least, none who would kill him.”

“He had enemies, then?” spoke up the coroner, alertly.

“Uncle Rowly was not an easy-going man. He had many acquaintances with whom he was not on terms of friendship. But I’m sure none of his quarrels were grave enough to lead to this.”

“But somebody committed the crime, Miss Trowbridge, and who so likely as a known enemy? Tell me any of your uncle’s unfriendly acquaintances.”

“Positively no one, Mr. Berg, who could be in the least suspected. I’m thinking of such men as Judge Greer, who holds political views opposed to those of my uncle. And Professor Meredith, who is an enthusiastic naturalist, but who disagrees with my uncle in some of their classifications. As you see, these are not sufficient grounds for killing a man.”

“Of course, not,” said Hoyt. “I know those men, and their relations with Mr. Trowbridge were really friendly, though differing opinions frequently led to quarrels. Mr. Trowbridge was quick-tempered and often said sharp things, which he forgot as quickly as he uttered them.”

“Yes, he did,” corroborated Avice. “Why, he sometimes scolded me, and soon after was sunny and sweet again. No, I’m sure Uncle Rowland had no real enemies, surely none that would seek his death. And the fact that an Italian woman gave the message proves to my mind that he was struck down by some horrid Italian society,—Black Hand, or whatever they call it.”

“That remains to be seen,” said Berg, with an air of importance. “I shall conduct an inquest tomorrow morning. It is too late to get at it tonight, and too, I want to collect a little more evidence.”

“Where do you get evidence, Mr. Berg?” asked Avice, eager interest and curiosity shining in her brown eyes.

“Wherever I may pick it up. I must question the police further and I must endeavor to trace that telephone call, though that is a hard matter usually. Then, also, I must question all members of this household. As to his habits, I mean, and his whereabouts today. He left home this morning, as usual?”

“Quite as usual,” broke in Mrs. Black, before Avice could reply. “I was probably the one who saw him last as he departed. I went to the door with him, and he,—he kissed me good-by.” Mrs. Black’s handkerchief was pressed into service, but she went on, clearly; “we were to have been married next month. Our engagement had been announced.”

“And you heard nothing from Mr. Trowbridge during the day?”

“No,” said Avice, taking up the tale again; “uncle told me before he left he would be home by five, as I was to help him with his work. He is a naturalist, out of office hours, and I assist with his cataloguing. Then, when he didn’t come at five, I was worried, and I kept on being worried until—until—” and here the girl broke down and buried her face again in the sofa pillows.

[24]

“And you weren’t worried?” asked Coroner Berg, turning his pale blue eyes on the housekeeper.

“No,” and Mrs. Black’s voice was cool and composed; “I supposed he was merely detained by some business matter. I had no reason to fear any harm had come to him.”

“When did *you* last see him?” went on the coroner, turning to Judge Hoyt.

“Let me see; it was—yes, it was last Friday. I was at his office consulting with him about some business, and promised to report today. But as I was called to Philadelphia today on an important matter, I wrote him that I would come here to this house to see him this evening, and give him the report he wanted.”

“And you went to Philadelphia today?”

“Yes, I left there at three and reached New York at five. I intended coming here this evening, but when Miss Trowbridge telephoned me soon after six, I came right up at once.”

“Well, I think I’ll go now, for I may dig up something of importance at the police station, and I’ll be here tomorrow for the inquest at ten or thereabouts.”

As Coroner Berg left, the men from the undertaker’s arrived, and the trying session with them had to be gone through.

[25]

“But I can’t make arrangements about the funeral now,” said poor Avice, breaking down again. “Why, I can’t even realize Uncle Rowly is dead, and——”

“Never mind, my dear,” said Mrs. Black, “don’t try to. Go to your room now, and leave the funeral matters to me. I will arrange everything, and Judge Hoyt will assist me with his advice.”

“Indeed you won’t,” said Avice, spiritedly: “I suppose I am still my uncle’s niece. And I prefer to be consulted about the last rites for him.”

“Then stay by all means,” and Mrs. Black’s voice was honey-sweet. “I only meant to save you a harrowing experience.” She turned to the suave young man who had with him a book of pictured caskets, and was soon deeply interested in the choice of shape, style and number of handles that seemed to her most desirable.

Avice looked at her with aversion. It seemed to the girl almost ghoulish to show such absorption in a question of the quality of black cloth, or the lettering on the name-plate.

“But it must be decided,” said Mrs. Black. “Of course, we want the best of everything, and it is the last honor we can pay to dear Mr. Trowbridge. You should be very thankful, Avice, that you have me here to assist and advise you. You are too young and inexperienced to attend to these matters. Isn’t that so, Judge Hoyt?”

“It seems so to me, Mrs. Black. These selections must be made, and surely you are showing good taste and judgment.”

[26]

“Very well,” returned Avice. “Go on, and get whatever you like. As for me, I’m far more concerned in hunting down my uncle’s murderer. And I doubt if that coroner man will do it. He’s a perfect lump! He’ll never find out anything!”

“Why, Avice,” remonstrated Hoyt, “what could he find out tonight? It is a mysterious affair, and as we here know nothing of the crime, how could Mr. Berg discover anything from us?”

“But he has no brains, no intelligence, no ingenuity!”

“Coroners rarely have. It is their province only to question and learn the circumstances. ‘Sleuthing’ is what you have in mind, and that must be done by detectives.”

“I know it,” cried Avice, eagerly; “that’s what I said at first. Oh, Leslie, won’t you get the very best detectives there are

and put them on the case at once?”

“Wait a moment, Avice,” said Mrs. Black, coldly. “I am not sure you are in absolute authority here. I have something to say in the decisions.”

“But surely, Mrs. Black, you want to spare no pains and no expense to learn who killed Uncle Rowly!”

“You talk very glibly of expense, my dear Avice. Until your uncle’s will is read, how do you know who will be in a position to bear these expenses you are so ready to incur?”

[27]

Avice looked at the older woman with scorn. “I don’t quite follow you,” she said, slowly; “but surely, whoever inherits my uncle’s fortune, owes first the duty of bringing his murderer to justice!”

Leslie Hoyt looked very grave. “As Mr. Trowbridge’s lawyer,” he said, “I know the contents of the will. It will be read after the funeral. Until then, I am not at liberty to disclose it. I must go now, as I have some investigations to make myself. By the way, Avice, I brought home a Philadelphia afternoon paper, and it contains a glowing account of the début of your friend, Rosalie Banks. But, perhaps, you don’t care to see it, now?”

“Yes, leave it,” said Avice, apathetically; “I am fond of Rosalie and I’d like to look it over.”

Hoyt found the paper where he had left it on the hall table, and gave it to her, and then with a sympathetic, but unobtrusive pressure of her hand, the lawyer went away and the doctor also.

“May I look at that Philadelphia paper a moment?” asked Mrs. Black, “I want to see an advertisement.”

“Certainly, here it is,” and Avice passed it over. “Just think of Rosalie having her coming-out party just now while I’m in such sadness. We were at school together, and though younger than I, she was always one of my favorites.”

“You didn’t care to go to the party?”

“No it was yesterday, and I had that luncheon engagement here, you know. And oh, Eleanor, isn’t it fortunate I am here and not in Philadelphia!”

[28]

“Why? You can’t do anything.”

“I know it. But it would have been awful to be away making merry when uncle was—was breathing his last! Who *do* you suppose did it?”

“Some highway robber, of course. I always told your uncle he ought not to go off, in those lonely woods all by himself. He ran a risk every time. And now the tragedy has occurred.”

“It doesn’t seem like a highway robber to use a dagger. They always have a club or a—what do they call it? a blackjack.”

“You seem to know a lot about such things, Avice. Well, I’m going to my room, and you’d better do the same. We’ve a hard day before us tomorrow. I think it’s dreadful to have an inquest here. I thought they always held them in the court-room or some such place.”

“They do, sometimes. Inquests are informal affairs. The coroner just asks anybody, hit or miss, anything he can think of. That’s why I wish we had a cleverer coroner than that Berg person. I can’t bear him.”

“I don’t care what he’s like, if he’ll only get the scene over. Shall we have to be present?”

“Gracious! You couldn’t keep me away. I want to hear every word and see if there’s any clue to the truth.”

The two went up to their rooms, but neither could sleep. Avice sat in an easy chair by her open window, wondering and pondering as to who could have been the criminal. Mrs. Black, on the other hand, thought only of herself and her own future.

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She was a very beautiful woman, with finely cut features and raven black hair, which she wore in glossy smooth waves partly over her small ears. Her eyes were large and black and her mouth was scarlet and finely curved. She was of Italian parentage, though born in America. Her husband had been a New York lawyer, but dying, left her in greatly straitened circumstances and she had gladly accepted the position of housekeeper in the Trowbridge home. At first, she had rejected the advances of Rowland Trowbridge, thinking she preferred a younger and gayer man. But the kindness and generosity of her employer finally won her heart, or her judgment, and she had promised to marry him. It is quite certain, however, that Eleanor Black would never have come to this decision, had it not been for Rowland Trowbridge’s wealth.

Late into the night, Avice sat thinking. It seemed to her that she must by some means ferret out the facts of the case,—must find the dastardly villain who killed her uncle and let justice mete out his punishment. But where to turn for knowledge, she had no idea.

Her mind turned to what Mr. Berg had said about enemies. It couldn’t be possible that either of the men she had mentioned could be implicated, but mightn’t there be some one else? Perhaps some one she had never heard of. Then the impulse seized her to go down to her uncle’s library, and look over his recent letters. She might learn something of importance. Not for a moment did she hesitate to do this, for she knew she was

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the principal heir to his fortune, and the right to the house and its contents was practically hers.

And her motives were of the best and purest. All she desired was to get some hint, some clue, as to which way to look for a possible suspect.

Walking lightly, though taking no especial precautions of silence, she went slowly down stairs, and reached the door of the library. From the hall, as she stood at the portière, she heard some one talking inside the room. Listening intently she recognized the voice of Eleanor Black at the telephone.

“Yes,” Mrs. Black was saying: “keep still about it for the present,—yes,—yes, I’ll do whatever you say,—but don’t come here tonight. You see it was an Italian—yes, I’ll meet you tomorrow at the same time and same place. No, don’t call me up,—when I can, I’ll call you.”

Hearing the click that told of the hanging up of the receiver Avice quickly stepped aside into an alcove of the hall, where she could not be seen.

But apparently, Mrs. Black had no thought of any one near her, for she turned off the library table light she had been using, and softly went upstairs. A low hall light was sufficient illumination for this, and Avice saw her go.

After waiting a few moments, the girl went into the library, and first closing the door, she switched on the light.

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Taking up the telephone, she said to the operator, “Please tell me that number I just had. I can’t remember it, and I want to preserve it.”

Sleepily the girl responded, telling the number and exchange.

“Thank you,” said Avice, and hanging up the receiver she went to the desk and jotted down the number.

“Not that I have the least suspicion of Eleanor,” she said to herself, “but if I’m going to investigate, I mustn’t leave a stone unturned, especially anything so unusual as a midnight telephoning.”

And then Avice set herself to the task she had come for. But she found nothing definite or incriminating. There were some old and carefully preserved notes from men who were very evidently angry with her uncle, but they were not sufficiently strong to point to anything criminal. There was the usual collection of bills, business letters and memoranda, but nothing to interest or alarm her, and finally, growing wearied, she went back upstairs.

As she passed Mrs. Black’s door it softly opened, and the lady herself, wrapped in a kimono, looked out. Her long black hair hung in two braids, and her eyes were very bright.

“Avice, where have you been? At this time of night!”

“Just down in the library, looking after some matters.”

“Well, it’s time you were in bed,” and the door closed again.

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“H’m,” thought Avice, “she is afraid I heard her telephoning! That’s why she’s on the watch!”

And now, her momentary weariness gone, Avice was again widely awake.

“I’ve got to think it out,” she told herself. “I don’t for a minute imagine Eleanor is implicated in Uncle Rowly’s death, but what was she telephoning for? And she said ‘it was an Italian,’ and she’s Italian herself, and there’s something queer. I’m glad I got that telephone number, but I doubt if I’ll ever

use it. It doesn't seem quite right now, though it did when I asked Central for it. I believe I'll tear it up."

But she didn't.

CHAPTER III

PINCKNEY, THE REPORTER

“There’s no use mincing matters,” said Mrs. Black, as she and Avice sat at breakfast next morning: “I was your uncle’s promised wife and I feel that it is, therefore, my right to assume the head of the household and give orders.”

Avice looked at her sadly. “I have no objection to your giving orders so long as they in no way interfere with *my* plans or wishes. But I think it would be pleasanter for us both if you were to drop that defiant air, and let us be on a more friendly footing. I quite appreciate your position here, but you must remember that though you were engaged to my uncle you were *not* married to him and that——”

“That makes no difference in reality! As his future wife, I have every right of a wife already, so far as this house is concerned. Indeed, it is already mine, by will as you are soon to find out.”

“Very well, Mrs. Black,” said Avice, wearily, “let’s not quarrel over it. I’m sure *I* don’t want this house, and I am not at all afraid that my uncle’s will leaves me unprovided for. I wish the coroner would come! I long to get to work on the solution of the mystery.”

“How you talk!” and Mrs. Black shuddered delicately; “I don’t see how you can bear to have to do with those awful investigations!”

“Would you sit calmly down, and let the murderer go scot-free?”

“Yes, rather than mix in with that awful coroner man, and worse still, detectives!” Mrs. Black brought out the word as if she had said “scorpions.”

Avice was about to make an indignant reply, when the bell rang, and the card was brought in of Mr. Pinckney, a reporter.

“Don’t see him,” said Mrs. Black, looking scornfully at the card.

“Indeed I shall,” and Avice rose determinedly. “Why, if I don’t set him straight, there’s no telling what he’ll print!”

Realizing this, Mrs. Black followed the girl into the library, and together they met the reporter.

“Awfully sorry to intrude,” said a frank-faced, nice-voiced young man. “Often I wish I’d chosen any other career than that of a reporter. Downright good of you to see me, Miss Trowbridge,—isn’t it?”

“Yes,” said Avice, “I am Miss Trowbridge and this is Mrs. Black.”

“What can we tell you?” said Mrs. Black, acknowledging the visitor’s bow, and quickly taking the initiative. “There is so little to tell——”

“Ah, yes,” and the interrupting Pinckney deliberately turned to Avice. “But you will tell me all you know, won’t you? It’s so annoying to the family to have details made up—and—we must get the news somehow.”

His youthful, almost boyish air pleased Avice, who had thought reporters a crude, rather slangy lot, and she responded

at once.

“Indeed I will Mr. Pinckney. It’s horrid to have things told wrongly, especially a thing like this.” Her eyes filled, and the reporter looked down at his still empty notebook.

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“But, don’t you see, Miss Trowbridge,” he said, gently “if you tell me the details it might help in unearthing the truth,—for you don’t know who did it, do you?”

“No, we don’t” broke in Eleanor Black; “you’d better not try to talk Avice, dear, you are so unstrung. Let me answer Mr. Pinckney’s questions.”

“I’m not unstrung, Eleanor, at least not so much so that I can’t talk. Mr. Pinckney, if you can be of assistance in any way of solving the mystery of my uncle’s death, I shall be very grateful. The inquest will be held this morning, and I suppose,—I hope that will throw some light on it all. But just now I know of no way to look.”

“Oh of course, it was a highway robber,” said Mrs. Black. “There can be no doubt of it.”

“But is there any proof of it?” and the reporter looked at her inquiringly. “No doubt is not sufficient, proof positive is what we want.”

“Of course, we do,” agreed Avice. “Just think, Mr. Pinckney, we know *nothing* but that my uncle was stabbed to death in the woods. We don’t even know why he went into the woods. Though that, of course, is probably a simple reason. He was a naturalist and went often on long tramps looking for certain specimens for his collections.”

“Yes, that would explain his being there,” said Pinckney, eagerly. “Did you know he was going?”

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“No; on the contrary he said he would be home at five o’clock.”

“He told *me* he might be home earlier,” said Mrs. Black, looking sorrowful. “I expected him as early as three or four, for we were going out together. You see, Mr. Trowbridge was my fiancé.”

“Ah,” and Pinckney looked at her with increased interest. “Are there other members of this household?”

“No,” replied Mrs. Black. “Just Mr. Trowbridge and myself, and our dear niece, Miss Trowbridge. We were a very happy family, and now——” Mrs. Black raised her handkerchief to her eyes, “and now, I am all alone.”

“You two will not remain together, then?” the reportorial instinct cropped out.

“We haven’t decided on anything of that sort yet,” broke in Avice. “Eleanor, don’t be ridiculous! Mr. Pinckney is not interested in our domestic arrangements.”

“Indeed I am. The readers of *The Gazette* are all anxious to know the least details of your life and home.”

“They must be disappointed then,” and Avice’s haughty look forbade further personal questions.

“Tell me more of the—the tragedy, then. Was the weapon found?”

“No, not that I know of,” and Avice looked surprised. “I never thought of it.”

“No, it was not,” affirmed Mrs. Black. “The police were unable to find any weapon.”

“Too bad,” frowned Pinckney; “the dear public loses a thrill.”

“The public? Do they care?” and Avice started.

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“Rather! New Yorkers love a murder mystery if there are gruesome elements here and there.”

“All I want is justice,” and Avice’s big, brown eyes turned full on Pinckney’s face. “You know about such things. Do you suppose we can trace the murderer with so little to go on?”

“Can’t tell yet. May be lots of evidence forthcoming at the inquest.”

At this point Mrs. Black was called from the room by a servant, and Pinckney said quickly, “Who is she? and why don’t you like her?”

For some reason, Avice did not resent the man’s directness, and answered, slowly. “She is housekeeper, and was engaged to my uncle. I don’t dislike her,—not altogether.”

“Is she Italian? She looks so.”

“Of Italian descent, yes. Why?”

“Nothing. She’s a stunner for looks, but she’s entirely able to take care of herself. I say, Miss Trowbridge, are you alone,—in this matter, I mean.”

“In a way, I am. There is no one in the house but the housekeeper and myself. But Judge Hoyt, my uncle’s lawyer, looks after all business affairs for us.”

“Judge Hoyt?”

“Yes, Leslie Hoyt.”

“You’re fixed all right that way, then. But I say, Miss Trowbridge, I don’t want you to think me impertinent, but if I

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can help you at all in looking about,—investigating, you know,——”

“Do you mean detecting?”

“Yes, in a small way. I’ve opportunities to go into the world and inquire into things that are a sealed book to you. But I suppose you’ll have detectives, and all that. And any way, it’s too soon to think about it. But remember, if you want any sleuthing done,—on the side, in an amateur way I’d be awfully glad to help you out.”

“That’s kind of you Mr. Pinckney, and I’ll be glad to take advantage of your offer. But do you have to put everything in your paper?”

“Just about. Oh, of course, if I unearth anything of importance,—like a clue, you know, I’d tell the police first but I’d want the scoop for ours.”

“How can there be any clues when it happened in the lonely woods? I thought clues were little things picked up off the floor, or found in people’s pockets.”

“Well, mightn’t they pick up little things off the ground? Or find them in your uncle’s pockets?”

“Do you think they will? Mr. Pinckney, you’ve no idea how I want to find the murderer! I never knew before that I had so much revenge in my nature, but I feel now I could devote my whole life, if need be, to tracking down that villain! I loved my uncle almost like a father. Most girls, I suppose, would be so broken up with grief that they couldn’t talk like this, but I seem to find the only comfort in the thought of avenging this horrible deed!”

“Don’t bank on it too much, Miss Trowbridge. They say only one murderer in six is convicted, and in only a small fraction

of murders is anybody even suspected of the crime. But this case will be ferreted out, I'm sure, both because of the prominence of your uncle, and the fact that there is money enough to hire the best talent, if desired."

"Indeed it is desired! I shall, of course, inherit much of my uncle's fortune, and I would spend every penny rather than fail in the search!"

"You won't mind my reporting this conversation, will you, Miss Trowbridge? I'm here for a story, you know,——"

"Oh, must you put me in the paper? Please don't!"

"I won't put anything you won't like. But our readers want you. You know, all the men want now-a-days is a graft yarn, and the women, some inside society gos—information."

Avice would have made further objection to newspaper publicity, but people began to arrive, and, too, Pinckney was content to leave off conversation at that point.

He was young, and enthusiastic in his chosen career. Moreover, he was canny and clever. He had further chat with Mrs. Black, and he managed to get a few words with the servants. And somehow, by hook or crook, he secured photographs of both women, and of the house, as well as of the victim of the tragedy himself.

Aside from reportorial talent, Pinckney had a taste for detective work. He was, or fancied himself, the stuff of which story-book detectives are made, and he was more than glad to have the press assignment of this case, which might give him wide range for his powers of deduction.

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When Judge Hoyt arrived, he at once sought out Avice, and his fine, impassive face grew infinitely gentle as he greeted the sad-eyed girl.

In her black gown, she looked older, and her pale cheeks and drawn countenance told of a sleepless night.

“How are you dear?” asked Hoyt, taking her hands in his. “I’ve been so anxious about you.”

“I’m all right,” and Avice tried to smile bravely. “But I’m glad you’ve come. I feel so alone and responsible—Mr. Pinckney says I have a splendid lawyer—but I don’t see anything for a lawyer to do.”

“There may be. I believe the police have made quite a few discoveries, though I know nothing definite. Of course, all my legal powers are at your disposal, but I too, doubt if the criminal is ever apprehended.”

“Oh, don’t say that! We *must* find him! You will, won’t you?”

“I’ll do my best Avice. But I am a lawyer, not a detective, you know.”

“But you’re a judge, and you have been district attorney, and you’re the greatest criminal lawyer in the state!”

“Yes, but a criminal lawyer must have a criminal to convict. Rest assured if the criminal is found, he shall have full punishment.”

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“Of course, but I want help to find him. I want to employ detectives and——”

“And so you shall, but wait Avice, until the inquest is over. That may bring developments. I wish I had been here in New York yesterday.”

“What could you have done?”

“Perhaps nothing to prevent or help, but I would have been at your uncle’s office during the day, and I would have known of

his plans. Who is this Pinckney you mentioned?”

“A reporter for *The Daily Gazette*? I didn’t want to see him at first, but I’m glad I did. He’s going to help me detect.”

“Avice, dear, ‘detecting’ as you call it, isn’t a casual thing, to be done by anybody. It’s a trade, a profession——”

“Yes, I know. But Mr. Pinckney knows something of it, and he is very kind.”

“When a reporter is kind, it’s only for his personal benefit. The moment crime is committed, Avice, the reporters are on the job, and they never let go of it, until all suspects are freed or sentenced. But what they learn by their ‘detection’ is only for their paper; it is rarely given in testimony, or turned to real account.”

“Mr. Pinckney will help me, I’m sure,” Avice persisted. “And besides, he was in college with Mr. Landon, uncle’s nephew out West.”

“Landon? The chap you used to be in love with?” and Judge Hoyt made a wry face.

“In love! Nonsense! I’m as much in love with him now as I ever was.”

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“And how much is that?”

“It’s so long since I’ve seen him, I’ve forgotten,” and Avice, who couldn’t help an occasional flash of her innate coquetry, smiled up into the stern face regarding her.

“Beg pardon, Miss Avice,” said Stryker, the butler, coming toward them; “but do you want to be in the drawing-room for the—the inquest, or upstairs?”

“I want to be right near the coroner and the jury. I want to know everything that goes on. Shall we go in there now, Leslie?”

“Yes, in a moment. What do you know of Mr. Trowbridge’s death, Stryker?”

“Me, Judge Hoyt? Nothing,—nothing at all, sir. How should I?”

“I don’t know, I’m sure. I merely asked. Where were you yesterday afternoon, Stryker?”

“It was my day off, sir. I was out all afternoon.”

“Oh, all right. Don’t take my question too seriously.” Hoyt spoke kindly, for the butler showed considerable agitation. He started to say something, paused, stammered, and finally burst out with, “*I didn’t kill him, Sir!*”

“Good Lord, Stryker, nobody thought you did! But don’t show such a scared face to the coroner when he questions you, or he may think all sorts of things.”

“What c—could he think?”

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“Nothing that I know of. By the way, Stryker, now that Mr. Trowbridge is gone, you can take out that insurance policy, can’t you?”

“Oh, Mr. Hoyt, don’t speak of such things now!” and the old butler fairly wrung his hands.

“All right, I won’t. But when you want to talk it over, come to me. Is that your Pinckney, Avise, talking to Mrs. Black?”

“Yes; why, he’s interviewing her! See his notebook. She is telling him lots!”

“He’s getting what they call a ‘sob story.’ She’s working on his sympathies by pathetic tales of her loss. How does she treat you? All right?”

“Yes, except that she wants to be head of the house, and——”

“That will settle itself. You won’t stay here, dear, you will come to me. We will——”

“Please don’t talk like that now. I can’t bear it.” Avice’s brave, determined air forsook her, and with quivering lip, she looked imploringly at the man who gazed passionately into her troubled eyes.

“Forgive me, dear, I should have known better. But when I think of you, here, alone, save for a woman who is nothing to you, I want to carry you off where I can protect you from all annoyance or trouble.”

“I know you do, and I ought to feel more grateful, but I can’t seem to think of anything just now but——”

“Of course, my darling, I understand, and it is all right. Only tell me what you want and I am at your orders, always and forever.”

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“Then come with me to the other room, stay by me, and tell me what things mean, when I don’t understand. Listen, too, yourself, to everything, so you’ll know just what to do when the police fail.”

“Why are you so sure they will fail?”

“Because the case is all so mysterious. Because it will take a clever and skilled brain to find my uncle’s murderer.”

Avice spoke in low, intense tones, as if she were stirred to the very soul by her harrowing anxiety.

“Avice,” said Hoyt, suddenly, “have you any suspicion of anybody—anybody at all?”

“No! oh, no! How could I have?”

“But have you?” Hoyt scanned her face closely, noting the quickly dropped eyelids and firm, set mouth.

“Not a suspicion—oh, no!”

“A premonition, then? A vague idea of any way to look?”

“No—no. No, I haven’t.”

The first negative was hesitating, the second, positive and decided. It was as if she had instantly made up her mind to say nothing more.

Leslie Hoyt looked at her, and then with a gentle smile, as of one humoring a child, he said: “All right, dear. Come now with me.”

And together, they went to listen to the inquest held to determine the circumstances of the death of Rowland Trowbridge.

CHAPTER IV

THE INQUEST BEGINS

As Avice entered the drawing-room, she seemed to sense only a blur of faces. It was incredible that this should be the room where she had so often laughed and danced and sung in thoughtless joyousness of spirit. She blindly followed Judge Hoyt, and sat where he bade her, quite near the coroner and his jury.

The jurymen, though solemnly attentive to their duty, could not help their roving gaze being attracted to the splendor of their surroundings. The Trowbridge home was the perfection of quiet, old-fashioned elegance. Often Avice had wanted to introduce more modern furniture and decorations, but Mr. Trowbridge had firmly denied her requests. And so the old crystal chandeliers still drooped their festooned prisms and the massive doors were still of a soft, lusterless black, with fine gilt outlines of panelling.

Mrs. Black, too, often sighed for modern bric-a-brac and fashionable window draperies, but the will of the master was law, and the quaint Sevres vases and heavy hangings remained untouched.

Coroner Berg fairly fluttered with importance. Only lately had he been appointed to his office, and he assumed a knowing air to hide his lack of experience. He was naturally acute and shrewd, but his mind just now was occupied more with the manner than the matter of his procedure. He had studied well

his book of rules, and it was with great dignity that he called for the police report on the case.

The testimony of the chief of police and the police surgeon set forth the principal known facts, which were, however, lamentably few. Even the coroner's intelligent questions failed to bring out more than the story of the telephone message, the account of the finding of the body and the nature of the crime.

"Do you assume the assailant to have been right-handed?" Berg asked of the surgeon.

"Apparently, yes. But not necessarily so. The blade penetrated the victim's left breast, and was most likely dealt by a person standing directly facing him."

"Was the thrust directed with an upward slant or downward?"

"Neither. It was just about level. It slanted, however, toward the middle of the body, from the left side, thus practically proving a right-handed use of the weapon."

"Was death instantaneous?"

"Probably not. But it must have occurred very shortly after the blow."

Doctor Fulton, the family physician, corroborated the report of the police surgeon in all its essentials.

"Was Mr. Trowbridge in general good health, so far as you know?" asked the coroner.

"Absolutely. He was strong, hale and hearty, always. I have known him for years, and he was never seriously ill."

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"And strong?"

“Of average strength.”

“Would you not judge then, he could have resisted this attack?”

“Undoubtedly he tried to do so. There is some indication of a muscular struggle. But the assumption must be that the assailant was a stronger man than the victim.”

“How do you explain his contorted features, even in death?”

“By the fact that he was surprised and overpowered, and his dying struggles were so desperate as to leave their mark.”

“You do not attribute the expression on the dead face to any terrific mental emotion at the moment of death?”

“It may be so. Indeed, it may be the result of both mental and physical agony.”

“The point is important,” said the coroner, with an impressive wave of his hand. “For if mental, it might mean that the man who attacked him was known to him; while merely physical horror would imply a robber or thug.”

The jurymen wagged their heads wisely at this sapient remark, as if it opened up a new field of conjecture.

Avice was questioned next.

She was a little startled at the suddenness of the call, but responded clearly and with an entirely collected manner to all queries.

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“You are Mr. Trowbridge’s niece?”

“Yes, the daughter of his younger brother.”

“You make your home here?”

“Yes.”

“How long have you done so?”

“Since childhood. My parents died before I was ten years old.”

“And you are your uncle’s heiress?”

Judge Hoyt looked a little annoyed at the baldness of this question, but Avice replied, serenely, “To the extent of part of his fortune.”

“Can you tell me any details of the last day of your uncle’s life?”

“Very few. He left home in the morning to go to his business office quite as usual. He generally returns about five o’clock. When he did not arrive at that time, I felt anxious, and later, called Judge Hoyt on the telephone to ask if he had seen or heard of my uncle.”

“Why did you call Judge Hoyt?”

“He was not only my uncle’s lawyer, but his personal friend. They had business to transact at times, and I thought my uncle might possibly have gone to see him. When I learned that Judge Hoyt knew nothing of my uncle’s whereabouts, I asked him to come here, as I felt decidedly uneasy and wanted some one to confer with in whom I felt confidence.”

“Had Mr. Trowbridge manifested any unusual tendencies or habits of late?”

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“None whatever. He has been well, happy and quite as usual in every way.”

“Can you form any opinion or have you any suspicion as to who might have committed this crime?”

“Absolutely none. But I have an unflinching determination to find out, at any expense of time, labor or money!”

The girl’s voice rang out in a high, sharp tone, and she clenched her slender hands until the knuckles showed through the white skin.

“We all have that determination, Miss Trowbridge,” said the coroner, a little stiffly, and after a few unimportant questions, Avice was dismissed.

Mrs. Black was called next. This time it was a case of diamond cut diamond. If the coroner was self-important, he was no more so than his witness. If he spoke with pomposity she answered with disdain, and if he was dictatorial she was arrogant.

“You are housekeeper here?” Berg began.

“That is my position, but I was also the fiancée of the late Mr. Trowbridge and should have been his wife next month, had he lived so long.”

“Confine your answers, please, to the questions asked.”

“Your question required two statements in reply.”

“You are a beneficiary under the will of Mr. Trowbridge?”

“I have not yet heard the will read.”

“Do you not know?”

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“I know only what Mr. Trowbridge himself told me.”

“And that was?”

“That I should inherit a handsome sum, in addition to this house and its contents.”

“In the event of your being his wife?”

“In the event of his death.”

“Do you know anything further than we have heard of Mr. Trowbridge’s movements on the day that he met his death?”

“I do,—a little.” Eleanor Black bridled and smiled sadly. The jurymen gazed in involuntary admiration, for the features of the beautiful brunette took on an added charm from that slight smile.

“What is it?”

“He telephoned to me about two o’clock, saying he would be home early and we would go out for a little motor ride. He was very fond of motoring,—with me.”

The last two words were added in a lower tone that implied a most romantic attachment between these two.

“He intended to leave his office shortly after noon, then?”

“Possibly it was a little later than two that he called me up. I don’t remember exactly. But he said he would be home by three or four.”

“And when he did not appear were you not alarmed?”

“No, Mr. Trowbridge was so apt to have unexpected business matters turn up, that I merely supposed that was the case, and thought nothing strange of it. Nor was I surprised when he did not appear at six. I felt sure, then, that some important development in his affairs had kept him down town so late.”

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“Miss Trowbridge was greatly alarmed?”

“Yes.”

The superb indifference of Eleanor Black's manner showed clearly that it was a matter of no moment to her if another had been anxious.

"Have you any suspicion as to who could have done this thing?"

The great black eyes of the witness turned slowly toward the coroner. At the remark about Avice she had looked carelessly in another direction.

"I think not," she said.

"Are you not sure?"

"What do you mean by suspicion?"

"Do you know of anybody who might have killed Mr. Trowbridge?"

"That's no question!" Her scorn was marked. "Hundreds of people *might* have killed him."

"Do you know of any one, then, who you think would be likely to have done so?"

"Likely to? Goodness, no."

"Who possibly did do so, then?"

"Possibly?"

"Yes, possibly. Is there any one whom you can definitely consider a possible suspect?"

"No; I don't know of any one."

The widow was a most provoking witness. She gave an impression of holding something back, yet her face wore an

ingenuous expression and she pouted a little, as if unfairly addressed.

“You were at home all day yesterday?” the coroner went on.

“Yes, I expected Mr. Trowbridge, so of course I did not go out.”

“Why, Eleanor,” exclaimed Avice, impulsively, “you went out for an hour soon after luncheon. Don’t you know, I gave you a letter to post?”

“Oh, yes, I forgot that,” and Mrs. Black looked a trifle confused. “I was sure Mr. Trowbridge wouldn’t get here before three, so I ran out for a few moments.”

“Where did you go?”

“Oh, nowhere in particular. I only went to get a little air. Just walking around the adjacent blocks.” She spoke lightly, but her heightened color and quickened breathing betokened an embarrassment which she strove not to show, and, too, she cast a glance at Avice that was anything but friendly.

The coroner seemed unable to think of anything else to ask the witness. He looked at her thoughtfully, and she returned his glance coolly, but he questioned her no further just then.

The butler came next, and his testimony was garbled and incoherent. His emotion frequently overcame him, and he was unable to speak.

At last Judge Hoyt spoke rather sharply to him.

“Brace up, Stryker,” he said. “If you can do a good turn for a master who was always kind to you, don’t spoil your chance by acting like a baby. If your betters can control themselves, surely you can.”

With an effort Stryker stopped shuffling about and a few more sniffs ended his emotional outburst.

“I’m sixty years old,” he said, apologetically, and, apparently, to all present, “and I’ve been in this same employ for fifteen years. It’s natural as to how I should feel bad, ain’t it, now, Mr. Coroner?”

“Yes, my man, but it’s also natural that you should try to control your grief. As Judge Hoyt says, you may render assistance to your late master by your testimony. Now, tell us all you know of Mr. Trowbridge’s callers of late, or any little thing that might come to your notice as a butler. Sometimes you servants have opportunities of observation not known upstairs.”

“That we have, sir,” and Stryker nodded his head thoughtfully. “Yes, that we have. But I know nothing, sir, nothing at all, as has a bearing on the death of the master,—no, sir, not anything.”

“‘Methinks the fellow doth protest too much,’” Pinckney murmured to himself. The reporter sat, with sharpened pencils, but so far he felt he had not much to work on in the way of clues. As to getting a story for his paper, he was more than satisfied. The elements of the fashionable household, a divided interest between the two women, the mysterious death of the millionaire, and now, the uncertain evidence of the old butler, all these would give him enough for a front page spread. But Pinckney wanted more than that. He wanted food for his detective instinct. He wanted clues and evidence of a tangible nature, or at least of an indicative trend. And he had found little so far. Still, he had found some, and he had tucked away in his mind several speeches and looks, that, though not emphasized by the coroner, seemed to him to point somewhere, even if he had no idea where.

Further questions brought nothing definite from Stryker, and he was succeeded by two of the maids. These frightened creatures were even less communicative, and it was with a sigh of relief that Coroner Berg gave up all attempt to learn anything from the household, and called on Judge Hoyt, feeling sure that now he would, at least, get intelligent testimony.

The Judge was too well known to be questioned as to his identity and the coroner proceeded to ask concerning his relations with the deceased.

“Lifelong friends, almost,” replied Hoyt. “We were at college together and have been more or less associated ever since. Unfortunately, I was out of town yesterday, or I might know more of Mr. Trowbridge’s movements. For I had expected to see him at his office, but was prevented by an unexpected call to Philadelphia. I wrote to Mr. Trowbridge that I could not see him until evening, and as the Philadelphia matter was connected with his business, I telegraphed from there that I would call at his house last evening, and give him my report.”

“And then Miss Trowbridge telephoned you?” observed the coroner, who had heard this before.

“Yes, and I came right up here, and was here when the police telephoned of their discovery.”

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“Then as you can tell us nothing of yesterday’s events, can you throw any light on the case by anything you know of Mr. Trowbridge’s affairs in general? Had he any enemies, or any quarrel of importance?”

“No, I am sure he had no quarrel with any one who would go so far as to kill him. It seems to me it must have been the work of some of those Camorra societies.”

“Why would they attack him?”

“Only for purposes of robbery, I should say. But the dagger implies or may imply an Italian, for American citizens do not go around with such weapons.”

“That is true. And there may have been robbery of some valuables that we do not know of. But do you think, Judge Hoyt, that the Camorra is such a desperate menace? Are not fears of it exaggerated and unfounded?”

“There is a great deal of the real thing, Mr. Berg. When you consider that there are a million and a half Italians in America and six hundred thousand of them are in New York City, it is not surprising that many of their secret societies are represented here. Therefore, it seems to me, that circumstances point to a crime of this sort, whether for robbery or whether at the hire of some superior criminal.”

“It is certainly possible that if Mr. Trowbridge was desired dead by some enemy in his own rank of life, the actual deed might have been committed by a hired crook, whether of an Italian society or of a New York gang. And the fact of the information first coming from an Italian woman, gives plausibility to the foreign theory.”

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“It may be, and if so, it may prove a very difficult matter to discover the truth.”

“You are right, Judge, and so far we have but the slightest shreds of evidence to work on. The articles found in the pockets of Mr. Trowbridge give absolutely no clues toward detection.”

At this, Pinckney pricked up his ears. Surely there must be a hint here, if one were but bright enough to see it.

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CHAPTER V

THE SWEDE

All the others present, as well as the young reporter, looked on with eager interest as the contents of the pockets were exhibited.

There were a great many articles, but all were just what might be looked for in the pockets of a well-to-do business man.

Several letters, cards, memoranda and telegrams. The usual knife, bunch of keys, pencil, watch and money. Also a small pair of folding scissors and a couple of handkerchiefs.

In a gold locket was a portrait of Mrs. Black, but there was no other jewelry.

“Perhaps some jewelry was taken,” suggested a juryman, but both Avice and Mrs. Black were sure that Mr. Trowbridge had on none.

He was wearing a bow tie, and a soft shirt with its own buttons, the report informed them, so there was no occasion for studs or pin.

The letters were read, as of possible interest. There were two or three bills for personal matters. There was the letter Judge Hoyt himself had told of sending to announce his trip to Philadelphia. There was also a telegram from the Judge in Philadelphia saying,

Peddie agrees. Everything O. K. See you tonight.

Hoyt.

All of these roused little or no interest. Judge Hoyt explained that Peddie was the man with whom he was making a deal with a real estate corporation for Mr. Trowbridge, and that the matter had been successfully put through to a conclusion.

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But next was shown a letter so old that it was in worn creases and fairly dropping apart. It had evidently been carried in the pocket for years. Gingerly unfolding it, Coroner Berg read a note from Professor Meredith that was angry, even vituperative. The bone of contention was the classification of a certain kind of beetle, and the letter implied that Mr. Trowbridge was ignorant and stubborn in his opinions and his method of expressing them. There was no threat of any sort, merely a scathing diatribe of less than a page in length. But it was quite evident that it had hurt Rowland Trowbridge severely, as its date proved that he had carried it around for two years.

And there was another old letter. This was from Justice Greer and was a blast on some old political matter. Here again, a strong enmity was shown, but nothing that could be construed as an intimation of revenge or even retaliation.

Still there were the two letters from decided enemies, and they must be looked into.

Avie, in her own heart, was sure they meant nothing serious. Her uncle had held these two grudges a long time, but she didn't think any recent or desperate matter had ensued.

Some newspaper clippings, most of them concerning Natural History, and a few elaborate recipes for cooking, completed the collection found in the pockets.

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“Nothing in the least indicative, unless it might be those two old letters,” commented the coroner.

Pinckney was disappointed. He had hoped for some clue that he could trace. Like Avice, he thought little of the old letters. Those two eminent citizens were most unlikely to murder a colleague, or even to employ a rogue to do it for them. To his mind, there was nothing enlightening in all the inquest so far. Indeed, he had almost no use for the Black Hand theory. It didn’t seem convincing to him. He thought something would yet come out to give them a direction in which to look, or else the truth would never be discovered.

And then there was a commotion in the hall, and an officer came in bringing with him a big, husky-looking Swede, and a pale blue-eyed little woman.

“This is Clem Sandstrom,” the officer informed the coroner. “And this is his wife. You can get their stories best from them.”

The big foreigner was very ill at ease. He shuffled about, and when told where to sit, he dropped into the chair with his stolid countenance expressing an awed fear.

The woman was more composed, but seemed overwhelmed at the unaccustomed splendor of her surroundings. She gazed at the pictures and statues with round, wide eyes, and glanced timidly at Avice, as if the girl might resent her presence there.

“What is your name?” asked Berg of the big Swede.

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“Clem Sandstrom, Ay bane a Swede, but Ay bane by America already two years.”

“Where do you live and what do you do?”

“Ay live up in the Bronnix, and Ay work at the digging.”

“Digging? Where?”

“Any digging Ay can get. Ay bane good digger.”

“Well, never mind the quality of your digging. What do you know of this murder of Mr. Trowbridge?”

“Last night, Ay bane goon home, through Van Coortlandt Park wood, and Ay heerd a man groan like he was dying. Ay went to him, and Ay lift his head, but he was nigh about gone then. Ay try to hold up his head, but it drop back and he say, a few words and he fall back dead.”

“How did you know he was dead?”

“Ay felt his heart to beat, and it was all still. Ay saw the blood on his clothes, and Ay know he bane stob. Ay think Italian Black Hander did it.”

“And what did you do then?”

“Ay run away to my home. To my wife. Ay bane afraid the police think Ay did it.”

“Did you see the police there?”

“Yes. Ay bane wait behind the bushes till they coom. Ay bane afraid of everything.”

“Oh, after the man died, you waited around there till the police came?”

“Yes. Ay thought Ay must do that. Then Ay saw all the police and the dead wagon, and Ay waited more till they took the man away. Then Ay ran fast to my home.”

“What did you take from the body?” Coroner Berg spoke sternly and the already frightened man trembled in his chair.

“Ay take nothing. Ay would not rob a corp. Nay, that I wouldn’t.”

“And you took nothing away from the place?”

The Swede hesitated. He glanced at his wife, and like an accusing Nemesis, she nodded her head at him.

“Tell the truth, Clem,” she cried shrilly. “Tell about the strange bottle.”

“A bottle?” asked the coroner.

“Yes, but it was of no use,” Sandstrom spoke sulkily now. “It was an old milk bottle.”

“A milk bottle? Then it had nothing to do with the crime.”

“That’s what Ay think. But the wife says to tell. The milk bottle, a pint one, was much buried in the ground.”

“How did it get in so deeply? Was it put there purposely?”

“Ay tank so. It had in it——” The man made a wry face, as at a recollection.

“Well, what?”

“Ay don’t know. But it smelled something very very bad. And molasses too.”

“Molasses in it?”

“Yes, a little down in the bottom of the bottle. Such a queer doings!”

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“Have you the bottle?”

“At my home, yes. The wife make me empty the bad stuff out.”

“Why?” and Berg turned to the Swedish woman.

“I think it a poison. I think the bad man kill the good man with a poison.”

“Well, I don’t think so. I think you two people trumped up this bottle business yourselves. It’s too ridiculous to be real evidence.”

The jurymen were perplexed. If these Swedes were implicated in the murder, surely they would not come and give themselves up to justice voluntarily. Yet, some reasoned that if they were afraid of the police, they might think it better to come voluntarily than to seem to hide their connection with it. It is difficult to tell the workings of the uncultured foreign intellect, and at any rate the story must be investigated, and the Swedes kept watch of.

Under the coroner’s scrutiny, Sandstrom became more restless than ever. He shuffled his big feet about and his countenance worked as if in agony. The woman watched him with solicitude. Apparently, her one thought was to have him say the right thing.

Once she went over and whispered to him, but he only shook his head.

“Why did you kill the man?” the coroner suddenly shot at the witness as if to trip him.

Sandstrom looked at him stolidly. “Ay didn’t kill him. Ay bane got na goon.”

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“He wasn’t shot, he was stabbed.”

“Ay bane got na knife. And Ay na kill him. Ay heerd his dyin’ words.” The Swede looked solemn.

“What were they?” asked the coroner, in the midst of a sudden silence.

“He said, ‘Ay bane murdered! Cain killt me! Wilful murder!’ and wi’ them words he deed.”

The simple narrative in the faulty English was dramatic and convincing. The countenance of the stolid foreigner was sad, and it might well be that he was telling the truth as he had seen and heard it.

Like an anti-climax, then, came an explosive “Gee!” from the back of the room.

People looked around annoyed, and the coroner rapped on the table in displeasure.

“You have heard this witness,” he said pompously; “we have no real reason to disbelieve him. It is clear that Rowland Trowbridge was wilfully murdered by a dastardly hand, that he lived long enough to tell this, and to stigmatize as ‘Cain’ the murderer who struck him down.”

“Gee!” came the explosive voice again; but this time in a discreet whisper.

“Silence!” roared the coroner, “another such disturbance and the culprit will be expelled from the room.”

There was no further interruption and the inquiry proceeded.

Several employés of Mr. Trowbridge’s office were called. Miss Wilkinson, the stenographer, was an important young person of the blondine variety, and made the most of her testimony, which amounted to nothing. She declared that Mr.

Trowbridge had been at his office as usual the day before and that she had written the average number of letters for him, none of which were in any way bearing in this case or of any import, except the regular business of her employer. Mr. Trowbridge, she said, had left the office about two o'clock, telling her he would not return that day, and bidding her go home after she had finished her routine work.

This created a mild sensation. At least, it was established that Mr. Trowbridge had gone from his office earlier than usual, though this must have been presupposed, as his body was found miles away from the city at five o'clock. But nothing further or more definite could Miss Wilkinson tell, though she was loath to leave the witness stand.

Coroner Berg was disheartened. He had a natural dislike for the "person or persons unknown" conclusion, and yet, what other one was possible? Perfunctorily, he called the office boy, who was employed in Mr. Trowbridge's private office.

A few of the audience noted that this was the youth who had remarked "Gee!" with such enthusiasm and gave him a second look for that reason.

"What is your name?"

"Fibsy,—I mean Terence McGuire."

"Why did you say Fibsy?"

"'Cause that's what I'm mostly called."

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"Why?"

"'Cause I'm such a liar."

"This is no time for frivolity, young man; remember you're a witness."

“Sure! I know what that means. I ain’t a goin’ to lie now, you bet! I know what I’m about.”

“Very well, then. What can you tell us of Mr. Trowbridge’s movements yesterday?”

“A whole heap. I was on the job all day.”

“What did you see or hear?”

“I seen and heard a whole lot. But I guess what’ll interest you most is a visitor Mr. Trowbridge had in the mornin’.”

“A visitor?”

“Yep. And they come near havin’ a fight.”

The audience listened breathlessly. The red-headed, freckle-faced youth, not more than sixteen, held attention as no other witness had.

It was not because of his heroic presence, or his manly bearing. Indeed, he was of the shuffling, toe-stubbing type, and by his own admission, he had gained a nickname by continual and more or less successful lying. But in spite of that, truth now shone from his blue eyes and human nature is quick to recognize the signs of honesty.

“Tell about it in your own way,” said the coroner, while the reporter braced up with new hope.

“Well, Mr. Berg, it was this way. Yest’day mornin’ a guy blew into the office,——”

“What time?”

“’Bout ’leven, I guess. It was ’bout an hour ’fore eats. Well, he wanted to see Mr. T. and as he was a feller that didn’t seem to want to be fooled with, I slips in to Mr. T’s private office

an' I sez, 'Guy outside wants to see you.' 'Where's his card?' says Mr. T. 'No pasteboards,' says I, 'but he says you'll be pleased to meet him.' Well, about now, the guy, he's a big one, walks right over me and gets himself into the inner office. 'Hello, Uncle Rowly,' says he, and stands there smilin'. 'Good gracious, is this you, Kane?' says Mr. Trowbridge, kinder half pleased an' half mad. 'Yep,' says the big feller, and sits down as ca'm as you please. 'Whatter you want?' says Mr. T. 'Briefly?' says the guy, lookin' sharp at him. 'Yes,' an' Mr. T. jest snapped it out. 'Money,' says the guy. 'I thought so. How much?' an' Mr. T. shut his lips together like he always does when he's mad. 'Fifty thousand dollars,' says Friend Nephew, without the quiver of an eyelash. 'Good-morning,' says uncle s'renely, But the chap wasn't fazed. 'Greeting or farewell?' says he, smilin' like. Then Mr. T. lit into him. 'A farewell, sir!' he says, 'and the last!' But Nephew comes up smilin' once again, already, yet! 'Oh, say, now, uncle,' he begins, and then he lays out before Mr. T. the slickest minin' proposition it was ever my misfortune to listen to, when I didn't have no coin to go into it myself! But spiel as beautiful as he would, he couldn't raise answerin' delight on the face of his benefactor-to-be. He argued an' he urged an' he kerjoked, but not a mite could he move him. At last Mr. Trowbridge, he says, 'No, Kane, I've left you that amount in my will, or I'll give it to you if you'll stay in New York city; but I *won't* give it to you to put in any confounded hole in the ground out West!' And no amount of talk changed that idea of Mr. T.'s. Well, was that nephew mad! Well, *was* he! Not ragin' or blusterin', but just a white and still sort o' mad, like he'd staked all and lost. He got up, with dignerty and he bowed a little mite sarkasterkul, and he says, ''Scuse me fer troublin' you, uncle; but I know of one way to get that money. I'll telephone you when I've raised it.' And he walked out, not chop-fallen, but with a stride like Jack the Giant Killer."

Fibsy paused, and there was a long silence. The coroner was trying to digest this new testimony, that might or might not be

of extreme importance.

“What was this man’s name?” he said, at last.

“I don’t remember his full name, sir. Seems ’sif the last name began with L,—but I wouldn’t say for sure.”

“And his first name?”

“Kane, sir. I heard Mr. Trowbridge call him that a heap of times, sir.”

“Kane!”

“Yes, sir.” And then Fibsy added, in an awed voice, “that’s why I said, ‘Gee’!”

The coroner looked at the expectant audience. “It seems to me,” he began slowly, “that this evidence of the office boy, if credible or not, must at least be looked into. While not wishing to leap to unwarranted conclusions, we must remember that the Swede declared that with his dying breath, Mr. Trowbridge denounced his murderer as Cain! It must be ascertained if, instead of the allusion to the first murderer, which we naturally assumed, he could have meant to designate this nephew, named Kane. Does any one present know the surname of this nephew?”

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There was a stir in the back part of the room, and a man rose and came forward. He was tall and strong and walked with that free, swinging step, that suggests to those who know of such things, the memory of alfalfa and cactus. With shoulders squared and head erect, he approached the coroner at his table and said “I am Kane Landon, a nephew of the late Rowland Trowbridge.”

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CHAPTER VI

OUT OF THE WEST

A bomb dropped from an aeroplane could scarcely have caused greater excitement among the audience. Every eye in the room followed the tall young figure, as Kane Landon strode to the table behind which the coroner sat. That worthy official looked as if he had suddenly been bereft of all intelligence as well as power of speech. In fact, he sat and looked at the man before him, with such an alarmed expression, that one might almost have thought he was the culprit, and the new witness the accusing judge.

But Mr. Berg pulled himself together, and began his perfunctory questions.

“You are Kane Landon?”

“Yes.”

“Related to Mr. Trowbridge?”

“I am the nephew of his wife, who died many years ago.”

“Where do you live?”

“For the last five years I have lived in Denver, Colorado.”

“And you are East on a visit?”

“I came East, hoping to persuade my uncle to finance a mining project in which I am interested.”

“And which he refused to do?”

“Which he refused to do.”

There was something about the young man's manner which was distinctly irritating to Coroner Berg. It was as if the stranger was laughing at him, and yet no one could show a more serious face than the witness presented. The onlookers held their breath in suspense. Avice stared at young Landon. She remembered him well. Five years ago they had been great friends, when she was fifteen and he twenty. Now, he looked much more than five years older. He was bronzed, and his powerful frame had acquired a strong, well-knit effect that told of outdoor life and much exercise. His face was hard and inscrutable of expression. He was not prepossessing, nor of an inviting demeanor, but rather repelling in aspect. His stern, clear-cut mouth showed a haughty curve and a scornful pride shone in the steely glint of his deep gray eyes. He stood erect, his hands carelessly clasped behind him, and seemed to await further questioning.

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Nor did he wait long. The coroner's tongue once loosed, his queries came direct and rapid.

“Will you give an account of your movements yesterday, Mr. Landon?”

“Certainly. The narrative of my uncle's office boy is substantially true. I reached New York from the West day before yesterday. I went yesterday morning to see my uncle. I asked him for the money I wanted and he refused it. Then I went away.”

“And afterward?”

“Oh, afterward, I looked about the city a bit, and went back to my hotel for luncheon.”

“And after luncheon?”

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Landon's aplomb seemed suddenly to desert him. “After luncheon,” he began, and paused. He shifted his weight to the other foot; he unclasped his hands and put them in his pockets; he frowned as if in a brown study and finally, his eyes fell on Avice and rested there. The girl was gazing at him with an eager, strained face, and it seemed to arrest his attention to the exclusion of all else.

“Well?” said the coroner, impatiently.

Landon's fair hair was thick and rather longer than the conventions decreed. He shook back this mane, with a defiant gesture, and said clearly, “After luncheon, I went to walk in Van Cortlandt Park.”

The audience gasped. Was this the honesty of innocence or the bravado of shameless guilt?

Leslie Hoyt looked at Landon curiously. Hoyt was a clever man and quick reader of character, but this young Westerner apparently puzzled him. He seemed to take a liking to him, but reserved decision as to the justification of this attitude. Avice went white and was afraid she was going to faint. To her, the admission sounded like a confession of the crime, and it was too incredible to be believed. And yet, as she remembered Kane, it was like him to tell the truth. In their old play days, he had often told the truth, she remembered, even though to his own disadvantage. And she remembered, too, how he had often escaped with a lighter punishment because he had been frank! Was this his idea? Had he really killed his uncle, and fearing discovery, was he trying to forestall the consequences by admission?

“Mr. Landon,” went on the coroner, “that is a more or less incriminating statement. Are you aware your uncle was murdered in Van Cortlandt Park woods yesterday afternoon?”

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“Yes,” was the reply, but in a voice so low as to be almost inaudible.

“At what time were you there?”

“I don’t know, exactly. I returned home before sundown.”

“Why did you go there?”

“Because when with my uncle in the morning he happened to remark there were often good golf games played there, and as it was a beautiful afternoon, and I had nothing especial to do, I went out there.”

“Why did you not go to call on your cousin, Miss Trowbridge?”

Landon glared at the speaker. “You are outside your privileges in asking that question. I decline to answer. My personal affairs in no way concern you. Kindly get to the point. Am I under suspicion of being my uncle’s murderer?”

“Perhaps that is too definite a statement, but it is necessary for us to learn the truth about your implication in the matter.”

“Go on, then, with your questions. But for Heaven’s sake, keep to the point, and don’t bring in personal or family affairs. And incidentally, Miss Trowbridge is *not* my cousin.”

The words were spoken lightly, almost flippantly, and seemed to some listeners as if meant to divert attention from the business in hand.

“But she is the niece of the late Mr. Trowbridge.”

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“Miss Trowbridge is the daughter of Mr. Trowbridge’s brother, who died years ago. I am the nephew of Mr. Trowbridge’s late wife, as I believe I have already stated.”

Nobody liked the young man’s manner. It was careless, indifferent, and inattentive. He stood easily, and was in no way embarrassed, but his bravado, whether real or assumed, was distasteful to those who were earnestly trying to discover the facts of the crime that had been committed. There were many who at once leaped to the conclusion that the Swede’s testimony of the victim’s dying words, proved conclusively that the murderer was of a necessity this young man, whose name was Kane, and who so freely admitted his presence near the scene of the tragedy.

“As you suggest, Mr. Landon,” said the coroner, coldly, “we will keep to the point. When you were in Van Cortlandt Park, yesterday, did you see your uncle, Mr. Trowbridge there?”

“I did not.”

The answer was given in a careless, unconcerned way that exasperated the coroner.

“Can you prove that?” he snapped out.

Landon looked at him in mild amazement, almost amusement. “Certainly not,” he replied; “nor do I need to. The burden of proof rests with you. If you suspect me of having killed my uncle, it is for you to produce proof.”

Coroner Berg looked chagrined. He had never met just this sort of a witness before, and did not know quite how to treat him.

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And yet Landon was respectful, serious, and polite. Indeed, one might have found it hard to say what was amiss in his attitude, but none could deny there was something. It was

after all, an aloofness, a separateness, that seemed to disconnect this man with the proceedings now going on; and which was so, only because the man himself willed it.

Coroner Berg restlessly and only half-consciously sensed this state of things, and gropingly strove to fasten on some facts.

Nor were these hard to find. The facts were clear and startling enough, and were to a legal mind conclusive. There was, so far as known, no eye-witness to the murder, but murderers do not usually play to an audience.

“We have learned, Mr. Landon,” the coroner said, “that you had an unsatisfactory interview with your uncle; that you did not get from him the money you desired. That, later, he was killed in a locality where you admit you were yourself. That his dying words are reported to be, ‘Kane killed me! willful murder.’ I ask you what you have to say in refutation of the conclusions we naturally draw from these facts?”

There was a hush over the whole room, as the answer to this arraignment was breathlessly awaited.

At last it came. Landon looked the coroner squarely in the eye, and said: “I have this to say. That my uncle’s words,—if, indeed, those were really his words, might as well refer, as you assumed at first, to any one else, as to myself. The name Cain, would, of course, mean in a general way, any one of murderous intent. The fact that my own name chances to be Kane is a mere coincidence, and in no sense a proof of my guilt.”

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The speaker grew more emphatic in voice and gesture as he proceeded, and this did not militate in his favor. Rather, his irritation and vehement manner prejudiced many against him. Had he been cool and collected, his declarations would have met better belief, but his agitated tones sounded like the last effort in a lost cause.

With harrowing pertinacity, the coroner quizzed and pumped the witness as to his every move of the day before. Landon was forced to admit that he had quarreled with his uncle, and left him in a fit of temper, and with a threat to get the money elsewhere.

“And did you get it?” queried the coroner at this point.

“I did not.”

“Where did you hope to get it?”

“I refuse to tell you.”

“Mr. Landon, your manner is not in your favor. But that is not an essential point. The charges I have enumerated are as yet unanswered: and, moreover, I am informed by one of my assistants that there is further evidence against you. Sandstrom, come forward.”

The stolid-looking Swede came.

“Look at Mr. Landon,” said Berg; “do you think you saw him in Van Cortlandt Park yesterday?”

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“Ay tank Ay did.”

“Near the scene of the murder?”

“Ay tank so.”

“You lie!”

The voice that rang out was that of Fibsy, the irrepressible.

And before the coroner could remonstrate, the boy was up beside the Swede, talking to him in an earnest tone. “Clem Sandstrom,” he said, “you are saying what you have been told to say! Ain’t you?”

“Ay tank so,” returned the imperturbable Swede.

“There!” shouted Fibsy, triumphantly; “now, wait a minute, Mr. Berg,” and by the force of his own insistence Fibsy held the audience, while he pursued his own course. He drew a silver quarter from his pocket and handed it to Sandstrom. “Look at that,” he cried, “look at it good!” He snatched it back. “Did you look at it good?” and he shook his fist in the other’s face.

“Yes, Ay look at it good.”

“All right; now tell me where the plugged hole in it was? Was it under the date, or was it over the eagle?”

The Swede thought deeply.

“Be careful, now! Where was it, old top? Over the eagle?”

“Yes. Ay tank it been over the eagle.”

“You *tank* so! Don’t you *know*?”

The heavy face brightened. “Yes, Ay *know*! Ay know it been over the eagle.”

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“You’re *sure*?”

“Yes, Ay bane sure.”

“All right, pard. You see, Mr. Coroner,” and Fibsy handed the quarter over to Berg, “they ain’t no hole in it anywhere!”

Nor was there. Berg looked mystified. “What’s it all about?” he said, helplessly.

“Why,” said Fibsy, eagerly, “don’t you see, if that fool Swede don’t know enough to see whether there’s a hole in a piece o’ chink or not, he ain’t no reliable witness in a murder case!”

The boy had scored. So far as the Swede's alleged recognition of Landon was evidence, it was discarded at once. Coroner Berg looked at the boy in perplexity, not realizing just how the incident of the silver quarter had come about. It was by no means his intention to allow freckle-faced office boys to interfere with his legal proceedings. He had read in a book about mal-observation and the rarity of truly remembered evidence, but he had not understood it clearly and it was only a vague idea to him. So it nettled him to have the principle put to a practical use by an impertinent urchin, who talked objectionable slang.

Judge Hoyt looked at Fibsy with growing interest. That boy had brains, he concluded, and might be more worth-while than his appearance indicated. Avise, too, took note of the bright-eyed chap, and Kane Landon, himself, smiled in open approval.

But Fibsy was in no way elated, or even conscious that he had attracted attention. He had acted on impulse; he had disbelieved the Swede's evidence, and he had sought to disprove it by a simple experiment, which worked successfully. His assertion that the Swede had been told to say that he recognized Landon, was somewhat a chance shot.

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Fibsy reasoned it out, that if Sandstrom had seen Landon in the woods, he would have recognized him sooner at the inquest, or might even have told of him before his appearance. And he knew that the police now suspected Landon, and as they were eager to make an arrest, they had persuaded the Swede that he had seen the man. Sandstrom's brain was slow and he had little comprehension. Whether guilty or innocent, he had come to the scene at his wife's orders, and might he not equally well have testified at the orders or hints of the police? At any rate, he had admitted that he had been told to say what he had said, and so he had been disqualified as a witness.

And yet, it all proved nothing, rather it left them with no definite proof of any sort. Fibsy ignored the stupid-looking Swede, and stared at the coroner, until that dignitary became a little embarrassed. Realizing that he had lessened his own importance to a degree, Berg strove to regain lost ground.

“Good work, my boy,” he said, condescendingly, and with an air of dismissing the subject. “But the credibility of a witness’s story must rest with the gentlemen of the jury. I understand all about those theories of psy—psychology, as they call them, but I think they are of little, if any, use in practice.”

“Oh, I wouldn’t say that,” said Judge Hoyt. “I find them very interesting. Do *you* always see things clearly, Terence?”

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“It isn’t seeing clearly,” said Fibsy, with an earnest face, “it’s seein’ true. Now, f’r instance, Mr. Coroner, is the number for six o’clock, on your watch, a figger or a VI?”

“I cannot allow this child’s play,” and Mr. Berg looked decidedly angry.

“But that’s rather a good one,” said Judge Hoyt. “Come, now, Berg, do you know which it is?”

“Certainly I do,” Berg snapped out. “It’s the Roman letters, VI.”

“Yessir?” said Fibsy, eagerly. “An’ are they right side up, or upside down, as you hold Twelve at the top?”

Berg thought a moment. “As I hold Twelve at the top, they’re upside down, of course. All the numbers have their base toward the centre of the dial.”

“Then the Six on your watch is VI, with the tops of the letters next the rim of the watch?”

“It is,” said Berg, adding sneeringly, “would you like to see it?”

“Yessir,” and Fibsy darted forward.

The coroner snapped his watch open, and after a brief glance, the boy gave a quick little wag of his head, and went back to his seat without a word.

But the man flushed a fiery red, and his pompous air deserted him.

“Were you right, Berg?” asked Judge Hoyt. “Come now, own up?”

“A very natural error,” mumbled the coroner, and then Detective Groot pounced on him, demanding to see his watch.

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“Why, there’s no six on it at all!” he cried and then gave an uncontrollable guffaw. “There’s only a round place with the second hand into it!”

“This tomfoolery must be stopped,” began the coroner, but he had to pause in his speech until the ripple of merriment had subsided and the jury had realized afresh the seriousness of their purpose.

“Hold on Berg, that’s a fairly good one on a coroner,” said Judge Hoyt, a little severely. “Have you looked at that watch for years and didn’t know there was no six on it?”

“I s’pose I have. I never thought about it.”

“It does show the unreliability of testimony intended to be truthful,” and Hoyt spoke thoughtfully. “Terence, how did you know Mr. Berg’s watch had a second hand instead of the six numeral?”

“I didn’t know a thing about it. But I wanted to see if *he* did. It might of been a six upside down fer all o’ me, but most watches has second hands there and most people don’t know it. I got it out of a book. People don’t see true. They think a watch has gotter say six o’clock, they don’t remember it might mean it but not say it.”

Again Hoyt gave the boy a look of appreciation. “Keen-witted,” he said to himself. “Ought to make his mark.” And then he glanced back to the discomfited coroner.

CHAPTER VII

STEPHANOTIS

Now Mr. Berg's disposition was of the sort that when offended, desires to take it out of some one else rather than to retaliate on the offender. So, after a little further questioning of the still bewildered Swede he turned again to Landon.

"Let us dismiss the matter of the Swede and his evidence," he said, lightly, "and resume the trend of our investigations. Do I understand, Mr. Landon, that you expect to inherit a legacy from your late uncle?"

Landon's eyes flashed. "I don't know what you understand, Mr. Coroner. As a matter of fact, I haven't much opinion of your understanding. But I know nothing of the legacy you speak of, save that my uncle said to me yesterday, that he would leave me fifty thousand dollars in his will. Whether he did or not, I do not know."

The statement was made carelessly, as most of Kane Landon's statements were, and he seemed all unaware of the conclusions immediately drawn from his words.

"Judge Hoyt," said the coroner, turning to the lawyer, "are you acquainted with the terms of Mr. Trowbridge's will?"

"Most certainly, as I drew up the document," was the answer.

"Is Kane Landon a beneficiary?"

“Yes; to the extent of fifty thousand dollars.”

It was impossible not to note the gleam of satisfaction that came into Landon’s eyes at this news. Hoyt gave him a stare of utter scorn and Avice looked amazed and grieved.

“You seem pleased at the information, Mr. Landon,” the coroner observed.

Landon favored him with a calm, indifferent glance and made no response.

Berg turned again to Miss Wilkinson, the blonde stenographer.

“Will you tell me,” he said, “if you know, what caused Mr. Trowbridge to leave his office early, yesterday?”

The girl hesitated. She shot a quick glance at Landon, and then looked down again. She fidgeted with her handkerchief, and twice essayed to speak, but did not finish.

“Come,” said Berg, sharply, “I am waiting.”

“I don’t know,” said Miss Wilkinson at last.

Fibsy gave a quick whistle. “She does know,” he declared; “she takes all the telephone calls, and she knows the G’uvnor went out ’cause somebody telephoned for him.”

“Is this true?” asked Berg of the girl.

“How can I tell?” she retorted, pertly. “Mr. Trowbridge had a lot of telephone calls yesterday, and I don’t know whether he went out because of one of them or not. *I* don’t listen to a telephone conversation after Mr. Trowbridge takes the wire.”

“You do so!” said Fibsy, in a conversational tone. “Mr. Berg, Yellowtop told me just after the Guv’nor went out, that he’d

gone 'cause somebody asked him over the wire to go to Van Cortlandt Park.”

“Tell the truth,” said Berg to the girl, curtly.

“Well, I just as lief,” she returned; “but it ain’t my way to tell of private office matters in public.”

“Make it your way, now, then. It’s time you understand the seriousness of this occasion!”

“All right. Somebody, then,—some man,—did call Mr. Trowbridge about two o’clock, and asked him to go to Van Cortlandt Park.”

“What for? Did he say?”

“Yes, he said somebody had set a trap for him.”

“Set a trap for him! What did he mean?”

“How do I know what he meant? I ain’t a mind-reader! I tell you what he said,—I can’t make up a meanin’ for it too. And I ain’t got a right to tell this much. I don’t want to get nobody in trouble.”

The girl was almost in tears now, but whether the sympathy was for herself or another was an open question.

“You have heard, Miss Wilkinson, of testimony that means to be true, but is—er—inexact.” The coroner smiled a trifle, as if thus atoning for his own late slip. “Therefore, I beg that you will do your utmost to remember exactly what that message was.”

“I do, 'cause I thought it was such a funny one. The man said, ‘you’d better come, he’s set a trap for you.’ And Mr. Trowbridge says ‘I can’t go today, I’ve got an engagement’

And the other man said, ‘Oh, c’mon. It’s a lovely day, and I’ll give you some stephanotis.’”

“Stephanotis!”

“Yes, sir, I remembered that, ’cause it’s my fav’rite puffume.”

“Was Mr. Trowbridge in the habit of using perfumery?” asked Berg of Avice.

“Never,” she replied, looking at the blonde witness with scorn.

“I don’t care,” Miss Wilkinson persisted, doggedly; “I know he said that, for I had a bottle of stephanotis one Christmas, and I never smelled anything so good. And then he said something about the Caribbean Sea——”

“Now, Miss Wilkinson, I’m afraid you’re romancing a little,” and the coroner looked at her in reproof.

“I’m telling you what I heard. If you don’t want to hear it, I’ll stop.”

“We want to hear it, if it’s true, not otherwise. Are you sure this man said these absurd things?”

“They weren’t absurd, leastways, Mr. Trowbridge didn’t think so. I know that, ’cause he was pleasant and polite, and when the man said he’d give him some stephanotis Mr. Trowbridge said, right off, he’d go.”

“Go to the Caribbean Sea with him?”

“I don’t know whether he meant that or not. I didn’t catch on to what he said about that, but I heard Caribbean Sea all right.”

“Do you know where that sea is?”

“No, sir. But I studied it in my geography at school, I forget where it is, but I remember the name.”

“Well it’s between—er—that is, it’s somewhere near South America, and the—well, it’s down that way. Did this man speaking sound like a foreigner?”

“N—no, not exactly.”

“Like an American?”

“Yes,—I think so.”

“Explain your hesitation.”

“Well,” said the girl, desperately, “he sounded like he was trying to sort of disguise his voice,—if you know what I mean.”

“I know exactly what you mean. How did you know it was a disguised voice?”

“It was sort of high and then sort of low as if making believe somebody else.”

“You’re a very observing young woman. I thought you didn’t listen to telephone conversations of your employer.”

“Well, I just happened to hear this one. And it was so—so queer, I kind of kept on listenin’ for a few minutes.”

“It may be fortunate that you did, as your report is interesting. Now, can you remember any more, any other words or sentences?”

“No sir. There was a little more but I didn’t catch it. They seemed to know what they was talkin’ about, but most anybody else wouldn’t. But I’m dead sure about the puffumery and the Sea.”

“Those are certainly queer words to connect with this case. But maybe the message you tell of was not the one that called Mr. Trowbridge to the Park.”

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“Maybe not, sir.”

“It might have been a friend warning him of the trap set for him, and urging him to go south to escape it.”

“Maybe sir.”

“These things must be carefully looked into. We must get the number of the telephone call and trace it.”

“Can’t be done,” said Detective Groot, who being a taciturn man listened carefully and said little. “I’ve tried too many times to trace a call to hold out any hopes of this. If it came from a big exchange it might be barely possible to trace it; but if from a private wire or a public booth, or from lots of such places you’ll never find it. Never in the world.”

“Is it then so difficult to trace a telephone call?” asked one of the jury. “I didn’t know it.”

“Yes, sir,” repeated Groot. “Why there was a big case in New York years ago, where they made the telephone company trace a call and it cost the company thousands of dollars. After that they tore up their slips. But then again, you might *happen* to find out what you want. But not at all likely, no, not a bit likely.”

Avice looked at the speaker thoughtfully. The night before she had asked the number of a call and received it at once. But, she remembered, she asked a few moments after the call was made, and of the same operator. Her thoughts wandered back to that call made by Eleanor Black, and again she felt that impression of something sly about the woman. And to think, she had the number of that call, and could easily find out who

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it summoned. But all such things must wait till this investigation of the present was over. She looked at Mrs. Black.

The handsome widow wore her usual sphinx-like expression and she was gazing steadily at Kane Landon. Avice thought she detected a look in the dark eyes as of a special, even intimate interest in the young man. She had no reason to think they were acquaintances, yet she couldn't help thinking they appeared so. At any rate, Eleanor Black was paying little or no attention to the proceedings of the inquest. But Avice remembered she had expressed a distaste and aversion to detectives and all their works. Surely, the girl thought, she could not have cared very much for Uncle Rowly, if she doesn't feel most intense interest in running the murderer to ground.

She turned again toward the coroner to hear him saying:

"And then, Miss Wilkinson, after this mysterious message, did Mr. Trowbridge leave the office at once?"

"Yes sir. Grabbed his hat and scooted right off. Said he wouldn't be back all afternoon."

“And you did not recognize the voice as any that you had ever heard?”

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“No, sir.”

“And you gathered nothing from the conversation that gave you any hint of who the speaker might be?”

Whether it was the sharp eye of Mr. Berg compelling her, or a latent regard for the truth, the yellow-haired girl, for some reason, stammered out, “Well, sir, whoever it was, called Mr. Trowbridge ‘uncle.’”

Again one of those silences that seemed to shriek aloud in denunciation of the only man present who would be supposed to call Mr. Trowbridge “uncle.”

Berg turned toward Kane Landon. For a moment the two looked at each other, and then the younger man’s eyes fell. He seemed for an instant on the verge of collapse, and then, with an evident effort, drew himself up and faced the assembly.

“You are all convinced that I am the slayer of my uncle,” he said almost musingly; “well, arrest me, then. It is your duty.”

His hearers were amazed. Such brazen effrontery could expect no leniency. And too, what loop-hole of escape did the suspect have? Motive, opportunity, circumstantial evidence, all went to prove his guilt. True, no one had seen him do the deed; true, he had not himself confessed the crime; but how could his guilt be doubted in view of all the incrimination as testified by witnesses?

The coroner hesitated. He was afraid of this strange young man who seemed so daring and yet had an effect of bravado rather than guilt.

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“Was it you, Mr. Landon who telephoned to Mr. Trowbridge the message we have heard reported?”

“It was not.”

“Did you telephone your uncle at all yesterday?”

“In the morning, yes. In the afternoon, no.”

“Do you know of any one else who could call him uncle?”

“No man, that I know of.”

“This was a man speaking, Miss Wilkinson?”

“Yes, sir, I’m sure it was a man. And Mr. Trowbridge called him nephew.”

“That means, then, Mr. Landon, that it was you speaking, or some other nephew of Mr. Trowbridge.”

“Might not the stenographer have misunderstood the words? The young lady reports a strange conversation. I would never have dreamed of offering my uncle stephanotis.”

“I cannot think any man would. Therefore, I think Miss Wilkinson must have misunderstood that part of the talk.”

A diversion was created just here by the arrival of a messenger from headquarters, who brought a possible clue. It was a lead pencil which had been found near the scene of the crime.

“Who found it?” asked the coroner.

“One of the police detectives. He’s been scouring ground by daylight, but this is all he found.”

“Ah, doubtless from Mr. Trowbridge’s pocket. Do you think it was his, Miss Trowbridge?”

Avice looked at the pencil. “I can’t say positively,” she replied. “It very likely was his. I think it is the make he used.”

“Not much of a clue,” observed Groot, glancing at the pencil.

“Kin I see it?” asked Fibsy, eagerly. And scarce waiting for permission, he stepped to the coroner’s table, and looked carefully at the new exhibit.

“Yep,” he said, “it’s the make and the number Mr. Trowbridge always has in the office. Keep it careful, Mr. Berg, maybe there’s finger marks on it, and they’ll get rubbed off.”

“That’ll do, McGuire. If you must see everything that’s going on, at least keep quiet.”

“No, it’s no clue,” grumbled Detective Groot. “There *is* no real clue, no key clue, as you may say. And you have to have that, to get at a mystery. This crime shows no brains, no planning. It isn’t the work of an educated mind. That’s why it’s most likely an Italian thug.”

Kane Landon’s deep gray eyes turned to the speaker. “Whoever planned that weird telephone message showed some ingenuity,” he said.

“And you did it!” cried the detective, “I meant you to fall into that trap, and you did. My speech brought it to your mind and you spoke before you thought. Now, what did you mean by it? What about the Caribbean Sea? Were you going to take your uncle off there? Was the trap laid for that?”

“One question at a time,” said Landon, with a look that he permitted to be insolent. “Does it seem to you the sender of that message was getting my uncle into a trap, or saving him

from one? I believe the young woman reported that the message ran 'He set a trap for you.' Then was it not a rescuer telling of it?"

"Don't be too fresh, young man! You can't pull the wool over my eyes! And that telephone message isn't needed to settle your case. When a man is found dead, and with his dying breath tells who killed him, I don't need any further evidence."

"Keep still, Groot," said the coroner. "We've all agreed that those words about Cain, might mean any murderer."

"They might, but they didn't," answered Groot, angrily.

"As Mr. Landon says," spoke up Judge Hoyt, "it may be merely a coincidence that his name is Kane, when his uncle had so recently stigmatized his assailant as Cain. Surely such questionable evidence must be backed up by some incontrovertible facts."

Landon looked at this man curiously. He knew him but slightly. He remembered him as a friend of his uncle's, but he knew nothing of his attachment for Avice Trowbridge. Kane noted the fine face, the grave and scholarly brow, and he breathed a sigh of relief to think that the lawyer had said a kindly word for him. Landon's was a peculiar nature. Reproof or rebuke always antagonized him, but a sympathetic word softened him at once.

Had Landon but known it, he had another friend present. Harry Pinckney, his college mate, recognized him the moment he entered the room. Then, obeying a sudden impulse, Pinckney drew back behind a pillar that divided the two drawing-rooms, as is the fashion of old houses, and had remained unseen by Landon all the morning. Pinckney himself could scarcely have told why he did this, but it was due to a feeling that he could not write his story for his paper

with the same freedom of speech if Landon knew of his presence. For though he refused to himself to call it by so strong a term as suspicion, Pinckney felt that the coincidence of Cain and Kane was too unlikely to be true. Regretting his friend's downfall, Pinckney thought, so far as he had yet discovered, that Landon was the most likely suspect. And so he did not want to meet him just yet. Later, perhaps, he could help him in some way or other, but the "story" came first.

CHAPTER VIII

THE MILK BOTTLE

“Nothing but an old milk bottle!” exclaimed Berg, disgustedly, as the exhibit was placed before him on the table.

That’s all it was, and yet somehow the commonplace thing looked uncanny when considered as evidence in a murder case. But was it evidence? Or was it merely the remnant of a last week’s picnic in the woods?

A search of the Swede’s house had brought the thing to light, and now the big fellow told again of his finding it.

Buried, he declared it was, not fifty feet from where he had seen the dying man. He had not thought at first, that it had any connection with the murder, and had taken it merely on an impulse of thrifty acquisition of anything portable. He told his wife to wash out the ill-smelling contents, and she had done so.

“If you’d only let it alone!” wailed Groot. “What did the stuff smell like? Sour milk?”

“No, no,” and Sandstrom shook his head vigorously. “It bane like a droog.”

“A droog?”

“Drugs, I suppose you mean,” said Berg. “What sort of a drug? Camphor? Peppermint? Or, say, did it smell like prussic

acid? Peach pits? Bitter almonds? Hey?”

“Ay tank Ay don’t know those names. But it smell bad. And it had molasses.”

“You stick to that molasses! Well, then I say it’s an old molasses bottle long since discarded, and time and the weather had sunk it in the mud.”

“Na, not weathers. It bane buried by somebody. Ay tank the murderer.”

“The witness’s thinks would be of more value,” said the policeman who had brought the bottle, “if we hadn’t found this bit of property also, in his shanty.”

And then, before the eyes of all present, he undid a parcel containing a blood-stained handkerchief! Blood-soaked, rather, for its original white was as incarnadined as the hypothetical seas.

“Hid in between their mattresses,” he added; “looks like that settles it!”

It did look that way, but had there been a question as to the import of this mute testimony, it was answered by the effect on the two Swedes. The woman sank back in her chair, almost fainting, and the man turned ashy white, while his face took on the expression of despair that signifies the death of the last flicker of hope.

“Yours?” asked the coroner, pointing to the tell-tale thing and looking at Sandstrom.

“Na!” and the blue eyes looked hunted and afraid. “Ay bane found it anear the body,——”

“Yes, you did! Quit lying now, and own up! You’re caught with the goods on. The jig is up, so you may as well confess decently. You hid this in your mattress!”

“Yes, Ay hid it, but it is not mine. Ay found it anear the——”

“Don’t repeat that trumped-up yarn! You killed that man! What did you do with the knife?”

“Ay got na knife——”

“Yes, you have! Lots of knives. Come, Mrs. Sandstrom, what have you to say?”

But the Swede woman could only incoherently repeat that her husband had brought home the handkerchief, and declared he had found it, as he had found the bottle, near the dead body of a strange man. They had hidden it quickly, lest some of the police come to their house; and the bottle they had washed to get rid of the foul odor.

“She’s in earnest,” said the coroner, looking sharply at her, “he told her this tale and she believes it, even yet. Or if she doesn’t, she’ll stick to it that she does. You see, it all hangs together. Sandstrom killed Mr. Trowbridge, and probably the dying man *did* call him Cain, and cry out ‘Wilful murder!’ for this fellow wouldn’t be likely to make up such a speech. But it referred to himself and he tried to place it on another. The bottle story is a made-up yarn, by which he clumsily tried to imply a poisoning. The lead pencil found there, is Mr. Trowbridge’s own; the queer telephone call had nothing to do with the affair, and there you are!”

The case was certainly plain enough. The stained handkerchief showed clearly that it had been used to wipe a bloody blade. The long red marks were unmistakable. There was no chance that it might have been used as a bandage or

aid to an injured person. The stains spoke for themselves, and proclaimed the horrid deed they mutely witnessed.

A few further questions brought only unintelligible replies from the Swede, and the verdict was speedy and unanimous.

Sandstrom was taken off to jail, but his wife was allowed to return to her home.

Avice felt sorry for the poor woman, and stepping to her side offered some words of sympathy.

“My man didn’t do it, Miss,” and the light blue eyes looked hopelessly sad. “He ba’n’t that kind. He wouldn’t harm anybody. He——”

But foreseeing an imminent scene, Judge Hoyt took Avice gently by the arm and drew her away.

“Don’t talk to her,” he whispered, “you can do the poor thing no good, and she may become intractable. Let her alone.”

Avice let herself be persuaded, and she followed the judge to the library. On the way, however, she was stopped by Stryker, who said the boy wanted to speak to her.

“What boy?” asked Avice.

“That office boy, Miss Avice. He says just a minute, please.”

“Certainly,” she returned, kindly, and went back a few steps to find Fibsy, bashfully twisting his cap in his hands as he waited for her.

“’Scuse me, Miss, but—are you boss now?”

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“Boss? of what?”

“Of the—the diggin’s—the whole layout—” More by the boy’s gestures than his words, Alice concluded he meant her uncle’s business rather than the home.

“Why, no, I don’t suppose I am, child.”

“Who is, then? The lawyer guy?”

“Judge Hoyt? No,—what do you want to know for?”

“Well, Miss, I want a day off—off me job, you know.”

“Oh, is that all? You are—were my uncle’s office boy, weren’t you?”

“Yes’m.”

“And your name is Fibsy?”

“Well, dat name goes.”

“Then I’ll take the responsibility of saying you may have your day off. Indeed, I’m sure you ought to. Go ahead, child, and if anybody inquires about it, refer him to me. But you must be back in your place tomorrow. They may need you in—in settling up matters, you know——”

“Oh, gee, yes! I’ll be on deck tomorrow, Miss. But I want today somepin’ fierce,—fer very special reasons.”

“Very well, run along, Fibsy.”

Alice stood looking after the red-headed boy, who seemed for the moment so closely connected with her uncle’s memory. But he darted out of the open front door and up the street, as one on most important business bent.

The girl went on to the library, and found there Kane Landon and the reporter Pinckney busily engaged in the staccato

chatter of reunion. Meeting for the first time in five years, they reverted to their college days, even before referring to the awfulness of the present situation.

“But I must beat it now,” Pinckney was saying, as Avice appeared.

“Look me up, old scout, as soon as you can get around to it. A reporter’s life is not a leisure one, and I’ve got to cover this story in short order. Mighty unpleasant bit for you, that Cain speech. No harm done, but it will drag your name into the paper. So long. Good-by, Miss Trowbridge. I may see you again sometime,—yes?”

“I hope so,” said Avice, a little absently. “Good-by.”

Then she turned to Landon. For a moment they took each other’s two hands and said no word.

Then, “It’s great to see you again,” he began; “I’d scarcely recognize the little pig-tailed girl I played with five years ago.”

“You teased me more than you played with me,” she returned. “You were twenty then, but you put on all the airs of a grown man.”

“I was, too. I felt old enough to be your father. That’s why I used to lecture you so much, don’t you remember?”

“Indeed I do! You could make me mad by half a dozen words.”

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“I knew it, and I loved to do it! I expect I was an awful torment.”

“Yes, you were. But tell me all about yourself. Why are you in New York and not staying here? Oh, Kane, what does it all

mean? I've been in such miserable uncertainty all the morning. Not that I thought for a minute you'd done anything—anything wrong, but it's all so horrible. Did you quarrel with Uncle Rowly yesterday?"

"Yes, Avice, just as the little chap said. But don't talk about awful things now. It's all over, the harrowing part, I mean. Now, I just want to look at you, and get acquainted all over again. Let's put off anything unpleasant until another day."

"I remember that trait in you of old. Always put off everything disagreeable, and hurry on anything nice," and Avice smiled at the recollection.

"And not a bad philosophy, my dear. Now tell me of yourself. You are well—and happy? I mean until this tragedy came."

"Yes, Kane, I've had a happy home here with Uncle. I liked it better before Eleanor Blade came, but Uncle wanted a housekeeper, and she applied for the position and he took her. That was about a year or more ago, and Kane, what do you think? They were engaged to be married!"

"Yes, so I learned at the inquest. Don't you like her?"

"I don't know; I suppose so. But sometimes, I think I don't trust her."

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"Don't trust anybody, my dear Avice. That's the safest and sanest plan."

"Have you become a cynic? You talk like one."

"Don't you want me to be one?"

"Surely not. I hate cynicism."

"Then I won't be one. For the only wish I have in life is to please you." Landon's voice fell lower, and glancing about to

make sure there was no one in hearing, he went on, "All these years, Avice, I've been loving you more and more. I've been striving to make a name and a fortune worthy of you. And I came home to further that purpose, and to see if there's any hope for me. Is there, dear?"

"Oh, Kane, don't talk like that now. Why, just think, Uncle _____"

"I know it, little girl. Uncle isn't yet buried. But when I saw you this morning, for the first time in so long, and when I saw how beautiful you have grown, I couldn't wait to tell you of my love and hopes. Tell me I may hope,—tell me that, Avice."

"I don't know, Kane. You bewilder me. I never dreamed of this——"

"What, Avice! Never dreamed of it? Never even *dreamed* that I loved you—that you could—some day, love me?"

Avice blushed and looked down. Perhaps she had dreamed,—just dreamed of such a thing.

"Don't ask me about it now, Kane," she said, firmly. "I'm all nervous and unstrung. These awful excitements following one another so fast and furious. Oh, I shall break down." The tears came, but Landon said lightly, "No, you won't, girlie, it's all right. I'm here now to look after you. But you're right. I mustn't tease you now,—why, I'm back at my old teasing tricks, amn't I?"

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His strong, frank voice quieted Avice, and she looked up at him as Judge Hoyt entered the room.

"Well, Mr. Landon," he said, "I congratulate you on an escape from a mighty unpleasant predicament. Things looked dark for a few moments back there. But it all came out right. Queer coincidence, wasn't it?"

“It was all of that, Judge Hoyt. And it was probably more dangerous to—to my peace of mind, than I realized at the time. I was pretty much bewildered at the attack, I can tell you. You see, that was all true about my call on my uncle, and it looked a little plausible, I suppose.”

“H’m, yes. And are you staying East for a time?”

“Forever, I hope. I’ve had enough of the wild and woolly.”

“Mr. Landon will stay here with us,” said Avice, decidedly. “I invite him for an indefinite stay.”

“I hope you’ll accept,” observed Hoyt. “I’d be glad, Avice, for you to have a man in the house. There’ll be more or less unpleasant publicity after this and, until it blows over, Mr. Landon can probably save you from tiresome interviews with reporters, if nothing more.”

“Of course, I can do that. Shall you want to remain in this house Avice, after the estate is settled?”

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“I don’t know yet. Don’t let’s talk about that now, Kane.”

“All right. What do you make of that crazy telephone message attributed to me, Judge Hoyt?”

“Why, Mr. Landon, if you don’t mind, I’ll not answer that question.”

“But I do mind. I want you to answer it.”

“Want me to answer it honestly?”

“Honestly, certainly.”

“Then, sir, I think it was you who telephoned.”

“Oh, you do? And I said that somebody had set a trap for my uncle? And I said I would give him Frangipanni, or whatever it was? And I said I’d send him to the Caribbean Sea?”

“You asked me what I thought. You have it. Yes, I think you said these things, but I think they were some jests between your uncle and yourself that were perfectly intelligible to you two. I have no reason to think you were angry at your uncle. Disappointed, doubtless, in not getting the loan you asked for, but still quite ready to forgive and forget. Now, honest, am I not right?”

Kane Landon had a curious look in his eyes. “You’re a good guesser,” he said, a little shortly, “but you haven’t guessed right this time.”

“Then I beg your pardon, but I still believe whoever telephoned that farrago of nonsense, had no intent but pleasantry of some sort.”

Eleanor Black came bustling in. She looked strikingly beautiful in her black gown. Not what is technically known as “mourning,” but softly draped folds of dull, lusterless silk, that threw into higher relief her clear olive complexion and shining black eyes.

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“A family conclave?” she said, lightly. “May I join? But first may I not have Mr. Landon duly presented to me?”

“Oh, surely, you’ve never really met, have you?” said Avice. “Mrs. Black, this is my cousin, or the same as cousin, for he’s Uncle Rowly’s nephew. Kane, my very good friend, Mrs. Black.”

The two bowed, rather formally, and Mrs. Black murmured some conventional phrases, to which Landon responded courteously.

Judge Hoyt took the occasion to draw Avice outside the hall.

“Let them get acquainted,” he said, “and suppose you pay some slight attention to me. You’ve had eyes and ears for no one but that cousin ever since you first saw him this morning. And now you’re asking him to live here!”

“But you expressed approval of that!” and Avice looked surprised at his tone.

“How could I do otherwise at the time? But I don’t approve of it, I can tell you, unless, Avice, dearest, unless you will let us announce our engagement at once. I mean after your uncle is buried, of course.”

“Announce our engagement! You must be crazy. I’ve never said I’d marry you.”

“But you’ve never said you wouldn’t. And you are going to. But all I ask just now, is that you’ll assure me you’re not in love with this Lochinvar who has so unexpectedly come out of the West.”

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“Of course, I’m not!” But the emphasis was a little too strong and the cheek that turned away from him, a little too quickly flushed, to give the words a ring of sincerity.

However, it seemed to satisfy Judge Hoyt. “Of course, you’re not,” he echoed. “I only wanted to hear you say it. And remember, my girl, you *have* said it. And soon, as soon as you will let me, we will talk this over, but not now. Truly, dear, I don’t want to intrude, but you know, Avice, you must know how I love you.”

With a little gasping sigh Avice drew away the hand Hoyt had taken in his own, and ran back into the library.

She found Landon and Eleanor Black in a close conversation that seemed too earnest for people just introduced.

“Very well,” Eleanor was saying, “let it be that way then. I’ll give it to you this very afternoon. But I am not sure I approve, —” and then, as she heard Avice enter, she continued, “of—of Western life myself.”

The artifice was not altogether successful. Avice’s quick ears detected the sudden change of inflection of the voice, and the slight involuntary hesitation. But she ignored it and responded pleasantly to their next casual remarks.

CHAPTER IX

A CLAUSE IN THE WILL

The funeral ceremonies of Rowland Trowbridge were of the dignity and grandeur that are deemed necessary for a man of his station in life. Great men of the financial world, scholars and statesmen had all come to pay their last respects to the one so suddenly taken from his busy and forceful career.

And now, the obsequies over, a group of people were gathered in the library of the Trowbridge home to hear the reading of the will.

There was a hush of expectancy as Judge Hoyt produced and read aloud the document.

As has already been disclosed there was a bequest of fifty thousand dollars to Kane Landon. The house and furniture were given unreservedly to Mrs. Eleanor Black, with fifty thousand dollars in addition. There were bequests of one thousand dollars each to Miss Wilkinson and to Terence McGuire, both favorites with their employer. Also a similar sum to Stryker, the butler, and various smaller sums to other servants and to a few charities.

And then came the disposition of the residuary fortune, which, it was rumored, ran well up into the millions.

In the words of the will it was set forth that all moneys and properties, not otherwise designated, were bequeathed to

Avice Trowbridge, on the conditions that “she shall keep my collection of Natural History Specimens intact, and, within a year duly present it to some worthy museum; and herself become the wife of Leslie Hoyt. Also, she must add to said collection not less than twenty-five specimens of certain value every year. If these conditions are not fulfilled, my niece, Avice, inherits but fifty thousand dollars of my fortune, and the residue must form a trust fund, under the supervision of Leslie Hoyt, to be used to found and endow a museum of Natural History.”

With the exception of Hoyt and Avice, every one present looked astounded at the terms of the will. And yet it was not surprising that Mr. Trowbridge desired the union of his niece and his friend. Besides being the lawyer of the dead man, Hoyt had been his intimate friend and companion for years, and Hoyt’s regard for Avice was no secret. Moreover, the girl had always looked on the lawyer with friendly eyes, and it had been assumed by many that they were destined for each other. To be sure, Avice was only twenty, and Leslie Hoyt was forty-five. But he was a man who seemed ten years younger than he was, and Avice was mature for her years. So, while it was a surprise that their union had been made a condition of the bequest, it was not thought by any one that this fact would be objectionable to either of the two concerned.

But Avice looked grave, and an obstinate expression came into her eyes. Hoyt saw this, and smiled a little as he remembered her aversion to being *made* to do a thing, even though she fully intended to do it. It was the girl’s nature to chafe at authority, and Hoyt well knew he would have to give her free rein in many matters. Of course, having drawn up the will, he had known of this condition, but this was the first time he had had opportunity to note how it affected Avice. And it was quite plain that she was displeased.

“Then,” she burst out, “does my inheritance depend on my marriage to Judge Hoyt?”

“Yes,” answered Hoyt, himself, smiling at her.

“Then I refuse it! I will not be told whom I shall marry!”

“Let us not discuss that now,” said Hoyt, gently; “there is time enough for you to decide that later.”

Avice realized that this was not the time or place for such a discussion, and said no more.

Mrs. Black was dissatisfied. Although she had a handsome inheritance, she well knew that this will had been made before her betrothal to Rowland Trowbridge, and had he lived to marry her, she would have had much more. Indeed, the only person who seemed satisfied was Kane Landon. He looked serenely pleased, and began to make inquiries as to how soon he could have his share in cash.

Judge Hoyt looked at him, as if incredulous that any one could be so mercenary, and rising, went over to sit beside him and discuss the matter. On his way, Hoyt passed by the boy, Fibsy, and patting his shoulder, remarked genially, “I’m glad you were remembered, sonny. When you want to invest your money, let me advise you.”

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Fibsy glanced up at the lawyer, and with an inquiring look on his face, he exclaimed “Vapo-Cottolene!”

What this cryptic utterance meant, no one could guess; and no one gave it a second thought, except Landon, who smiled at the red-headed boy and said, “Yes!”

As soon as she could do so, Avice escaped to her own room. So this was her inheritance! A fortune, only if she took also a

husband of her uncle's choice! It had come upon her so suddenly, that she had to reiterate to herself that it was true.

"If I'd only known," she thought. "I'm sure I could have persuaded Uncle Rowly not to do that! I don't blame him so much, for I know he thought I wanted to marry Leslie, but I never told him I did. I suppose he had a right to think so,—but—that was all before Kane came back." And then her thoughts wandered far away from her inheritance, both real and personal, and concerned themselves with the strange man who had come out of the West. For he was strange. Landon had abrupt ways and peculiar attitudes that Avice could not altogether understand. He was so blunt and breezy. That, of course, was owing to his recent surroundings; then, again, he was so masterful and dominating, but that he had always been. Still more, he was incomprehensible. She couldn't understand his curt, almost rude manner at the time of the inquest proceedings. To be sure, it was enough to make a man furious to have insinuating questions put to him about the murder of his uncle,—as if Kane could have known anything of it!—but, well, he was mysterious in some ways.

And his attitude toward Eleanor Black. They must have met before or they never would have talked as absorbedly as they had been doing when Avice came upon them unexpectedly. And Eleanor was another mysterious one! She had her inheritance now, and Avice hoped they might separate, never to meet again. Well, of course, they would, for neither had a desire to continue living with the other. As for Avice herself, she would go out of that house at once. But where? That must soon be decided. Then, like a flooding wave, came back the memory of her uncle's will! She must marry Judge Hoyt or lose her fortune. She would have some money, to be sure, but the interest of that, as an income would make life a very different matter from what it had been!

And Eleanor would have this house,—to live in, or to sell. Idly she speculated on this, feeling an undercurrent of satisfaction that the widow's bequest had not been even larger.

Then her thoughts reverted to the episode of Mrs. Black's telephoning so late that night, after the death of her uncle. She remembered she had secured the telephone number.

"I've a notion to call up and see who it is," she mused. "I am going to devote myself to searching out the murderer, and while I don't, of course, dream that Eleanor had anything to do with it, yet—she is Italian,—and suppose she is mixed up with some secret society—oh—well—I'll have to call that number or never rest. I might as well do it now."

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Unwilling to take a chance of being overheard in the house, Avice dressed for the street and went out. She said to a maid in the hall, "If any one asks, say I've gone out for a little breath of air."

Glad of a walk in the sunshine, she went to the nearest public telephone booth and called the number. She had a queer feeling of doing wrong, but she persuaded herself that her motive was a right one.

"Hello," she heard a man's hearty voice say.

"Hello," she returned, thoroughly frightened now, but not willing to back out. "Who is this, please?"

"Lindsay, Jim Lindsay; who wants me?"

"But,—but,——" Avice was at her wits' end what to say, "are you—do you know—that is, are you a friend of Mrs. Black? Eleanor Black?"

"Don't know the lady. Is this Mrs. Black?"

“No; but you must know her. She—she talked to you last Tuesday night, late—very late.”

“Tuesday night? Oh, I wasn’t here Tuesday night. A chum of mine had my rooms; Landon—Kane Landon,—”

“Who?”

“Landon. Say, what’s the matter? Won’t you tell me who you are? What’s it all about? Oh, I beg your pardon, I’m inexcusably butting in! Forgive me, do. Yes, Kane Landon had these rooms to himself for a night or two while I was away. I believe he’s at a relative’s on Fifth Avenue now. Want to see him?”

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“No—thank you. Good-by.”

Avice hung up the receiver, her brain in a whirl. Had Eleanor, then, been telephoning to Kane the very night of the murder? What had she said? For him not to try to see her that night! For him to meet her next day at the same time and place! Oh, they *were* old friends, then. More, they were keeping that fact quiet, and pretending to meet as strangers! Was there, could there be any connection between all this and the murder?

Scarce knowing what she was doing, Avice left the booth and went for a long walk. But she could get no meaning or explanation of the facts she had learned. The more she mulled them over the more confused she became as to their import. Her mind turned to Hoyt. After all, Leslie was the one to bank on. He would help her and advise her as he had always done. But, that will! She could ask no favors or advice of Judge Hoyt now, unless she acknowledged herself his betrothed. And was she prepared to do that? Well, one thing was certain, if Kane was all mixed up with Eleanor Black, she surely wanted no more to do with him! And he had told her he loved her. Perhaps because he thought she was her uncle’s heiress! Of course, he did not know then of the clause about her

marrying the judge. Probably now, Kane would have no further interest in her. Well, he could marry Eleanor, for all she cared!

She went home, and paused first for a few moments in a small reception room, to calm her demeanor a little. But, on the contrary, the sight of the familiar walls and the realization that she was to leave them, struck a sudden sadness to her already surcharged heart, and she gave way to silent weeping. And here Hoyt, looking for her, found her.

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“What is it, dearest?” he said, sitting beside her. “I have now a right to comfort you.”

“Why?” said Avice, throwing back her head and meeting his eyes.

Hoyt smiled tenderly at her. “Because our betrothal, long tacitly agreed upon, is now ratified by your uncle’s wish and decree.”

“Not at all. Because my uncle wished me to marry you, is no reason that I am obliged to do so.”

“Not obliged, my darling. That is a harsh word. But you want to, don’t you, my Avice? My beautiful girl!”

“I don’t know whether I do or not. But I’m sure of one thing, I won’t marry you simply because Uncle Rowly wanted it! Much as I loved him, and much as I revere his memory, I shall not marry a man I don’t love for his sake!”

“But you do love me, little Avice. You are so worried and perturbed now, you can’t think clearly. But you will find yourself soon, and realize that you love me as I love you.”

Hoyt spoke very tenderly and the girl’s quivering nerves were soothed by his strong, gentle voice, and his restrained manner.

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He didn't offer endearments which she might resent. He knew enough to bide his time, confident that she would turn to him of her own accord when ready.

"I don't want to think about marrying now," she said, wearily; "I have so much to think about."

And then Leslie Hoyt made his mistake.

"No, dear, don't think about it now," he said; "but remember, if you don't marry me, you lose a very big fortune."

The words were meant to be half playful, half remindful, but they roused the deepest indignation in the heart of Avice Trowbridge.

She turned on him with flaming eyes. "How dare you? How can you put forth such an argument? Do you think that will help your cause? Do you suppose I would marry any one for a fortune? And any way, as a lawyer you can find some way to set aside that proviso. It can't be possible a whim like that can stand in law!"

Hoyt looked at her intently. "It will stand," he said, coldly; "I do not use it as a bribe, but I tell you truly, if you do not marry me the bulk of your uncle's fortune will go to a museum."

"Can't a will like that be broken?"

"In no possible way. Your uncle was in full possession of all his faculties, the will is duly witnessed and recorded, there isn't a flaw that could be found on which to base a contest. But don't let us talk in this strain, dear. If you don't want to marry me, you shan't, but you must realize the situation."

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"I begin to realize it at last. But I cannot decide now. Give me time, Leslie," and the sweet brown eyes looked appealingly into his.

“Of course, I will, you darling girl, all the time you want. And please, Avice, if you want any information or advice, come to me and let me help you, without feeling that you are committing yourself to anything. You understand?”

“Oh, thank you! That is what I wanted. Yes, I do understand, and I bless you for it. I am very much perplexed, Leslie, but I want to think out things a little for myself, before I tell you what I’m bothered about.”

“So be it, then. And whenever you’re ready, I’m waiting.”

Judge Hoyt went away, and Avice, wandering listlessly through the house, came upon Eleanor Black. That volatile spirit had already assumed complete ownership and command of the home that was now all her own. She was giving orders to the servants in quite a different manner from the one she had shown as a mere housekeeper, and was already arranging for a different mode of life.

“I shall close the house for the summer and go away,” she was saying to Stryker, “and then in the fall there must be complete renovation. Avice, what are your plans?”

“Oh, Eleanor, I haven’t made any yet. How can you be so hasty? Do have a little respect for uncle’s memory, if you have no sorrow in your heart.”

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“Don’t trouble yourself to talk to me like that, Avice,” and the black eyes snapped. “There’s no need of pretense between us.”

“Then let’s lay pretense aside,” and the girl’s attitude suddenly became as haughty as the older woman’s. “Who is Jim Lindsay?”

“Mercy! I don’t know, I never heard of him. Why?”

It was impossible to doubt the sincerity of Eleanor's speech and expression, and Avice was at once sure that it was the truth.

"Nothing, then. I don't know him either. And Eleanor, I'll talk with you some time, soon, about our future plans and all that, but I can't just yet. You don't mind my staying in the house a short time, do you?"

"Of course, not. Don't be a goose. Stay till you marry Judge Hoyt, if you will. But I'm going away for the summer."

"When?"

"As soon as I can settle up some matters and get off. But you stay here if you choose. Keep the servants, and get some one to chaperone you. My dear Avice, look on the place as your home just as long as it suits you to do so, won't you?"

The invitation was given in a whole-souled, honest manner, and Avice really appreciated the kindness that prompted it.

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"Thank you, Eleanor," she said; "I shall be glad to stay for a time, I can't say yet how long. And it's good of you to be so hospitable."

"I've asked Mr. Landon to stay a while," Mrs. Black added, "until I go away, at any rate."

Avice wanted to ask her then, how long she had known Kane Landon, but something seemed to restrain the question. So with a few murmured words of acquiescence, she went her way.

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CHAPTER X

STRYKER'S HANDKERCHIEF

It was soon after this, that the reporter, Pinckney, came again to see Avice. The girl liked the wide-awake young man, and granted him an interview.

"Shall I announce your engagement to Judge Hoyt?" he asked, gravely, but with intense interest.

"No, indeed!" said Avice, with spirit.

"You're not going to lose all that fortune?"

"Not necessarily. But I object to having my engagement announced before it has taken place! Oh, *do* all these things have to be in the papers?"

"Certainly they do; and that's why you'd better tell me the truth than to have to stand for all the yarns I'd make up."

"Oh, *don't* make up a lot of stuff, *please* don't!"

"Well, I won't, if you'll give me a few facts to work on. First, do you think that Swede killed your uncle?"

"Oh, I don't know what to think! But I'm going to get the best detective I can find, and let him find out all he can. I believe uncle was killed by some robber, and his reference to Cain was merely the idea of a murderer. Uncle often talked that way."

“Look here, Miss Trowbridge, I don’t want to butt in, I’m sure; but I’m a bit of a detective, myself, in an amateur way. Don’t you want me to,—but I suppose you want a professional.”

“I think I do want a professional,” began Avise, slowly; “still Mr. Pinckney, if you have a taste for this sort of thing, and know how to go about it, I might work with you more easily than with a professional detective. I’m going to do a lot myself, you know. I’m not just going to put the matter in an expert’s hands.”

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“I hardly know what to say, Miss Trowbridge; I’d like to take up the case, but I might muff it awfully. I suppose you’d better get the real thing.”

“Well, until I do, why don’t you have a try at it? If you discover anything, very well; and if not, no harm done.”

Jim Pinckney’s face glowed. “That’s great of you!” he cried; “I’d like to take it up on that basis, and if I don’t find out anything of importance in a few days, engage any Sherlock Holmes you like.”

But a few days later when Pinckney again called on Avise, he was in a discouraged mood.

“I can’t find out anything,” he said. “The whole case is baffling. I went to the scene of the crime, but could find no clues. But, what do you think, Miss Trowbridge? When I reached the place where they found Mr. Trowbridge, there was that young office boy, looking over the premises.”

“That Fibsy, as he calls himself?”

“Yes; I asked him what he was doing, and he said, ‘Oh, just pokin’ around,’ and he looked so stupid that I feel sure he had found something.”

“He’s just smart enough for that,” and Avice smiled a little.

“Yes, he is. I asked him to come here today, and I thought you and I would both talk to him, and see if we can learn anything of his find. If not, I admit I am at the end of my rope, and if you choose, perhaps, you’d better get a real detective on the case.”

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“I spoke to Judge Hoyt about that, and he agreed. But Mr. Landon doesn’t want a detective. Ah, here’s Fibsy, now. Come in, child.”

The boy had appeared at the door with a beaming face, but at Avice’s calling him “child,” his countenance fell.

“I ain’t no child,” he said, indignantly; “and say, Miss Avice, I found some clues!”

“Well, what are they?”

“A shoe button, and a hunk o’ dirt.”

“Interesting!” commented Pinckney. “Just what do you deduce from them?”

Then Fibsy rose up in his wrath. “I ain’t a-goin’ to be talked to like that! I won’t work on this case no more!”

“Sorry,” said Pinckney, grinning at him. “Then I suppose we’ll have to call in somebody else. Of course, he won’t do as well as you, but if you’ve decided to throw the case over, why _____”

“Aw, can the guyin’!” and with a red, angry face, Fibsy jumped up and fairly ran out of the room and out of the house.

“Now you’ve made him mad,” said Avice, “and we’ll never know what he found in the way of clues.”

“He said, a shoe button, and some mud! We could hardly expect much from those treasures.”

Then Judge Hoyt came. His calls were frequent, and he continually tried to persuade Avice to announce their engagement. But the girl was perverse and said she must first solve the mystery of her uncle’s death. The judge was always willing to listen to her latest theories, but though he never said so, Avice felt pretty certain that he did not suspect the Swede.

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She told him of Fibsy’s finds, and he said curiously, “What did he mean by mud?”

“He didn’t say mud,” corrected Avice, “he said dirt I think he meant soil or earth.”

“How would that be a clue? Any one can get some soil from the place, if they don’t take too much. A few square feet might be valuable.”

“Why pay any attention to that rubbishy boy?” exclaimed Pinckney. “Why not get a worth-while detective, and let him detect?”

“Yes, that’s the thing to do,” agreed Hoyt. “Duane stands well in the profession.”

“Alvin Duane! just the man,” and Pinckney looked enthusiastic. “But he’s a bit expensive.”

“Never mind that,” cried Avice; “I must find uncle’s murderer at any cost!”

“Then let’s have Duane,” and Judge Hoyt reached for the telephone book.

Meantime the administrators of law and justice were pursuing the uneven tenor of their way, hoping to reach their goal,

though by a tortuous route.

“It’s a mighty queer thing,” said District Attorney Whiting, “I’m dead sure the western chap killed his uncle; we’ve even got his uncle’s word for it, and yet I can’t fasten it on him.”

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“But,” said the chief of police to whom this observation was addressed, “aren’t you basing your conviction on that curious coincidence of names, Cain and Kane? To my mind that’s no proof at all.”

“Well, it is to me. Here’s your man named Kane. He’s mad at his victim. He goes to the place where the old man is. And as he kills him, the old man says, ‘Kane killed me.’ What more do you want? Only, as I say, we’ve got to have some more definite proof, and we can’t get it.”

“Then you can’t convict your man. I admit it’s in keeping with that young fellow’s western ways to kill his uncle after a money quarrel, but you must get more direct evidence than you’ve dug up yet.”

“And yet there’s no one else to suspect. No name has been breathed as a possible suspect; the idea of a highway robber is not tenable, for the watch and money and jewelry were untouched.”

“What about the Swede?”

“Nothing doing. If he had killed the man, he certainly would have done it for robbery? What else? And then he would not have come forward and told of the dying words. No, the Swede is innocent. There’s nobody to suspect but Landon, and we must get further proofs.”

The District Attorney worked hard to get his further proof. But though his sleuths searched the woods for clues, none were found. They had the bare fact that the dying man had

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denounced his slayer, but no corroboration of the murderer's identity, and the neighborhood of the crime was scoured for other witnesses without success.

The district attorney had never really thought the Swede committed the murder. A grilling third degree had failed to bring confession and daily developments of Sandstrom's behavior made it seem more and more improbable that he was the criminal.

And so Whiting had come to suspect Kane Landon, and had kept him under careful watch of detectives ever since the murder, in hope of finding some further and more definite evidence against him.

But there were no results and at last the district attorney began to despair of unraveling the mystery.

And then Groot made a discovery.

"That Stryker," he said, bursting in upon Whiting in great excitement, "that butler,—he's your man! I thought so all along!"

"Why didn't you say so?" asked the other.

"Never mind chaffing, you listen. That Stryker, he's been taking out a big insurance. A paid-up policy, of,—I don't remember how much. But he had to plank down between eight and nine hundred dollars cash to get it. And he used his bequest from old Trowbridge to do it!"

"Well?"

"Well, here's the point. You know how those premiums work. After Stryker is sixty years and six months old, he can't get insured at all,—in that company any way, and at those rates."

“Well?”

“Well, and Friend Stryker reaches his age limit next week!”

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“You’re sure of this?”

“Sure, I’m sure! I got it from the agent Stryker dealt with. The old fellow has been fussing over that insurance off and on for years; and now, just at the last minute, a man up and dies who leaves him enough money to get his insurance. Is it a coincidence?”

“At any rate we must look into it,” said Whiting, gravely. “What have you done?”

“Done? I’ve just found this out! Now’s the time to begin doing. I’ll search his rooms first, I think, and see if I can nail any sort of evidence. And by the way, on the day of the murder, it was Stryker’s day out, and he’s never given any definite or satisfactory account of how he spent the afternoon. For one thing, he wasn’t definitely asked, for nobody thought much about him, but now I’ll hunt up straws, to see how the wind blows.”

Groot went off on his straw hunt, and as it turned out, found far more decided proof of the wind’s direction than straws.

Inspector Collins and he came back together with their news.

“It’s Stryker, all right,” said Collins to the district attorney; “the handkerchief is his.”

“The handkerchief his?”

“Yes, we found others in his dresser just like it. It’s a peculiar border, quite unmistakable, and the size and textures are the same. Oh, it’s his handkerchief, for sure. And Sandstrom found it, just as he said, and he was scared out of his wits,—

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remember he saw the police there with the body,—so he hid the handkerchief, and was afraid even to wash it.”

“What’d he take it for?”

“Plain theft. Thought he’d make that much. Same way he took the milk bottle. Say, maybe Stryker laid a trap for Mr. Trowbridge, and maybe somebody else did tell him of it, over the telephone, as a warning!”

“Arrest Stryker as soon as possible,” said Whiting, “perhaps we’d better let the Swede go.”

“Sure let him go. He won’t make any trouble. I’ve got to know him pretty well, and I sort of like him.” Groot’s shrewd, old face showed a gleam of pity and sympathy for the wronged prisoner. “But how could we know it was Stryker’s handkerchief?”

“Where can we find him? Is he at home?”

“Guess he is now,” returned the detective. “They expected him in about five o’clock. I’ll go to the house myself, and a couple of chaps with the bracelets can hang around outside till I call ’em.”

At the Trowbridge house, Groot was admitted as usual. His visits had been rather frequent ever since the crime, but as he had done nothing definite, the family paid little attention to him.

He asked for Avice, and found her, with Judge Hoyt, in the library.

“Come in, Groot,” said the lawyer. “What’s up now?”

“Where’s the man, Stryker?” asked Groot, in lowered tones. “Is he in?”

“I think so,” said Avice, “he always is, at this hour. Do you want to see him?”

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“Yes, mighty bad, he’s the murderer!”

“What!” exclaimed both his hearers together.

“Yes, no doubt about it,” and Groot told the story of the handkerchief.

Avice looked simply amazed, but Judge Hoyt said, “I’ve looked for this all along.”

“Whyn’t you give us a hint, Judge?”

“I hadn’t enough to base my idea on, to call it a suspicion. I never thought of the handkerchief being his. As a matter of fact, I rather thought it was Mr. Trowbridge’s own, and that the murderer, whoever he was, had used it and left it without fear of its incriminating himself. Surely no one would leave his own handkerchief on the scene of his crime! Are you sure it’s Stryker’s?”

“Positive. But all that can be proved and investigated later. Now we want to nail our bird and jail him. Will you send for him, Miss Trowbridge?”

“Certainly,” and Avice rang a bell, a sorrowful look coming into her eyes at thought of suspecting the old servant.

A parlor-maid appeared, and Avice asked her to send the butler to them.

“Won’t he bolt?” asked Groot, fearing to lose his quarry at the last moment.

“Why should he?” said Avice, “any more than yesterday? He doesn’t know he’s suspected, does he?”

“Oh, no, he couldn’t know it.”

“Then he’ll be here in a minute.”

While waiting, Groot told them, in low tones, about Stryker’s insurance matter.

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“Time up next week!” repeated Judge Hoyt. “That looks bad, very bad. I’ve heard Stryker speak of insuring, several times, but I thought nothing about it. He wasn’t asking my advice, merely discussing it as a business proposition. When I’ve been here of an evening with Mr. Trowbridge, we often spoke with Stryker almost as to a friend. He’s an old and trusted servant. I’m desperately sorry to learn all this.”

“So am I,” said Avice. “I do want to track down uncle’s murderer,—but I don’t want it to be Stryker!”

The parlor-maid returned. “Miss Avice,” she said, “Stryker isn’t in the house.”

“Isn’t?” cried Groot, starting up; “where is he?”

“I don’t know, sir, but he can’t be far away. The second man says that Stryker was in his pantry and he answered a telephone call there, and then he just flung on his hat and coat and went out.”

“He’s escaped!” shouted Groot, dashing out of the room and downstairs, two at a time.

And he had. Search of the house showed no trace of the vanished butler, save his belongings in his room. And among these were several handkerchiefs, indisputably from the same lot as the one found at the place of the crime. And a further search of the rooms of every inmate of the household showed no other such handkerchief.

CHAPTER XI

DUANE THE DETECTIVE

Having learned from Avice of Stryker's relatives, Groot sought the butler at the home of his daughter.

"No," said Mrs. Adler, a scared-looking young woman, "I don't know where father is. I haven't seen him for a day or two. But he can't be lost."

"He's in hiding, madam," said Groot, "and he must be found. Are you sure he's not here?"

"Of course, I'm sure. What do you want of him, anyway? My husband is very ill, and I wish you wouldn't bother me about it. I don't believe anything has happened to my father, but if there has, I don't know anything of it. You'll have to excuse me now, I'm very busy." She didn't exactly shut the door in his face, but she came near it, and Groot went away uncertain as to whether she was telling the truth or not.

"I wish I'd searched the house," he thought. "If Stryker doesn't turn up soon, I will."

Stryker didn't turn up soon, and Groot and his men did search the house of Mrs. Adler and her sick husband, but with no result.

The daughter was apathetic. "Poor father," she said, "I wonder where he is. But I'm so worried about Mr. Adler, I can think of nothing else."

There was cause, indeed, for the wife's anxiety, for Adler was in the late stages of galloping consumption. And the harassed woman, none too well fixed with this world's goods, was alone, caring for him. Groot's humanity was touched and he forbore to trouble her further.

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"Stryker's decamped, that's all," Groot said; "and flight is confession. It's clear enough. He wanted this insurance of his for his daughter, the agent told me the policy is payable to her, and he had to take it out before his age limit was reached. He knew of the legacy coming to him, and in order to get his insurance, he hastened the realization of his fortune."

It did look that way, for Avice and Mrs. Black agreed that Stryker was devoted to his daughter, and they knew of her husband's desperate illness. Knew too, that she would be left penniless, and was herself delicate and unfit for hard work. Stryker could support her while he lived, but to leave her an income from his life insurance was his great desire. Judge Hoyt, too, said that he knew of this from conversations he had himself had with Stryker. But he had supposed the butler had saved up funds for his insurance premium. He now learned that the support and care of the sick man had made this impossible.

So Stryker was strongly suspected of the crime, and every effort was made to find the missing man.

Meantime Alvin Duane came. Though alleged to be a clever detective, he admitted he found little to work upon.

"It is too late," he said, "to look for clues on the scene of the crime. Had I been called in earlier, I might have found something, but after nearly a fortnight of damp, rainy weather, one can expect nothing in the way of footprints or other traces, though, of course, I shall look carefully."

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Duane was a middle-aged, grizzled man, and though earnest and serious, was not a brilliant member of his profession. He had, he said himself, no use for the hair-trigger deductions of imaginative brains which, oftener than not, were false. Give him good, material clues, and attested evidence, and he would hunt down a criminal as quickly as anybody, but not from a shred of cloth or a missing cuff-link.

Eleanor Black, with her dislike of detectives of all sorts, was openly rude to Duane. He was in and out of the house at all hours; he was continually wanting to intrude in the individual rooms, look over Mr. Trowbridge's papers, quiz the servants, or hold long confabs with Avice or Kane Landon or herself, until she declared she was sick of the very sight of him.

"I don't care," Avice would say; "if he can find the murderer, he can go about it any way he chooses. He isn't as sure that Stryker's guilty as Mr. Groot is. Mr. Duane says if Stryker did it, it was because somebody else hired him or forced him to do it."

"Well, what if it was? I can't see, Avice, why you want to keep at it. What difference does it make who killed Rowland? He is dead, and to find his murderer won't restore him to life. For my part, I'd like to forget all the unpleasant details as soon as possible. I think you are morbid on the subject."

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"Not at all! It's common justice and common sense to want to punish a criminal, most of all a murderer! Judge Hoyt agrees with me, and so does Kane——"

"Mr. Landon didn't want you to get Mr. Duane, you know that."

"I do know it, but only because Kane thought the mystery too deep ever to be solved. But I am willing to spend a lot of money on it, and Judge Hoyt is willing to share the expense if it becomes too heavy for me alone."

“The judge would do anything you say, of course. I think you treat him abominably, Avice. You’re everlastingly flirting with Mr. Landon, and it grieves Judge Hoyt terribly.”

“Don’t bother about my love affairs, Eleanor. I can manage them.”

“First thing you know, you’ll go too far, and Judge Hoyt will give you up. He won’t stand everything. And where will your fortune be then?”

“You alarm me!” said Avice, sarcastically. “But when I really need advice, my dear Eleanor, I’ll ask you for it.”

“Oh, don’t let’s quarrel. But I do wish you’d see your detective friends somewhere else. If it isn’t Mr. Duane, it’s that Groot or young Pinckney, and sometimes that ridiculous office boy with the carrot head.”

“His hair *is* funny, isn’t it? But Fibsy is a little trump. He’s more saddened at Uncle Rowly’s death than lots of better men.”

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“Hasn’t he found another place to work yet?”

“He’s had chances, but he hasn’t accepted any so far.”

“Well, he’s a nuisance, coming round here as he does.”

“Why, you needn’t see him, Eleanor. He can’t trouble you, if he just comes now and then to see me. And anyway, he hasn’t been here lately at all.”

“And I hope he won’t. Dear me, Avice, what good times we could have if you’d let up on this ferreting. And you know perfectly well it will never amount to anything.”

“If you talk like that, Eleanor, I’ll go and live somewhere else. Perhaps you’d rather I would.”

“No, not that,—unless you’d really prefer it. But I do hate detectives, whether they’re police, professional or amateur.”

Avice repeated this conversation to Duane, and he proposed that they have some of their interviews in his office, and he would then come to the house less frequently.

So, Avice went to his office and found it decidedly preferable to talk in a place where there was no danger of being overheard by servants or friends.

After due consideration she had concluded to tell the detective about Eleanor’s telephone message the night of the murder and her own subsequent call of the same number.

“This is most important,” said Duane, “why didn’t you tell me sooner?”

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“For one thing, Mrs. Black was always within hearing at home, and I didn’t like to.”

“I think I’ll go right now to see this Lindsay; he may give us some valuable information.”

And Lindsay did.

He was a frank, outspoken young man and told Duane all he knew which was considerable.

“Of course, I read all about the murder that the papers told,” he said, “but I always felt there was more to come. What about that housekeeper person?”

“Mrs. Black?”

“Yes. I’ve not wanted to butt in, but she was described in the papers and then,—well, it’s a queer thing,—but some sweet-voiced fairy called me up one day and asked me if I knew Mrs. Black!”

“Perhaps that was the lady herself,” said Duane, who knew better.

“Don’t think so. Sounded more like some damsel in distress. Voice quivered and all that sort of thing. And she said that the Black person had called up this number the very night of the murder! What do you think of that?”

“Strange!” murmured Duane.

“Yes, sir, strange enough, when you realize that Kane Landon occupied these rooms of mine that night.”

“How did that happen?”

“Well, Landon is an old friend of mine,—used to be, that is,—and when he blew in from Denver, with no home and mother waiting for him, and I was just flying off for a few days out of town, I said, ‘Bunk here,’ and he gratefully did. Then next thing I know, he’s gone off to his uncle’s inquest, leaving a note of thanks and farewell! Queer, if you ask me!”

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“I do ask you. And I ask you, too, if you’re casting any reflection on Mr. Landon himself?”

“Oh, not that, but you’d think he’d come to see me, or something.”

“Yes, I’d think so. Did he talk to you of money matters?”

“Not to any great extent. Said he had a big mining proposition that meant a fortune if he could get the necessary advance capital. Said he hoped to get it from his uncle.”

“Not meaning by a legacy?”

“Oh, no. Said he was going to bone the old man for it. Which he did, according to the yarn of a fresh office boy.”

“Well, Mr. Lindsay, I’m glad you’re so frank in this matter. Do you know anything further of interest regarding Kane Landon?”

“I’m not sure. What does this housekeeper look like?”

“Rather stunning. Handsome, in a dark, foreign way. Big, black eyes, and—”

“Look like an adventuress?”

“Yes, I must admit that term describes her.”

“Black, glossy hair, ’most covering her ears, and mighty well groomed?”

“Exactly.”

“Then Kane Landon met that woman by appointment Tuesday afternoon,—the day of his uncle’s murder.”

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“Where?”

“In the Public Library. They didn’t see me, but I was attracted at the sight of this beautiful woman on one of the marble benches in one of the halls, evidently waiting for somebody. Then Landon came and he greeted her eagerly. She gave him a small packet, wrapped in paper, and they talked so earnestly they didn’t see me at all. I was only there for a short time, to look up a matter of reference for some people I was visiting. We had motored in from Long Island,—Landon was then in my rooms, you know.”

“What time was this?”

“Just half-past two. I know, because I had told my people I’d meet them again at three, and I wanted a half hour for my research, and had it, too.”

“This is most important, Mr. Lindsay. You are prepared to swear it all as a witness, if called on?”

“Oh, it’s all true, of course. But, I say, I don’t want to get old Landon in trouble.”

“It doesn’t necessarily imply that. Perhaps Mrs. Black may be implicated more than we have supposed. But he, I understand, denies knowing the lady until meeting her here, after his uncle’s death.”

“Nonsense, he knew her for years out in Denver. They are old friends.”

“That, too, is of importance. Why should he wish to pretend they were not?”

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“I don’t know, I’m sure. But Landon always was a queer Dick. You know he left college before he was graduated, because of a quarrel with this same uncle. Mr. Trowbridge was putting him through, and they had a tiff about something, and Kane chucked it all, and went off out West. Been there ever since, till just now, and it’s a pity he hadn’t stayed there rather than to get mixed up in this affair.”

“You consider him mixed up in it, then?”

“I wouldn’t say that, but I know the police are still hinting at his possible connection with the matter and the Press, you know, will try to hang the crime on to somebody worth while. They don’t want to suspect highwaymen or Swedish passers-by, if they can get a man higher up. Now, do they?”

“I can’t say. I’ve only just begun on this case, and I wish I’d been called sooner. It’s a great thing to get in at the beginning _____”

“Yes, when the clues are fresh. Well, if I can help you in any way, call on me. Landon is my friend, but if he’s innocent, investigation won’t hurt him, and if he’s implicated, he ought to be shown up.”

Alvin Duane went away, full of new theories. If Kane Landon did kill his uncle, here were several bits of corroborative evidence. If Mrs. Black was an old friend of his, and they had pretended otherwise, that was a suspicious circumstance in itself. And if they were both entirely innocent and unconnected in any way with the murder, why did they meet secretly in the library instead of openly at the Trowbridge home? These things must be explained, and satisfactorily, too.

Also, what was in the package that she went there to give him? Lindsay had said it was about the size of a brick, but flatter. Was it, could it have been a handkerchief of Stryker’s? Duane’s brain was leaping wildly now. Supposing these two conspirators were responsible for the murder. Supposing Kane had been the subject of his uncle’s dying words, and had himself committed the deed, might it not be that the adventuress (as he already called Mrs. Black) had brought him a handkerchief of the butler’s in deliberate scheming to fasten the crime on Stryker! That Landon had left it there purposely, and that Stryker discovering this, had fled, in fear of being unable to prove his innocence.

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All theory, to be sure, but well-founded theory backed by the recorded facts, which Duane had studied till he knew them by heart.

Then the telephone caller who said “Uncle” was really the nephew, and the “stephanotis” and Caribbean Sea were jokes between the two, or as was more likely, figments of the stenographer’s fertile brain.

On an impulse, Duane went to see Miss Wilkinson, the stenographer, and verify his ideas.

“You’re sure it was a man’s voice?” he asked her.

“Sure,” she replied, always ready to reiterate this, though she had been quizzed about it a dozen times. [137]

“Do you think it could have been Mr. Landon?”

“Yes, I think it could have been Mr. Landon, or Mr. Stryker, or the President of the United States. There isn’t anybody I *don’t* think it could have been! I tell you the voice was purposely disguised. Sort of squeaky and high pitched. So *can’t* you see that it was really a man with a natchelly low voice? You detectives make me tired! I give you the straight goods that it was a disguised voice, and so, unreckonizable. Then you all come round and say, ‘was it this one?’ ‘was it that one?’ I tell you I don’t *know*. If I’d a known whose voice it was, I’d a told at the inquest. I ain’t one to keep back the weels of justice, I ain’t!”

“Never mind the voice then. Tell me again of those queer words——”

“Oh, for the land’s sake! I wish I’d never heard ’em! Well, one was stephanotis,—got that? It’s a *very* expensive puffume, and the next man that asks me about it, has got to gimme a bottle. I had a bottle onct——”

“I know, I know,” said Duane, hastily, “that’s how you came to know the name.”

“Yep. Now, go on to the Caribbean Sea.” The blonde looked cross and bored. “No, I *don’t* know why anybody invited Mr. Trowbridge to the Caribbean; if I had I’d been most pleased to tell long ago. But somebody did. I heard it as plain as I hear you now. Yes, I’m sure it *was* the Caribbean Sea, and not the Medtranean nor the Red Sea nor the Bay of Oshkosh! So there, now. Anything else this morning?” [138]

“How pettish you are!”

“And so would you be if everybody was a pesterin’ you about them old words. Can I help it if the man talked Greek? Can I help it if he squeaked his voice so’s I couldn’t reckonize it? I gave my testimony and it was all recorded. Why can’t you read that over and let me alone, I’d like to know!”

But after a pleasant little gift of a paper, fresh from the United States Bureau of Engraving and Printing, Miss Wilkinson grew a little more sunny tempered.

“No,” she said, in answer to Duane’s last question, “I can’t quite remember whether the voice said *he* had set a trap or somebody else had set one. But I’m positive he said one or the other. And he said the trap was set for Mr. Trowbridge,—whoever set it.”

CHAPTER XII

A NEW THEORY

Alvin Duane had to report to Avice and to Judge Hoyt the result of his interview with Lindsay.

The detective had an idea that Avice would be far from pleased at the possible incrimination of Kane Landon. Duane knew that Miss Trowbridge was reported engaged to Judge Hoyt, but he had seen and heard her in conversation with the judge, and to his astute observation she did not seem desperately in love with him. This, to be sure, was none of his business, but he greatly desired to find out just where the affections of his young employer lay. Moreover, he had a slight suspicion that the girl was a little jealous of the beautiful widow's attractions, but whether this jealousy was directed toward Landon or the judge he did not know. And he chose his own method of discovering.

Avice came to his office by appointment to learn his news. Duane greeted her, looking admiringly at the slender figure, so pathetic in its dull black draperies. But there was a vivid color in the girl's cheeks, and a sparkle of excitement in her eyes, as she sat down, eager to learn the latest developments.

"Mr. Duane," she said, "I see by your very manner that you learned something from my unknown friend, Mr. Lindsay."

"I did," and Duane looked mysterious and important.

“Well, tell me! I am all impatience!”

Pursuing the plan he had formulated to himself, he said, impressively, “I’ve a new theory.”

“Yes,” said the girl, breathlessly.

“I think Mrs. Black is the criminal,” he declared, bluntly.

Avice almost laughed. “How absurd!” she said. “Why, Mrs. Black was with me all that afternoon.”

“That’s just it! She stayed and kept you at home on purpose. I don’t mean she actually committed the murder, but she instigated it.”

“And who was her accomplice?”

“Stryker, the house man, of course.”

Avice began to be a little interested. She had never really liked Stryker. He seemed to her shifty and deceitful. “But how?” she asked.

“Easy enough. The man simply took a knife from the kitchen, followed his master to the woods, and waylaid him.”

“How did he know Uncle Rowly was going to the woods?”

“He telephoned him at his office to go to Van Cortlandt Park. You remember the stenographer said the man who telephoned called Mr. Trowbridge ‘Uncle’.”

“And Stryker did that?”

“Yes; to be misleading.”

“But Stryker didn’t know Kane Landon had come on from the West.”

“Yes, he did. Landon telephoned the night before. You were all out and Stryker took the message.”

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“How do you know?”

“I have ferreted it all out from the other servants. The facts, I mean,—not my deductions from them.”

“Have you spoken to them about Stryker?”

“No; I wanted to speak to you about it first.”

“Mr. Duane, I will be frank with you. I don’t want Kane Landon suspected of this crime. I know he is innocent. I know, too, that some evidence seems to be against him. But that is only seeming. He is entirely innocent. Now, if Stryker is innocent, also, I don’t want to direct suspicion to him. And it doesn’t seem to me you have any real evidence against him.”

“But, my theory is that he was only a tool in the hands of the principal criminal.”

“Mrs. Black?”

“Yes.”

“Preposterous! Incredible!”

“Not at all. Mrs. Black was engaged to your uncle, but she did not love him. She was marrying for a fortune. Then she heard that Landon, whom she has known for years, was coming East, and she connived with Stryker to put the old gentleman out of the way.”

“Uncle Rowly was only in the fifties, that is not old.”

“Old compared with Kane Landon. And as I told you, Miss Trowbridge, this is largely theory. But many facts support it,

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and it ought to be looked into.”

“Then the thing to do, is to lay it before Judge Hoyt. He will know what is the best way to sift the theory to a conclusion.”

But when the three were together in Hoyt’s office, and Duane told the whole story of his interview with Jim Lindsay, the detective laid aside his pretence of still suspecting Stryker and enumerated his reasons for looking in the direction of Landon.

“That must be a true bill about his meeting that adventuress in the library,” he argued; “it couldn’t have been anybody else but Mrs. Black.”

“Why couldn’t it?” Avice spoke fiercely, and her brown eyes were full of indignant amazement at the tale Duane had told.

“Lindsay saw her picture in the papers, and anyway, it all fits in. You see, those two were pals in Denver, and they kept it quiet. That’s enough to rouse suspicion in itself. The old butler is no sort of a suspect. To be sure he wanted the money to get his insurance before the time was up, but he wouldn’t commit murder for that——”

“Why wouldn’t he?” demanded Avice, “as likely as that a man’s own nephew would do it?”

“He isn’t an own nephew,” said Judge Hoyt, slowly. “I don’t want to subscribe to your theory, Duane, but I’m startled at this library story. Of course, Landon had a right to meet anybody he chose and wherever he chose, but why keep secret his previous acquaintance with the widow?”

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“He might have lots of good reasons for that,” and Avice looked pleadingly at the judge. “Don’t *you* turn against him, Leslie; you know him too well to think him capable of crime.”

“Of the two I would rather it had been Stryker,” said the judge, “but we can’t ignore definite evidence like this. Did Mrs. Black go out that afternoon, Avice?”

“Yes,” replied the girl, unwillingly. “She went out soon after luncheon and stayed about an hour.”

“Time to go to the library and back. Duane, you’re drawing a long bow, to jump at the conclusion that the housekeeper took a handkerchief of Stryker’s, to be used as a false clue that would incriminate the butler! It’s almost *too* much of a prearranged performance.”

“Of course it is!” cried Avice. “Kane is a firebrand and impulsive and hotheaded, but he’s not a deliberate criminal! If he killed Uncle Rowly,—which he never did, never!—he did it in the heat of a quarrel, or under some desperate provocation. I wish you had never come to us, Mr. Duane! I don’t want Stryker found guilty, but I’d a thousand times rather he did it than Kane. I dismiss you, Mr. Duane. You may give up the case, and tell no one of these wrong and misleading circumstances you’ve discovered.”

“Wait, wait, Avice,” and Judge Hoyt spoke very gently; “we can’t lay aside evidence in that way. These things must be looked into. They must be told to the district attorney, and investigated, then if Landon is innocent, as he doubtless is, he can explain all that now looks dark against him.”

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“Don’t accuse *him*!” flared Avice, “go to Eleanor Black, and ask her what was in the parcel she took to Kane. She is the wrongdoer, if either of them is. She telephoned him that night of Uncle’s death, and she said——”

“What did she say?” asked Hoyt, as Avice stopped short.

Compelled by the insistent glances of the two men, Avice went on: “She said she’d meet him the next day at the same

time and place. That proves there was nothing wrong about it.”

It didn’t prove this conclusively to her two listeners, and they quizzed her further until she admitted that she had reason to think that Landon and Mrs. Black had known each other before Avice had introduced them.

“How do you explain that,” asked Duane, “unless they were concealing something,—some plan or a secret of some sort?”

“And suppose they were! It needn’t have been anything connected with Uncle Rowly’s death. If they knew each other in Denver, all the more likely they had business of some sort that they didn’t care to have known.”

The girl was arguing against her own suspicions as much as against theirs. A terrible fear clutched at her heart, and surging emotions choked her speech. For, as she pictured Kane as a suspected criminal, came the even more heartrending thought that he was in love with Eleanor Black! Quickly to Avice’s sensitive intuitions came the conviction that Landon would not be holding secret conferences and having secrets with Eleanor unless they were or had been lovers. And yet, he had told Avice he loved her. But, granting all this she was hearing today, what faith could she put in his speech or actions?

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“I can only repeat what I said, Mr. Duane,” she asserted, with dignity, “I hereby release you from your engagement on this case, and I will willingly pay you for the time you have wasted,—worse than wasted! And I hope never to see you again!” Here Avice was unable longer to control her tears.

Greatly distressed, Judge Hoyt attempted to soothe her, but met only with rebuff.

“You’re just as bad,” she sobbed. “You, too, want to prove Kane mixed up in this, when you know he isn’t—he couldn’t

be!——”

“There, Avice, there, dear, dry your eyes and go home now. I will talk this over with Mr. Duane, and if there is any way of disproving or discrediting this evidence, rest assured——”

“Oh, can you do that, Leslie?” and the girl looked up hopefully; “isn’t there a thing called ‘striking out’ anything you don’t want to use against a person?”

“That’s a broad view of it,” and Judge Hoyt smiled a little, “but you run along, dear, and after a confab with Mr. Duane, I’ll come up and tell you all about it.”

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The confab wound up by a trip to the office of the district attorney. The situation was too grave to allow of what Avice called “striking out”! If Landon and Mrs. Black were implicated in suspicious collusion, the matter must be sifted to the bottom.

District Attorney Whiting eagerly absorbed the new facts recounted to him, and fitted them into some he had of his own knowledge.

Landon had sent fifty thousand dollars to the mining company of Denver in which he was interested. He had not yet realized on his inheritance, for the estate had not been settled, but he had doubtless borrowed on his prospective legacy. This proved nothing, except that he had been most anxious for the large sum of money, and had utilized his acquisition of it as soon as possible.

“We must get at this thing adroitly,” counseled Judge Hoyt. “Landon is a peculiar chap, and difficult to bait. If he thinks we suspect him, he’s quite capable of bolting, I think. Better try to trip up the housekeeper. She’s a vain woman, amenable to flattery. Perhaps if Mr. Groot went to her, ostensibly suspecting,—say, Stryker,—he could learn something about

her relations with Landon. And by the way, how are you going to find Stryker?"

"Through his daughter," Whiting replied. "That butler is no more the murderer than I am; and he is hiding, because he's afraid of that handkerchief clue."

"It is certainly an incriminating piece of evidence," observed Hoyt.

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"It is. But not against the butler. That handkerchief is a plant. On the face of it, it is certainly too plain an indication to be the real thing. No, sir, the murderer, whoever he was, stole the butler's handkerchief to throw suspicion on the butler. And who could do this so easily as the housekeeper, or some member of the household, who had access to Stryker's room? Landon wasn't at the house, that we know of, before the murder, therefore, the theory of the housekeeper bringing the handkerchief to him at their library interview, just fits in and makes it all plausible."

"It may be," said Judge Hoyt, looking doubtful; "it may possibly be, Whiting; but go slowly. Don't jump at this, to me, rather fantastic solution. Track it down pretty closely, before you spring it on the public."

"All of that, Judge Hoyt! I've no idea of spiking my own guns by telling all this too soon. But there's work to be done, and first of all we must find that butler. If he can be made to think we don't accuse him, he'll come round, and we may learn a lot from him. We missed our chances in not questioning him more closely at first."

Meantime Avice had gone home, and on the way, her mood had changed from sorrow to anger. She was angry at herself for having insisted on the employing of Alvin Duane. She remembered how Kane had opposed it, but she was so zealous in her hunt for justice that she ignored all objections. She was

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angry at Kane for hobnobbing with Eleanor Black, and also for deceiving her about their previous acquaintance. She was angry at Eleanor for knowing Kane and pretending that they were strangers. She was angry at Judge Hoyt for not dismissing Duane and obliterating even from his own memory all that stuff the detective had discovered. She was furiously angry at Duane, but that was a helpless, blind sort of rage that reacted upon herself for engaging him.

And so, her tears had dried and her quivering nerves had tautened themselves when she reached the house, and she went in, determined to attack Eleanor Black herself, and learn the truth of her acquaintance with Kane.

But as soon as she entered, she came upon Landon and Mrs. Black in the little reception room, in close confab.

“Come in,” said the widow, “come in and talk to us.”

“We won’t have time for much conversation,” said Landon, looking at his watch, “I want Mrs. Black to go out with me on an errand. May I order the car?”

“Certainly,” said Mrs. Black, smiling. “I want all my guests to feel at liberty to give any orders they choose.” Her smile included Avice and gave the girl that uncomfortable feeling that always manifested itself when the ex-housekeeper asserted herself as mistress of the place.

“Please, Avice, don’t look like that,” said Eleanor, with an injured air. “I want you to look on this house as home just as long as you choose to do so. And, indeed, you may continue in charge of it, if that is what you want.”

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“Car’s here,” sang out Landon. “Come on, Eleanor.”

“Eleanor!” thought Avice, as the two went away. She had never heard him call her that before, and it struck her like a

chill. And yet she felt sure there was a strong friendship, if not something deeper between them, and she must be prepared for even endearing terms.

But Avice, despite her quick anger, was of a nature born to make sacrifices. She could do anything to help those she loved, and she had suddenly realized that she did love Landon. So without thought of reward, she began to plan how she could help him.

She turned from the window without even wondering where they were going; only conscious of a vague, dull longing, that she felt now, would never be gratified.

And then, Harry Pinckney came, for one of his rather frequent calls. Avice was glad Eleanor was out as she so objected to the sight of a detective, and the young reporter had added that line of work to his own.

"I know where Stryker is," were his first words, after they had exchanged greetings.

"You do! Where?"

"At his daughter's. Been there all the time. That Mrs. Adler is a splendid actress, but she was a little too unconcerned about her father's disappearance to fool me. I pinned her down, and I'm practically sure he's in her house, or she knows where he is. But I've told the police and they'll rout him out. I'm to have the scoop. I hope they find him soon."

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"And," Avice held herself together, "who will be the next suspect?"

"Dunno. Old Groot has his eye on Kane Landon, but he's got no evidence to speak of. I don't care two cents for that 'Cain' remark. I mean I don't for a minute think it implicates Kane Landon."

“Bless you for that!” Avice said, but not aloud.

“However,” Pinckney went on, “they’ve got something new up their sleeves. They wouldn’t tell me what,—I’ve just come from headquarters,—but they’re excited over some recent evidence or clue.”

“Have you any reason to think it refers to Mr. Landon?”

Pinckney looked at her narrowly. “I hate to reply to that,” he said, “for I know it would hurt you if I said yes.”

“And you’d have to say yes, if you were truthful?”

“I’m afraid I should, Miss Trowbridge. Honest, now, isn’t there a chance that he is the one?”

“Oh, no, no! But, Mr. Pinckney, tell me something. Supposing, just supposing for a minute, that it might be Kane,—you know he’s been out West for five years, and out there they don’t look on killing as we do here, do they?”

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“What have you in mind? A sheriff rounding up a posse of bad men, or a desperado fighting his captor, or just a friendly shooting over a card game—have you been reading dime novels?”

“No. It’s just a vague impression. I thought they didn’t call killing people murder——”

“Yes, they do, if it’s murder in cold blood. Westerners only kill in avenging justice or in righteous indignation.”

“Really? I’m glad you told me that. Do you know, Mr. Pinckney, I’m not going to sit quietly down and let Kane be accused of this thing. I don’t know whether he did it or not, but he’s going to have his chance. I know him pretty well, and he’s so stubborn that he won’t take pains to appear innocent

even when he is. That sounds queer, I know, but you see, I know Kane. He is queer. If that boy is innocent, and I believe he is, he would be so sure of it himself that he'd make no effort to convince others; and he'd let himself be misjudged, perhaps, even arrested through sheer carelessness."

"It is, indeed, a careless nature that will go as far as that!"

"It isn't only carelessness; it's a kind of pig-headed stubbornness. He's always been like that."

"And if he should be guilty?"

"Then,—" and Avice hesitated, "then, I think he'd act just exactly the same."

"H'm, a difficult nature to understand."

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"Yes, it is. But I'm going to see that he is understood, and,—Mr. Pinckney, you're going to help me, aren't you?"

"To the last ditch!" and Harry Pinckney then and there, silently, but none the less earnestly, devoted his time, talent and energies to upholding the opinions of Avice Trowbridge, whatever they might be, and to helping her convince the world of their truth.

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CHAPTER XIII

FIBSY FIBS

As the district attorney had surmised, Stryker was in hiding, under the protection of his daughter. Mrs. Adler was a clever young woman, and having undertaken to keep her father safe from the police investigation, she did so remarkably well.

But being assured that there was no reason for apprehension if he had not committed the murder, Stryker decided to face the music. He had feared being railroaded to jail because of his handkerchief having been found in the wood, but a certainty of fair play gave him courage, and he emerged from the house of his daughter's neighbor, with a trembling step, but an expression of face that showed plainly relief at the cessation of strain.

"Yes, I kept father over to Mrs. Gedney's," said Mrs. Adler, "'cause I wasn't going to have him all pestered up with an everlastin' troop o' p'licemen, when he handn't done nothin'. I have my sick husband to nurse and wait on, and I can't have detectives traipsin' in here all the time. Oh, don't talk to me about the law. I ain't afraid. My father is as innercent as a babe, but he flusters awful easy, and a policeman after him makes him that put about, he don' know where he's at. So, I says, I'll jest put him out o' harm's way fer a while till I see how the cat jumps."

"But as an intelligent woman, Mrs. Adler," began Mr. Groot, "you must know——"

“I know what I know; and I’m a wife and a daughter long ’fore I’m an intellergent woman. Don’t you come none o’ that kind of talk over me. You want my father, there he is. Now talk to him, if you can do so peaceably, but don’t give him no third degree, nor don’t fuss him all up with a lot o’ law terms what he don’t understand. Talk nice to him an’ he’ll tell you a heap more’n if you ballyrag him all to pieces!”

Groot realized the force of this argument, “talked nice” to Stryker, he learned the old man’s story.

He had been anxious to take out an insurance policy for his daughter before it became too late for him to do so; but, he affirmed, he did not kill his master for the purpose. The agent had been after him frequently, of late, to urge him to borrow the money for the premium. But this, Mrs. Adler did not want him to do, for, she argued, the interest on the loan and the premiums would counterbalance the value of the policy. They had had many discussions of the subject, for Mr. Adler, a very sick man, had wanted to die knowing that his wife had some provision for her old age. His illness precluded any insurance on his own life.

Not interested in these minute details, Groot questioned Stryker closely about the handkerchief.

“I don’t know,” Stryker said. “I don’t know, I’m sure, how my kerchief got into those woods, but I do know I didn’t take it there.”

“Could it have been taken from your room?”

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“It must ’a’ been. Leastways, unless it was taken from the clothes line on a wash day,—or mebbe it blew off and was picked up by somebody passin’.”

Though not extremely probable, these were possibilities, and they had not been thought of before by Groot or his

colleagues.

“There’s something in that,” he agreed, “now, Mr. Stryker, don’t get excited, but where were you Tuesday afternoon, the day that Mr. Trowbridge was killed?”

“I know all where I was, but it’s sort o’ confused in my mind. I was to the insurance agent’s; and I was to the doctor’s to be sized up for that same insurance, if I did decide to take it out; and then I dropped in to see my daughter, and her man was so sick I thought his last hour had come, and I ran over for a neighbor, and somehow I was so upset and bothered with one thing and another that the more I try to straighten out in my mind the order of those things, the more mixed up I get. You see, it was my day out, and that always flusters me anyhow. I’m not so young as I was, and the onusualness of getting into street clothes and going out into the world, as it were, makes me all trembly and I can’t remember it afterward, like I can my routine days. And then when I did go home that night, first thing I knew master didn’t come home to dinner! That never had happened before, unless we knew beforehand. Well, then Mis’ Black she ate alone, and Miss Avice, she didn’t eat at all, and there was whisperin’ and goin’s on, and next thing I knew they told me master was dead. After that nothing is clear in my mind. No, sir, everything is a blur and a mist from that time on. That there inquest, now, that’s just like a dream,—a bad dream.”

“Then,” and Groot egged him gently on, “then, about the night you left the Trowbridge house. Why did you do that?”

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Stryker looked sly, and put his finger to his lips. “Ah, that night! Well, if you’ll believe me, I heard them talking in the library. You know, sir, I’ve a right anywhere on the two floors. I ain’t like the other servants, I’ve a right,—so as I was a passin’, I overheard Mr. Duane say as how *I* was the murderer! Me, sir! Me, as loved my master more than I can tell you. Sir, I didn’t know what I was doing then, I just got

out. I heard 'em say they had pos'tive proof, and somethin' about a handkerchief, and I remembered the sight of that handkerchief I'd seen—oh, well, oh, Lord—oh, Lord! *I* didn't do it!" The old man's voice rose to a shriek and Mrs. Adler exclaimed. "There now, you've set him off! I knew you would! Now, he'll have hystriks, and it'll take me all night to get him ca'med down, and me with Mr. Adler on my hands and him always worse at night——"

"Wait a minute," commanded Groot. "I'm nearly through, and then I'll go away and he can have his hysterics in peace. Go on, Stryker, finish up this yarn. What did you do when you heard Mr. Duane accuse you?"

Stryker looked at him solemnly and blinked in an effort to concentrate. Then he said, "Why, I pretended I'd had a telephone call from Molly, and I ran around here as fast as I could, and Molly she says, they'll be after you, go over to Mrs. Gedney's and stay there. And I did, till you spied me out."

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"All right," and Groot rose to go. "Your father is all right, Mrs. Adler. Don't coddle him too much. It makes him childish. Keep him here with you, and my word for it, no suspicion will rest on him. I had his alibi pretty well fixed up anyway, between the insurance agent and the doctor, and his story just about completes it. There isn't one chance in a thousand that he'll be accused, so keep him here and keep him quiet, and I'll see you again in a day or two. But if your father tries to run away or to hide again, then he *will* find himself in trouble."

Mrs. Adler proved amenable to these orders and Groot went away to begin his hunt for the purloiner of Stryker's handkerchief.

"You won't have to look far," Whiting said, when he heard the detective's story. "If you wanted one more thread in the

strand of the rope for young Landon's neck, that's it. Of course, he got the handkerchief some way, whether from the housekeeper or not. Go to it and find out how."

Indirectly and by bits, Avice learned of Groot's discoveries, and keeping her own counsel, she worked on a side line of her own devising.

As a result, one morning when she went to see Alvin Duane with, what she felt sure he must call real evidence, he was very much interested indeed.

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"I hunted and hunted all through my uncle's desk," she said, fairly quivering with excitement, "and at last I was rewarded by finding this. It was tucked away in a pigeon-hole, and is evidently unfinished."

She gave Mr. Duane a slip of paper with a few typewritten words on it. The paper was torn and a little soiled, but perfectly legible. "Should I ever be found dead by some alien hand," the paper read, "do not try to track down my murderer. I do not anticipate this event, but should it occur, it will be the work of John Hemingway. Do not search for him; he cannot be found. But his motive is a just one, and if——"

The writing ended abruptly, as if the writer had been interrupted and had never finished the tale.

"Who is John Hemingway?" asked Duane.

"I have no idea," said Avice; "I never heard uncle speak of him. But there can be no doubt of the authenticity, as this is the writing of my uncle's typewriter. I recognize the type."

"Show me where you found it, Miss Trowbridge," and going home with the girl, Duane examined the desk where she said she found the paper.

“I wonder it was overlooked so long,” he mused.

“No one has thought to go through the desk so thoroughly as I did,” she returned, with a wistful look in her eyes. “Will it save Kane?”

“It may go far toward it,” was the reply; “we must hunt up this man.”

“But my uncle says distinctly not to do that.”

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“Such instructions cannot be regarded. In a case like this, he must be found.”

But no trace of the man named Hemingway could be discovered. However, the fact of the message having been written turned the tide of suspicion away from Landon to a degree, and to the best men of the force was assigned the task of discovering the identity or getting some knowledge of Hemingway.

It was a few days later that Judge Hoyt had a caller at his office. A card was brought in, on which, in straggling letters, he read:

“Terence McGuire.”

“That Fibsy!” he said, smiling at the card. “Show him in.”

So in walked Fibsy, into the office of the great lawyer, with an air of self-respect if not self-assurance.

“Judge Hoyt,” he began, without greeting; “I want to talk to you.”

“Very well, Terence, talk ahead.”

“But I want you to listen to what I say, ’thout makin’ fun o’ me. Will you?”

“Yes, I promise you that. But, I must tell you, I am a busy man, and I can’t spare much time this morning.”

“I know it, Judge; I haven’t been with Mr. Trowbridge five years fer nothin’! I know all about business.”

“You know a lot, then.”

“I mean, I know how busy a boss is, an’ how he hates to see anybuddy, ’cept by appointment, an’ all that. Yes, I’ve kep’ up with the guv’nor’s ideas, an’ I’m not the fool I look!”

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Fibsy glanced up, as if surprised not to hear some humorous or sarcastic reply to this speech, but Judge Hoyt nodded, as if to a more self-evident observation.

“You see I’m aimin’ to be a big man, myself.”

“Ah, a lawyer?”

“No, sir; I’m goin’ to be a detective! I’ve got a notion to it an’ I’m goin’ to work at it till I succeed. But that’s what I came to see you about. You know this here Trowbridge murder case?”

“Yes, I know it.”

“Well, you know that feller Landon ain’t guilty.”

“Indeed, this is important information. Are you sure?”

“Now you’re makin’ fun o’ me. Well, I can’t blame you, I s’pose I am only a kid, and an ignerant one at that. But, Judge, I’ve found clues. I found ’em up on the ground, right near where they found the guv’nor’s body.”

“And what are your clues?”

“Well, when I told that Pinckney reporter about ’em, he snorted. Promise me you won’t do that, sir.”

“I promise not to snort,” said Hoyt, gravely. “Now, go ahead.”

“Well, sir, I found a button and a hunk o’ dirt.” It was with some little difficulty that the lawyer kept his promise. Though he might have used a more graceful term, he certainly felt like “snorting.” However, he only said, gravely, “What sort of a button?”

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“A suspender button,” said Fibsy. And immediately he observed to himself, “Gee! I wonder why I lied then! Guess I’m born that way.”

But for some reason, he did not correct his mis-statement, and say truly, that it was a shoe button.

“Yes,” said Hoyt; “and the mud? What was the interest of that?”

“Well, you see, sir, it had a mark in it.”

“What sort of a mark?”

“The print of a boot heel.” And again Fibsy communed with himself. “Done it again!” he observed, in silent soliloquy. “Well, when I lie, onexpected, like that, I’m always glad afterward!”

Surely, the boy was well named! He had gone to Mr. Hoyt, fully intending to tell him of his “clues” and he had falsified in both instances.

Judge Hoyt was as attentive and considerate in manner as if talking to an equal.

“I know Terence,” he said, “that in the detective stories you are doubtless fond of, the eagle eyed sleuth sees a footprint, and immediately described the villain at full length. But I have never yet seen a footprint that amounted to anything as

proof. Why, ninety-nine men out of a hundred would fit into the same footprint. Or, heelprint, I believe you said. Which, of course, would be even less distinctive.”

Fibsy looked at the speaker in genuine admiration. “That’s just true, sir!” he cried, eagerly. “The stories are full of footprints, but I’ve tracked out lots of ’em and I never found a good one yet.”

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“Just what do you mean by ‘tracked them out’?”

“Why, I’ve watched by chance of a rainy day, when lots of men track mud into the outer office, and afterward, I fit my own shoe to ’em an’ by jiminy, sir, it fits inter every bloomin’ track!”

Hoyt looked interested. “You have gone into the subject carefully, almost scientifically.”

“Well, I’ve read such rediklus tales of such things, I wanted to see for myself. You know, I’m goin’ to be a detective.”

“If you have such ingenious views, you may succeed. But what about the button?”

“Well, you see,” and Fibsy’s face grew blank, “you can’t tell much by a suspender button, ’cause they’re all alike. If it had been a coat button, now, or——”

The judge looked at the boy thoughtfully. “Terence,” he said, “I promised not to laugh at you, and I won’t. But I think it only fair to tell you that I can’t take much interest in your ‘clues.’ But your conversation has made me realize that you’re a bright boy. Knowing that, and as you were the office boy of my very good friend, I’d like to do something for you. Have you obtained a place yet?”

“No, sir, I haven’t.”

“Well, then, I’d like to help you to get a good position. And would that wipe out your disappointment that I can’t make use of your clues?”

“Yes, sir! I’d like to have a recommendation from you, sir.”

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“All right. Go away now and return this afternoon at three. I may have found a place for you by that time.”

Fibsy went away, thinking deeply. “Ain’t I the limit?” he inquired of himself. “Why in the dickens did I tell him those lies? It’s funny, but sometimes I ’spect to tell a straight yarn and sumpin inside o’ me jest ups an’ lies! But it didn’t make any difference this time fer he wouldn’t a’ cared if I’d told him it was a shoe button, or if I’d told him the truth about the hunk o’ dirt. An’ anyway, a detective has to be awful sicretive, an’ it don’t do to alwus tell the truth.”

At three the untruthful one returned for his news.

“Well, Terence,” was the greeting, “I’ve a good position for you in Philadelphia.”

Fibsy’s face fell. “I’d ruther be in New York.”

“Is that so. Well, you’re not obliged to take this place, but I should advise you to do so. It’s office boy to a first-class lawyer, and you should be able to pick up a lot of odds and ends of information that might be useful to you in your detective career.”

“Sounds good to me,” and Fibsy’s face cleared. “What’s the weekly number o’ bones?”

“You will receive ten dollars a week, if you make good.”

Fibsy almost fell over. “Gee! Mr. Hoyt, I ain’t worth it!”

“That’s for your new employer to judge. I’ve been telephoning him, and he wants a boy who is wide-awake and not stupid. You ought to fill that bill.”

“Yep, I can do that. Honest, Judge, I’ll do me best, and I’m orfly obliged, sir.”

“Not at all. Can you go this afternoon?”

“Today! Why, I s’pose I can. But it’s terrible sudden.”

“I know it. But Mr. Stetson wants to go away tomorrow, for a few days, and he wants to break you in before he leaves.”

“Yes, sir. Thank you, sir. But, oh, say, now,—I jest can’t go off so swift,—honest I can’t Judge, sir.”

“No? And why not?”

“Well, you see, I gotter get some clo’es. Yes, sir, some clo’es. And my sister, she alwus goes with me to buy ’em, an’ she can’t get a day off till tomorrow. An’ then, if the clo’es has to be let out, or let in, you know, why it’d take a little longer. Yes sir, I see now, I couldn’t get off ’fore the first of the week.”

“I’m not sure Mr. Stetson will hold the place for you as long as that.”

“Pshaw, now, ain’t that jest my luck! Can’t you pussuade him, Judge,—pussuade him, as it were?”

“I’ll try,” and smiling involuntarily, Judge Hoyt dismissed his caller.

“At it again!” said Fibsy, to himself, as he passed along the corridor. “Gee! what whoppers I did tell about them clo’es!”

CHAPTER XIV

TWO SUITORS

“Oh, of course, that settles it” Pinckney was saying to Avice, as he watched for her answering gleam of satisfaction at his words. She had been telling him about the Hemingway letter, and had said he might use it in his newspaper story.

Avice was disappointed that the police had not been entirely convinced by the note she found, and while they searched for the unknown Hemingway, they kept strict surveillance over Kane Landon and a wary eye on Stryker.

But Pinckney agreed with her, positively, that Hemingway was the murderer, and that it was in accordance with the dead man’s wishes that he should not be hunted down, consequently the matter ought to be dropped.

However, the young reporter had reached such a pitch of infatuation for the beautiful girl, that he would have agreed to any theory she might have advanced. He lived, nowadays, only to get interviews with her, and to sanction her plans and carry out her orders. They had evolved theories and discarded them time and again, and now, Avice declared, this was the absolute solution.

“Of course, Uncle Rowland looked forward to this fate,” she said, her face saddened at the thought, and, “Of course,” Pinckney echoed.

“Seems queer, though,” put in Landon, who was present, “that the note just cropped up. Where was it, Avice?”

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“In a pigeon-hole of uncle’s desk, stuffed in between a lot of old papers,—bills and things.”

“A fine search the police put up, not to find it sooner!”

“But it doesn’t matter, Kane, since I came across it,” and Avice smiled at him. “You must admit that the mystery is solved, even if we don’t know who Hemingway is, and are asked not to find out.”

“Oh, it’s as good a solution as any,” Landon said, indifferently; “but I don’t take much stock in it, and Pinck doesn’t either. Do you, old chap?”

“I see no reason to doubt that the probabilities point to the man mentioned in the note,” Pinckney returned, a little stiffly. He was horribly jealous of Landon, and though not sure that Avice cared for him, he feared that she did. Kane Landon was a handsome fellow, and had, too, as Pinckney noted with concern, that devil-may-care air that is so taking with women. It was Landon’s fad never to discuss anything seriously, and he scoffed at all theories and all facts put forth by Pinckney in his amateur detective work.

Moreover, Pinckney, who was not at all thick-skinned, couldn’t help observing how Avice’s interest in him flagged when Landon was present. Alone with the girl, the reporter could entertain and amuse her, but let Landon appear, and her attention was all for him.

So Pinckney reluctantly went away, knowing he would only be made miserable if he remained longer.

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“What makes you act so about that note?” demanded Avice of Landon, after Pinckney left.

“Act how?”

“As if it were of no account. Why, Kane, if uncle wrote that, he must have known how he would meet his death.”

“Yes—, *if* he wrote it?”

“What do you mean?” Avice looked startled. “Can you have any doubt that he wrote it? Why, I know his typewriter letters as well as I know his handwriting.”

“Do you?” and Landon smiled quizzically. “Avice, you are very beautiful this morning.”

“Is that so unusual as to require comment?” The smile she flashed at him was charming.

“It isn’t unusual, but it does require comment. Oh, Avice, I wish I could kidnap you and carry you off, away from all this horrid mess of police and detectives and suspicion.”

“Would we take Eleanor Black with us?” The brown eyes looked straight at him, challenging him to declare himself for or against the one Avice felt to be a rival.

“If you like,” and Landon smiled teasingly at her. “Go on, Avice, fly in a rage, I love to see you angry.”

“’Deed I won’t! I’ve nothing to rage about. If you admire Eleanor, I can only say I admire your taste. She is certainly beautiful.”

“Bravo! Good for you, little girl! Now, just for that I’ll tell you that in my opinion she can’t hold a candle to you for beauty.”

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“Your compliments are so subtle, Kane! I suppose that’s due to your western training.”

“And your sarcasm is that known as the withering variety. Oh, Avice, don’t let’s fence. You *are* beautiful, and you are very dear to me. If I weren’t—if they didn’t—oh, pshaw! if I were free of all suspicion in this horrid matter, would you,—could you——”

“Kane,” she said, looking at him seriously; “you didn’t do it, did you?”

“I will not tell you.”

“That can mean either of two things; one, which I hope, that you are innocent, and so, resent my question; the other, which I fear, that you are——”

“Guilty,” supplemented Kane.

“Yes; oh, Kane, why won’t you tell me?”

“Would you care? Avice, would you really care whether I’m guilty or not?”

The girl looked up at him, a sudden light in her big, dark eyes; “Oh, yes, Kane, I do care.”

“Do you mean it, Avice? My little girl, do you mean it!”

Impulsively, Landon took her hand, and drew her to him, looking deep into her eyes.

“Sweetheart,” he murmured, and there was a thrill in his voice Avice had never heard there before, “I will clear myself of these awful matters, and then I can ask you——”

“But, Kane, you know the note from John Hemingway——”

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“Bother John Hemingway! Avice, do you take me for a fool?”

Landon crushed her to him in a desperate embrace, and then held her off and looked at her with a strange expression on his face.

“Dear heart!” he said, and gently kissing her downcast, frightened eyes he went swiftly from the room.

Going to the window, Avice watched him stride down the street. His swinging walk was a splendid thing in itself, and the girl felt a thrill of pride in the strong, well-proportioned figure, so full of life and energy.

“But I can’t understand him,” she thought, “he acts so queer every time he talks about Uncle’s death. And then, he pretends to love me,—and he’s all mixed up with Eleanor,—I wish I could get up courage to ask him about her,—but I’m—oh, I’m not really afraid of Kane—but,—well, he is *strong*,—every way.”

She sank into a chair and gave herself up to day dreams.

“A bright, new, Lincoln penny for your thoughts,” said a deep voice, and Avice looked up to see Judge Hoyt smiling down at her.

For the first time in her life, she felt an aversion to him. She knew she was not in love with her elderly suitor, but always she had felt great friendship and esteem for him. Now, the esteem was still there, but the remembrance of Landon’s caress so recent, she experienced a shrinking from the passion she could not fail to read in the eyes now bent upon her.

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Leslie Hoyt was a man whose physical presence dominated any group of which he was a member. Towering some inches above most of his fellow men, his fine head was carried proudly and with an air of aristocracy that gave him especial prestige. Few had ever seen his grave, scholarly face aglow with emotion of any sort, but Avice knew well the light that

love kindled in those deep, dark eyes, and though not entirely responding to it, she had gratefully appreciated it, and had tacitly accepted her uncle's plan that she should marry the judge. But that was during her uncle's lifetime, and before Kane Landon had come home from the West.

In a swift mental picture, Avice contrasted the two men. Landon, too, was tall and big and strong. Hoyt was far superior in manner, and in that indefinable effect given by cultured associations. Landon had the advantage of youth and the careless grace of that lack of self-consciousness, so often the result of western life. The self-possession of both men was complete, but Landon's was somewhat that of bravado and Hoyt's that of experience.

Without detailing these thoughts to herself, Avice was quite aware of them and of their value, and she knew that she was going to choose between two of the finest specimens of men she had ever seen.

"I'm thinking about Kane Landon," she said in answer to the remark of her new visitor. Avice was naturally mischievous, and well knew the effect of her aggravating speeches.

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The kindly look in Judge Hoyt's eyes gave way to an ironic gleam, as he said "Then I offered you full value, I think."

"That's so clever that I forgive its mean spirit," and Avice smiled at him. "Yes, my thoughts were penny-wise, which is far better than if they had been pound-foolish."

"Think pound-foolish ones of me—"

"Of you! Why, Leslie, I can't connect you and foolishness in my mind!"

"I'm foolishly in love with you, I know that! What is there about you, Avice, that makes me lose my head entirely the

moment I see you?”

“Do you really? It seems incredible! I’d like to see dignified Judge Hoyt in that state commonly described as having lost his head!”

“Would you?” and a dangerous fire blazed in Hoyt’s eyes as he took a step nearer to her.

“No, no!” cried Avice, really alarmed, “not now. I mean some other time.”

“There’ll be times enough. You’ll have to spend the rest of your life getting used to seeing me headless. But Avice, I came to talk to you about that Hemingway note.”

“Yes, do. Will it clear Kane?”

“Why?” said the lawyer, a sudden anger coming into his eyes. “Do you love him?”

Avice looked at him. “Yes,” she said simply.

“Then he shall not be cleared!” and Hoyt’s voice was full of deep hatred. “Do you know it rests with me to free him from suspicion or not! Do you know that I hold his life in my hands?”

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Avice looked at him in horror. “Do you mean,” she cried “that you would let him be suspected, knowing he is innocent?”

“On the contrary,” and Hoyt looked at her meaningly, “I know the only hope of freedom Landon has, is that letter found in your uncle’s desk. And I know,—” he paused.

“You know what?” said Avice, grasping a chair for support, as she felt herself giving away.

“I know who wrote that letter.”

“What do you mean?”

“You know what I mean. You wrote that letter yourself. Oh, it was a fine scheme to save a guilty man, but it didn’t deceive me.”

“How do you know?”

“I know because I am familiar with all your uncle’s papers and business matters. I know, because it is not written on a style of paper that he ever used. Because it is not in his style of diction. Because, moreover, you ‘discovered’ it, just after you were told that only another suspect could save Kane Landon. And you concluded to invent that other suspect! Oh, it was clever, my girl, but it didn’t deceive me! Now, why did you do it? Because you love that man?”

Avice stood up straight and faced him. “Yes,” she cried, while her eyes shone. “Yes, that was the reason. I know he is innocent, both you and Mr. Duane declared he would not be thought so, unless there was another suspect. So I *did* resort to that ruse, and I’m glad of it. It does no wrong. The man it accuses is only imaginary, and if it saves the life of an innocent man it is a justifiable deception.”

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“And do you suppose I will be a party to it? Do you suppose for a minute that I will stand up for a man, knowing that my attitude is based on a falsehood?”

“Not if it is a harmless, justifiable falsehood? Not if I ask you to do it?”

“Avice, don’t tempt me. What is this man to you? You have known me for years, and along comes this stranger, and you turn to him. I won’t have it!”

“Don’t talk like that, Leslie. He doesn’t really care for me. He is in love with Mrs. Black. But she can’t save him from an

awful fate, and I can, yes, and I have, if you don't interfere with my plans. And you won't, will you?"

Avice looked very coaxing and sweet, as she urged her plea, and Leslie Hoyt caught her in his arms. "I'll do it," he said, in a whisper, "if you'll marry me at once."

"Oh, I can't!" and Avice shrank away from him with a gesture of aversion. "Don't ask me that now! Wait till this awful ordeal is over."

"That's just it, Avice. I'm in earnest. Promise to marry me and I'll get Landon cleared of all suspicion whether he is guilty or not."

"Is that your price?"

“Yes, and the only condition on which I will keep your secret! Do you know I shall have to perjure myself? Do you know that I will do that only to gain you? What is your answer? Tell me, Avice, my beautiful darling? Oh, I love you so!”

“Leslie, you frighten me. I don’t love you. I have told you I love Kane. But he must never know it. He is infatuated with Eleanor Black, and I shall in no way hamper his happiness. But, I don’t want to marry anybody.”

“You’ll marry me, or that precious adoration of yours will pay the full penalty of his crime. And, too, Avice, remember your uncle’s will. Do you want to throw away a million to escape a union with me? I’ll be very good to you, dear. You shall have your own way in everything.”

“Do you want me to marry for money’s sake?”

“Yes; if you won’t marry me for my own.”

“Are you sure you can save Kane?”

“My skill is small else. With that letter that you *forged*, to work on, I ought to be able to manage it.”

“And otherwise,—”

“Otherwise, prepare yourself for the worst.” Hoyt spoke seriously, even solemnly, and Avice knew he meant every word he said. With a sob in her throat, she turned to him and held out her hand.

“So be it, then,” she said, and her voice was as sad as a funeral chime. “But always remember that I warned you I don’t love you.”

“I’ll make you love me!” and Hoyt’s voice rang out exultantly.

CHAPTER XV

THE TRAP THAT WAS SET

When, in his conversation with Judge Hoyt, Terence McGuire stated that his wardrobe purchases were made under the guidance and jurisdiction of his sister, he was creating a fabrication of purest ray serene. For, in this sorry scheme of things, no sister had been allotted to Fibsy, nor, until that moment, had he ever felt need of one. So, the need arising, a sister easily sprang, full fledged, from the red head of the well-named inventor.

Fibsy, likewise was unprovided with parents, and lived with a doting aunt. This relative, a knobby-coiffured spinster, was of the firmly grounded opinion that the orb of day has its rising and setting in her prodigy of a nephew. That he was not a bigoted stickler for the truth, bothered her not at all, for Fibsy never told his aunt lies, at least none that could possibly matter to her.

Now, being temporarily out of a business position, and not minded to go at once to Philadelphia, Fibsy was giving Aunt Becky the ecstatic bliss of having him at home for a time.

He was mostly absorbed in thoughts and plans of his own, but when she saw him, hands in pockets, sprawled bias on a chair, she forbore to bother him; and, like Charlotte, went on cutting bread and butter, to which she added various and savory dishes for her pet's demolition.

Nor were her efforts unappreciated.

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“Gee! Aunt Beck, but this is the scream of a strawberry shortcake!” would be her well-earned reward. “You sure do beat the hull would fer cookin’!”

And Aunt Becky would beam and begin at once to plan for supper.

“There’s no use talkin’” said Fibsy, to himself, as he writhed and twisted around in the dilapidated rocker that graced his sleeping-room; “that milk bottle, with the old druggy stuff in it, means sumpum. Here I’ve mumbled over that fer weeks an’ ain’t got nowhere yet. But I got a norful hunch that it’s got a lot to do with our moider. An’ I’ve simply gotto dig out what!”

Scowling fearfully, he racked his brain, but got no answer to his own questions. Then he turned his thoughts again to Miss Wilkinson’s strange account of that queer telephone message. “That’s the penny in the slot!” he declared. “I jest know that rubbish she reels off so slick, is the key clue, as they call it. Me for Wilky, onct again.”

Grabbing his hat he went to interview the stenographer. She too, had not yet taken another place, though she had one in view.

Obligingly she parroted over to Fibsy the lingo of the message.

“Did the guy say he’d *give* the Stephanotis to Mr. Trowbridge, or they’d *get* it?” he demanded, his blue eyes staring with deep thought.

“W’y, lemme see. I guess he said,—oh, yes, I remember, he said, I guess we’ll *find* some Stephanotis—”

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“Oh, did he? Are you sure?”

“Pretty sure. What dif, anyhow?”

But Fibsy didn’t wait to answer. He ran off and went straight to the Trowbridge house.

“Miss Avice,” he said, when he saw her, “Please kin I look at Mr. Trowbridge’s c’lection, if I won’t touch nothin’? Oh, please do lemme, won’t you?”

“Yes, if you promise to touch nothing,” and Avice led the way to the room, with its glass cases and cabinets of shallow drawers that held the stuffed birds and mounted insects so carefully arranged by the naturalist.

Rapidly Fibsy scanned the various specimens. Eagerly he scrutinized the labels affixed to them. Oblivious to the amused girl who watched him, he darted from case to case, now and then nodding his shock of red hair, or blinking his round blue eyes.

After a time, he stood for a moment in deep thought, then with a little funny motion, meant for a bow, he said, abstractedly, “Goo’ by, Lady. Fergive me fer botherin—” and rapidly descending the stairs he ran outdoors, and up the Avenue.

Half an hour later, he was at the door of a large college building, begging to be allowed to see Professor Meredith.

“Who are you?” asked the attendant.

“Nobody much,” returned Fibsy, honestly. “But me business is important. Wontcha tell Mr.—here, I’ll write it, it’s sorta secret—” and taking a neat pad and pencil from his pocket, the boy wrote, “Concerning the Trowbridge murder,” and folded it small.

“Give him that,” he said, with a quiet dignity, “and don’t look inside.”

Then he waited, and after a moment was given audience with the Professor of Natural History.

“You wished to see me?” said the kindly voice of a kind-faced man, and Fibsy looked at him appraisingly.

“Yessir. Most important. And please, if you don’t want to tell me what I ask, don’t laugh at me, will you?”

“No, my lad, I rarely laugh at anything.”

The serious face of the speaker bore out this assertion, and Fibsy plunged at once into his subject.

“Is there a bug, sir, named something like Stephanotis?”

“Well, my child, there is the Scaphinotus. Do you mean that?”

“Oh, I guess I do! I think maybe, perhaps, most likely, that’s the trick! What sort of a bug is it?”

“It’s a beetle, a purplish black ground-beetle, of the genus Carabidæ,——”

“What! Say that again—please!”

“Carabidæ?”

“Caribbean Sea! Stephanotis!”

“No, Scaphinotus. That is, the Scaphinotus Viduus, Dejean, ——”

“Oh, sir, thank you.”

“Did you say this has something to do with the Trowbridge case? Mr. Trowbridge was a friend of mine,—”

“Oh, please sir, I don’t know but I think this here beetle business will help a lot. Do these pertikler bugs show up in Van Cortlandt Park woods?”

“Yes, they may be found there. I’ve set traps there for them myself—”

“How do you set a trap for a beetle, kin I ask?”

“Why, you’re really interested, aren’t you? Well it’s a simple matter. We take a wide-mouthed bottle,——”

“Say, a milk bottle?”

“Yes, if you like. Then put it about a half-inch of molasses and asafoetida——”

A whoop from Fibsy startled the Professor. “What’s the matter?” he cried.

“Matter, Sir! Didn’t you read the accounts of the Trowbridge murder in the papers?”

“Not all of it. I get little time to read the papers,——”

“Well, then, this here bottle o’ stuff—does it smell bad?”

“Oh, the asafoetida is unpleasant, of course, but we get used to that. We next sink this bottle in the ground, up to its neck, and——”

“And you call it a trap!”

“Yes, a trap to catch unwary insects. Not very kind to them, but necessary for the advancement of science. You seem a

bright lad, would you care to see some fine specimens of
_____”

“Oh, sir, not now, but some other day. Oh, thank you fer this spiel about the bugs! But who was the guy what did it? *You* didn’t telephone Mr. Trowbridge to go after Stephanotises, did you?”

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“Scaphinotus, the name is. No, I didn’t telephone him. I haven’t seen Mr. Trowbridge for years.”

“Oh, yes, I remember, you an’ him was on the outs. Well, I’m much obliged, I sure am! Goo’ by, Sir.” and with his usual abruptness of departure, Fibsy darted out of the door, leaving the Professor bewildered at the whole episode.

Back to Miss Wilkinson the boy hurried, to verify his new discoveries.

“Say, Yellowtop,” he began, “did you sure hear Caribbean *Sea*?”

“Yep, fer the thoity thousandth time,—yep!”

“Sure of the Sea?”

Miss Wilkinson stared at him. “Gee, Fibsy, you are a wiz, fer sure! I was a thinkin’ that the guy jest said Caribbean, but I knew he musta meant Sea, so I ’sposed I skipped that woid.”

“Naw, he didn’t say it. Wot he said wuz, Carabidæ.”

“It was! I know it now! What’s that mean?”

“Never mind. What d’you mean, sayin’ the feller said things he didn’t say at all? He said Scaphinotus too, not Stephanotis.”

“I can’t tell any difference when you say ’em.”

“Never mind, you don’t have to. Now, turn that thinker of yourn backward, and remember hard. Don’t it seem to you like the guy said somebody’d set a trap, no matter who, and that he and Mr. Trowbridge’d get the Stephanotis and the Carib—whatever it was,—outen the trap?”

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“Yes, it does seem like he said that, only that ain’t sense.”

“Never you mind the sense. I’m lookin’ after that end. An’ then, wasn’t Mr. Trowbridge tickled to death to go an’ get these queer things from the trap?”

“Yes, said he had a nengagement, but he’d break it to get the Stephanotis—”

“Sure he would! In a minute! All right, Wilky. You keep all this under your Yellowtop; don’t squeak it to a soul. Goo’ by.”

“Sumpum told me not to go off to Philadelphia so swift,” the boy mused, as he went home. “Now, here I am chock-a-block with new dope on this murder case, an’ I dunno what to do with it. If I tell the police first, maybe Miss Avice won’t like it. And if I tell Judge Hoyt first, maybe the police’ll get mad. There’s that Duane guy, but he don’t know enough to go in when it rains. I wisht I was a real detective. Here I am just a kid, an’ yet I got a lot o’ inside info that orta be put to use. Lemmesee, who do I want to favor most? Miss Avice, o’course. But sure’s I go to her, that Pinckney feller’ll butt in, an’ he does get my goat! I b’lieve I’ll do the right thing, an’ take it straight to the strong arm o’ th’ law.”

Fibsy went to the Criminal Court Building, and by dint of wheedling, fighting, coaxing and, it must be admitted, lying, he at last obtained access to the district attorney’s office, for the boy declined to entrust his secrets to any intermediary.

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Judge Hoyt was there and Detective Groot. Also Mr. Duane, looking a bit despairing, and several others, all discussing the

Trowbridge case.

Fibsy was a little frightened, not at the size of his audience, but because he was not sure he wanted all those present to know of his news. And yet, after all, it might not prove of such great importance as he expected. He had misgivings on that score, as well as on many others.

But Mr. Whiting, though he greeted the boy with a nod, was in no hurry to listen to him, and Fibsy was given a chair and told to wait. Nothing loath, he sat down and pretended to be oblivious to all that was being said, though really he was taking in every thing he could hear.

At last the district attorney, in a preoccupied way told him to tell his story, and to make it as brief as he could.

But when the boy began by simply stating that he had discovered what was the meaning of the mysterious telephone message and also what relation the milk bottle bore to the trip to the woods, all eyes and ears gave him attention.

Knowing the importance of the occasion and anxious to make a good impression, Fibsy strove to make his language conform, as far as he could, to the English spoken by his present audience.

“So I asked Perfesser Meredith,” he related, “and he told me there is a beetle named Scaphinotus, and it’s of the Carabidæ fambly.”

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He had obtained these names in writing from the Professor, and had learned them, unforgettably, by heart.

“What!” exclaimed Whiting, more amazed at this speech from the boy, than its bearing on the matter in hand.

“Yessir; an’ I says to myself, ‘that’s the meanin’ of Wilky’s puffumery dope and Caribbean Sea.” In his excitement, Fibsy forgot his intended elegance of diction.

“But the girl said she overheard *Sea*,” said Judge Hoyt, looking in amazement at the boy.

“Yessir, I know. I read that in my Pus-shol-ogy book. It says that what you expect to hear, you hear. That is, Wilky heard Caribbean, as she thought, an’ she natchelly spected to hear Sea next, so she honest thought she did!”

“That is psychological reasoning,” said Whiting. “It’s Münsterberg’s theories applied to detection. I’ve read it. And it’s true, doubtless, that the girl thought she heard Caribbean, expected to hear Sea next, and assumed she did hear it.”

“Yessir,” cried Fibsy, eagerly; “that’s the guy, Musterberg,—or whatever his name is. I’m studyin’ him, ’cause I’m goin’ to be a detective.”

“Now, let us see how this new angle of vision affects our outlook,” said Judge Hoyt, ignoring the boy, and turning to the district attorney.

“It gives us a fresh start,” said Whiting, musingly. “And here’s my first thought. Whoever telephoned that message, not only knew of Mr. Trowbridge’s interest in rare beetles, but knew the scientific names for them.”

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“Right,” agreed Hoyt, “and doesn’t that imply that we must start afresh for a suspect? For, surely, neither Stryker the butler, nor Mr. Landon would have those names so glibly on his tongue.”

“Also, it was somebody who knew how to set the trap,—the milk-bottle trap. Terence, my boy, you did a big thing, this morning. How did you come to think it out?”

“I thought such a long time, sir.” Fibsy’s manner was earnest and not at all conceited. “I thought of every thing I could find in me bean to explain those crazy words that Wilky,—Miss Wilkinson said she heard. An’ I knew the goil well enough to know she heard jest about what she said she did, an’ so, I says to myself, there *must* be some meanin’ to ’em. An’ at last, I doped it out they must have sumpum to do with Mr. Trowbridge’s bug c’lection. He’d go anywhare or do anythin’ fer a new bug or boid. So I went an’ asked Miss Avice to let me give the c’lection the once-over. An’ she did, an’ then I saw a name sumpum like Wilky’s Stephanotis, an’ I was jest sure I was on the right track. So I ups an’ goes to see Perfesser Mer’dith,—an’ there you are!”

Fibsy’s face glowed, not with vanity, but with honest pride in his own achievement.

The boy was sent away, with an assurance that his assistance would be duly recognized at some other time, but that now he was in the way.

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Not at all offended, he took his hat, and with his funny apology for a bow he left the room.

“Looks bad,” said Groot.

“For whom?” asked Whiting.

“Landon, of course. He knows all that scientific jargon. He’s a college man,——”

“He never was graduated,” said Judge Hoyt.

“No matter; he gathered up enough Latin words to know names and things. Or he looked them up on purpose. Then he set the milk bottle trap,—what happens? Do the things crawl in?”

“Yes,” said Hoyt. “Attracted by the odor of the drug, and the molasses, they crawl to the edge, tumble in, and can’t get out.”

“H’m, well, Landon knows all this, and he sets the trap and baits his uncle as well as the beetles. He tempts him with a promise of this Stephanotis bug, and off goes uncle, willingly. Then Landon meets him there, or goes with him,—it’s all one,—and he stabs him, and Mr. Trowbridge lives long enough, thank goodness,—to say Kane killed me! You can’t get away from that speech, Mr. Whiting. If there hadn’t been any suspect named Kane, we might say Mr. Trowbridge meant Cain,—any murderer. But with the only real suspect bearing that very name, it’s too absurd to look any further. Then the murderer having thoughtfully provided himself with a handkerchief belonging to the next possible suspect, wipes the bloody blade on that and throws it where it’ll be found. Could anything be clearer? Who wants money right away? Who has just quarreled with the victim? Who is impudent and insolent when questioned about it? Who is now enjoying his ill-gotten gains, and has already used a lot of money for the purpose he told his uncle about that first day he saw him? Answer all those questions, and then doubt, if you can, who murdered Rowland Trowbridge!”

Groot spoke quietly, but forcibly, and all present realized there was no answer save the one he indicated.

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Judge Hoyt looked aghast. “It’s incredible!” he exclaimed. “Kane Landon——”

“You mean any other theory or suspicion is incredible, Judge,” said Whiting. “I have thought this was the only solution for some time. I have had a strict watch kept on Landon’s movements, and he has spent that money, as Groot says. In every way he seems guilty of this crime and I say the time has come to arrest him.”

And so Kane Landon was arrested for the murder of his uncle,
Rowland Trowbridge, and was taken to The Tombs.

CHAPTER XVI

A PROMISE

Of the General Public, there were few who doubted Landon's guilt. When no other explanation offered, it was plausible think that the dying man referred to his murderer as Cain. But when a man named Kane was shown to have motive and opportunity, when also, he was a bold and even impudent westerner, who could doubt that he was the murderer the victim meant to denounce?

Yet, some argued, ought he not to have the benefit of the doubt? Though he had an apparent motive, though he confessed to being in the vicinity at or near the time of the murder, that was not actual proof.

And, all the time, Kane Landon, in jail, was seemingly unconcerned as to what people thought of him, and apparently in no way afraid of the doom that menaced him.

Again and again the district attorney talked with Landon.

At first non-committal, Landon later denied the crime.

"Of course, I didn't do it!" he declared; "I had quarreled with my uncle, I've quarreled with other people, but I don't invariably kill them!"

"But you were in the same woods at the time of the crime."

"I was; but that doesn't prove anything."

“Mr. Landon, I believe you are depending on our lack of proof to be acquitted of this charge.”

“I am,” and Landon’s tone was almost flippant; “what else have I to depend on? You won’t take my word.”

“If you want to be acquitted, it will take a pretty smart lawyer to do it.”

“What do you want me to do, confess?”

“I think you’ll be indicted, anyway. Perhaps you may as well confess.”

With this cheering reflection, Whiting left him.

Avice Trowbridge, instead of being prostrated at the news of Landon’s arrest, was furiously angry.

“I never heard of such injustice!” she exclaimed to Judge Hoyt, who told her about it. “It’s outrageous! Kane never did it in the world. You know that, don’t you, Leslie?”

“I wish I were sure of it, dear. But it looks dark against him just now. Still, there’s little real proof,——”

“There isn’t any! There can’t be any! I know he is innocent. I may have had a shadow of doubt before, but I am sure now. Kane never did it!”

“But, Avice, your assertions and reiterations wouldn’t carry any weight with a jury. It needs more than a woman’s opinion of a man to prove the truth.”

“Then I shall get what it does need, but the truth must be proved. And you will help me, won’t you, Leslie? You promised, you know.”

“Yes, and what did you promise me in return? Announce our engagement, Avice, wear my ring, set a day to marry me, and I swear I will get Landon free, no matter what the truth may be.”

“You are contemptible!” and Avice gave him a look of utter scorn.

“I know it. I acknowledge it. But it is my love and devotion to your own dear self that makes me so. Can’t you understand,—no, no,—you can’t. No woman could guess what it means to a hitherto honorable man to resolve to commit perjury,—to swear to a lie,—but the prize is worth it! For you, my beauty, my idol, I would do anything! And I can do it safely; I shall never be found out, for my reputation is too unsullied and too far above reproach for me even to be suspected. I will exploit that letter you so cleverly wrote, and however they may doubt its integrity, they can’t prove that Mr. Trowbridge didn’t write it.”

“Kane doesn’t believe Uncle Rowly wrote it.”

“Did he say so?”

“Not exactly; but he implied it.”

“Don’t you see why, dear? Landon, being guilty himself, knew the note was forged, and of course, he knew only you would do it.”

“Oh, I never thought of that! Do you think it helps to prove Kane guilty?”

“Of course, and so do you, but you don’t want to admit it. But you know it, Avice, in your heart,—so how *can* you keep on loving him?”

“I don’t know how I can—” and Avice looked awed at her own thoughts. “But never mind that now. You have promised—oh, Leslie,—do you think it was that little Fibsy boy’s getting that information about the Scaphinotus and the trap-bottle from Professor Meredith, that made them arrest Kane?”

“It helped mightily, Avice. That boy came to see me, and he told me of some clues he had picked up in the woods. But they sounded pretty rubbishy, I thought, and I paid no attention to them. I did offer, though, to get him a position, and I found one for him with a man I know in Philadelphia. It’s a good place, and he ought to do well there.”

“I think you were awfully good to him,” Avice said, with glowing eyes. “I have a sort of liking for the boy, and Uncle was really fond of him.”

“I gave him a talking to about telling stories. But he didn’t seem much impressed. I fear he is incorrigible.”

“Leslie,” and Avice looked him straight in the eyes; “tell me the truth yourself! Why did you do that for Fibsy? You had some reason of your own!”

Hoyt started; “Why Avice, you’re clairvoyant! Well, since you ask, I will tell you. The boy is clever in a detective way. And he might stumble on some clue that would—that would—”

“Oh, I know! That would implicate Kane!”

“Yes; and so you see, dear, it is better to get him out of the way before he makes any trouble for us.”

“Were his clues, as he calls them, of any importance?”

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“Probably not; but the boy is unusually, almost abnormally shrewd, and we can’t afford to take chances. I didn’t care to

look at his buttons and foot prints, for I thought it better to remain in ignorance of their significance, if they have any.”

“Oh, Leslie, isn’t it awful? I never deliberately committed an act of deception before.”

“Why are you so sure that Landon is innocent?”

Avice’s eyes fell. “I’m not,” she said in a low tone. “But I want him cleared, anyway.”

“I wished you loved me like that!”

“I wish I did! But I don’t and never shall.”

“But I shall have you, darling and I’ll make you so happy you can’t help loving me. Avice, my only excuse for taking you this way, is my positive conviction that I can make you happy.”

“But you haven’t freed Kane yet—”

“He isn’t indicted yet, dear. Perhaps he never will be. Not if I can prevent it. But his freedom, sooner or later, will mean our marriage, so I shall accomplish it, somehow. With the boy out of the way, I ought to manage it. But that little chap is so shrewd, he might even see through that note you made up. You know he has an eye for details, and the paper is different from the sort your uncle used and McGuire might easily notice that. And if the least question were raised about that note’s genuineness, I fear it would go hard with us.”

“How clever, Leslie, to think of these things.”

“And you do love me a little, don’t you, my girl?”

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“I like you a whole lot, but—”

“Never mind the but—stop there. I’ll make you *love* me yet, and if doing this thing for you will help, I’ll willingly do it. Since I’m not incriminating an innocent man, I’m willing to let a guilty one go free. But Avice, if some guiltless person should be suspected,—I couldn’t then keep back the truth.”

“That’s why I want John Hemingway suspected. Then there is no danger of accusing an innocent person. If the police really think it was a man named Hemingway, they can’t do anything to Kane, but free him.”

“We’ll see,” and Judge Hoyt sighed. It was not an easy task he had undertaken, to fasten suspicion on a mythical character, but he would carry it through, if possible, because of the reward that was to be his. To do him justice, he didn’t think Avice was deeply in love with Landon, but rather, that her sympathies had been aroused by the man’s tragic position and perhaps by the injustice of his sudden and unexpected arrest.

And he fully believed that Landon, once freed, would turn to Mrs. Black and not to Avice. The judge felt that these two had known each other well and long before their recent meeting at the Trowbridge home, and that they were only biding their time to renew their relations, whatever they were or had been.

Judge Hoyt and Avice went together to the Tombs to see Landon. The application of Hoyt for permission was readily granted and the prisoner was brought to see them in the warden’s room.

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Landon was in an aggravating mood. He was indifferent, almost jaunty in his demeanor, and Avice was really annoyed at him.

“Kane,” she said, earnestly, “I don’t know why you assume this light air, but it must be assumed. It can’t be your real feelings. Now, Judge Hoyt is willing to help you,—to help us. If you are indicted—”

“Nonsense! The Grand Jury’ll never indict me.”

“Why do you think they won’t?”

“Because they can’t get sufficient evidence.”

“Oh, Kane, why didn’t you say because you are innocent? You are,—aren’t you?”

Landon looked at her. “What do you think?” he said, in a voice devoid of any expression whatever.

Avice looked away. “I don’t know what to think! I am telling you the truth, Kane. I cannot decide whether I think you guilty or not—I don’t know.”

“And you’ll never learn,—from me!”

“Kane! What do you mean by such an attitude toward me?”

“Yes, Mr. Landon,” broke in Judge Hoyt, unable longer to control his indignation, “What do you mean?”

“Nothing at all,” replied Kane, coolly; “and by the way, Judge, I’m advised by our worthy district attorney that I would do well to get a competent lawyer to run this affair for me. Will you take it up?”

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“Are you sure you want me?”

“Naturally, or I shouldn’t have asked you.”

“Why do you hesitate, Leslie?” said Avice, her troubled eyes looking from one man to the other.

“Shall I be frank?” began Hoyt, slowly.

“It isn’t necessary,” said Landon; “I know what you mean. You think it will be a hard matter, if not an impossible one, to

clear me.”

“I don’t mean quite that,” and Hoyt’s fine face clouded. “Yes, Landon, I’ll take the case, if you desire it.”

And so Kane Landon had a clever, shrewd and capable lawyer to defend him. Avice had great faith in Leslie Hoyt’s genius, though she had feared the two men were not very friendly.

She took occasion later, on the way home, to thank Hoyt for his willingness in the matter.

“I’m sure you’ll get him off,” she said, hopefully.

Hoyt looked grave. “You’re mistaken, Avice; I can’t get him off.”

“What! You mean he’ll be convicted!”

“How can he help but be? I can’t perform miracles. But I might make a more desperate effort than a stranger. That’s all I can promise.”

“Even when you remember what I have promised you?”

“Oh, my love, when I think of that, I feel that I *can* perform miracles. Yes, I’ll succeed somehow. Landon shall be freed, and I shall put all my powers to the work of making his freeing a jubilant triumph for him.”

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Avice went home aghast at what she had done. She had forged a document, she had persuaded Hoyt to perjure himself, and worst of all, she had promised to marry a man she did not love.

She had friendly feelings for her *fiancé*, but no impulse of love stirred her heart for him. Indeed, it was while she was talking with him, that she realized that she really loved Kane Landon. As she thought it all over, she knew that she had

loved Landon without being aware of it, and that it was Hoyt's appeal that had shown her the truth. Yes, that was why she had forged that letter, because Kane's safety was more to her than her own honesty! And all this for a man who did not love her! It was shocking, it was unmaidenly,—but it was true.

She would save the man she loved, and then, if there was no escape she would marry Hoyt. Her debt to him must be paid, and she had given her promise. Well, she would not flinch. Once let Kane be freed of all suspicion of crime, and then she would pay her penalty.

She remembered a quotation. "All for love and the world well lost." That was her heart's cry.

But from these moments of exaltation and self-justification, Avice would fall into depths of self-reproach, and black despair.

At times she could scarcely believe she had done the awful thing she had done, and then the remembrance of *why* she had done it returned, and again she forgave herself.

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The next time Hoyt called, he looked very grave.

"Avice," he said, "Avice, dear, I don't see how I can carry that matter through. I mean about the forged note. It is sure to be found out, and then where would I be?"

"Very well," said the girl, coldly, "then our engagement is broken. That is the one condition, that you free Kane. And you said you couldn't do that without using the note."

"But I can try other ways. I can try to get him off because of lack of evidence."

“Do just as you choose, Leslie. If you free him by any means whatever, I will keep my promise and marry you, but not otherwise.”

“Avice! when you look like that, I *can't* give you up! You beautiful girl! You *shall* be mine! I'll stop at nothing to win you. I would do anything for you, Avice, *anything*! Do you understand?”

Impulsively, he took her in his arms. But she cried out, “No, Leslie, you shall not kiss me, until you have freed Kane!”

“Girl!” he cried, and clasped her roughly, “do you know how you make me feel when you insist it is all for his sake?”

“But it *is*! I have made no attempt to deceive you as to that.”

“Indeed you haven't. But aren't you ashamed to love a man who cares for another woman?”

A dear, serene light shone in Avice's eyes. “No!” she said, “No! You don't know what a woman's pure love is. I ask no return, I sacrifice my heart and soul for him, because I love him. He will never know what I have done for him. But he will be free!”

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“Free to marry Eleanor Black!”

“Yes, if he chooses. She is not a bad woman. She is mercenary, she never loved my uncle, and was only marrying him for his money. She is in love with Kane. I can read her like a book. And though she is older, she is congenial to him in many ways, and I hope,—I trust they will be happy together.”

Hoyt looked at the girl with a sort of reverence. She was like a willing martyr in a holy cause, and if her sacrifice was founded on falsehood, it was none the less noble.

“You are a saint,” he cried; “but you are mine! Oh, Avice, you shall yet love *me*, and not that usurper. May we announce our engagement at once?”

“No; you seem to forget you haven’t won me yet!”

“But I will! I cannot fail with such a glorious prize at stake!”

“You never can do that, except by freeing the man I do love!”

Hoyt’s brow contracted, but he made no complaint. Truly, he *had* been told often enough of Avice’s reasons for marrying him, and as he had accepted her terms, he had no right to cavil at them.

CHAPTER XVII

MADAME ISIS

“Yep, Miss Avice, I gotter go. Judge Hoyt, he’s got me a norful good place in a lawyer’s office, an’ I’m goin’ to get quite a bunch o’ money offen it. I do hate to leave this little ole town, but I don’t wanta trow down that swell job in Philly. So I come over to say goo’by, an’ if you’ll lemme I’d like to wish you well.”

Fibsy was embarrassed, as he always was in the presence of gentlefolk. The boy was so honestly ambitious, and tried so hard to overcome his street slang and to hide his ignorance of better language, that he usually became incoherent and tongue-tied.

“I’m glad, Fibsy,” Avice said, for she somehow liked to use his funny nickname, “that Judge Hoyt did get you a good position and I hope you’ll make good in it.”

“Yes’m, I sure hope so, but you see I’d doped it out to stay an’ help you out on this here case o’ yourn. I mean about Mr. Trowbridge—you know——”

“Yes, I know, Fibsy, and it’s kind of you to take such interest, but, I doubt if so young a boy as you are could be of much real help, and so it’s as well for you to go to a good employer, where you’ll have a chance to learn——”

“Yes, Miss Avice,” Fibsy interrupted impatiently, “an’ I begs you’ll fergive me, but I wanta ask you sumpum’ ’fore I go. Will you—would you—”

“Well, say it, child, don’t be afraid,” Avice smiled pleasantly at him.

“Yes’m. Would you—” his eyes roved round the room, —“would you now, gimme some little thing as a soovyneer of Mr. Trowbridge? I was orful fond of him,—I was.”

“Why, of course, I will,” said Avice, touched by the request. “Let me see,” she looked about the library table, “here’s a silver envelope opener my uncle often used. Would you like that?”

“Oh, yes’m—thank you lots, Miss Avice, and I guess I better be goin’—”

“Terence,” and Avice, struck by a sudden thought, looked the boy straight in the face, “Terence, that isn’t what you started to ask,—is it? Answer me truly.”

The blue eyes fell and then, lifted again, looked at her frankly.

“No, ma’am it ain’t. No, Miss Avice, I—I fibbed, I was a-goin’ to ask you sumpum else.”

“Why didn’t you?”

“It was one o’ them sudden jerks o’ my thinker, ’at makes me fib sometimes, when I least expect to. I dunno what that thing is, but it trips me up, lots o’ times, an’, Miss Avice, I always just hafta fib when it comes, an’—” his voice lowered to a whisper, “an’ I’m always glad I done it!”

“Glad you fibbed! Oh, Terence! I thought Judge Hoyt lectured you about that habit.”

“Yes’m, he did, ’m. But there’s times when I gotter,—jest simply gotter, an’ that’s all there is about it!”

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Somewhat shamefaced, the boy stood, twirling his cap.

“You’re a funny boy, Fibsy,” said Avice, smiling a little at the disturbed countenance.

“Yes’m, I am, Miss: but honust, I ain’t so bad as I look. An’ I don’t tell lies,—not up-and-downers. But they’s times—yes’m, there sure is times—oh, pshaw, a lady like you don’t know nothin’ ’bout it! Say, Miss Avice, kin I keep the cutter thing, all the same?”

“Yes, you may keep that” and Avice spoke a little gravely, “and Fibsy, let it be a reminder to you not to tell naughty stories.”

“Oh, I don’t, Miss, truly, I don’t do that. The fibs I tell ain’t what you’d call stories. They’s fer a purpose—always fer a purpose.”

The earnestness in his tone was unmistakable, whatever its reason for being, and something about him gave Avice a feeling of confidence in his trustworthiness, notwithstanding his reputation.

He went away, awkwardly blurting out a good-by, and then darting from the room in a very spasm of shyness.

“Funny little chap,” said Avice to Eleanor Black, telling her of the interview.

“Horrid little gamin!” was the response. “I’m glad he’s going to Philadelphia; you were becoming too chummy with him altogether. And I think he’s too forward. He oughtn’t to be allowed to come in the house.”

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“Don’t fuss, Eleanor. He won’t be here any more, so rest easy on that question.”

And then the two began to discuss again the question that was all-absorbing and never finished,—the subject of Kane’s arrest.

Avice had concluded not to ask Eleanor of her previous acquaintance with Landon, for they had practically joined forces in an effort to prove his innocence, and Avice wanted to keep friends with the older woman, at least until she had learned all Eleanor could tell her in friendship’s confidences.

So they talked, hours at a time, and not once had Eleanor implied by word or hint, that she had known Landon in Denver. And yet Avice was sure she had, and meant to find out sooner or later from Kane himself.

But she rarely had opportunity of seeing him, and almost never alone. On her infrequent visits to him at The Tombs, she was accompanied by Judge Hoyt, and, too, Landon, was morose and taciturn of late, so that the interviews were not very satisfactory.

He had been indicted by the Grand Jury, and was awaiting trial in a very different frame of mind from the one he had shown on his arrest.

The prosecuting attorney was hard at work preparing the case. As is often the condition in a great criminal affair, there were antagonistic elements in the matters of detection and prosecution. The district attorney did not always agree with the police, nor they with the press and general public.

The personal friends and members of the family, too, had their own ideas, and each was equally anxious to prove evidence or establish a case.

The police had done well, but their work had to be supplemented by Whiting and his own detectives, and evidence had to be sifted and tabulated, statements put in writing and sworn to, and much detail work looked after.

Avice chafed at the delay, but Judge Hoyt assured her it was necessary, and asserted that he, too, had much to do to prepare his case for the defence.

So the days dragged by, and one afternoon, when a stranger was announced, Avice said she would see her, in sheer hope of diversion. And a diversion it proved.

The visitor was a middle-aged woman of the poorer class, but of decent appearance and address.

But she had a mysterious air, and spoke only in whispers. Her large dark eyes were deep-set, and glittered as with an uncanny light. Her thin lips drew themselves in, as if with a determination to say no more than was needful to make known her meaning. Her pale face showed two red spots on the high cheek bones, and two deep lines between her eyes bespoke earnest intentness of purpose.

"I am Miss Barham," she said, by way of introduction, and paused as if for encouragement to proceed.

"Yes," said Avice, kindly. "What can I do for you?"

"Nothing, Miss Trowbridge. I am here to do something for you." Her voice was so piercing, though not loud and her eyes glittered so strangely, Avice drew back a little, in fear.

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"Don't be scared," said Miss Barham, reassuringly. "I mean no harm to you or yours. Quite the contrary. I come to bring you assistance."

“Of what sort?” and Avice grew a little impatient. “Please state your errand.”

“Yes, I will. I have had a revelation.”

“A dream?”

“No, not a dream—not a vision,—” the speaker now assumed a slow, droning voice, “but a revelation. It concerned you, Miss Avice Trowbridge. I did not know you, but I had no difficulty in learning of your position and your home. The revelation was this. If you will go to Madame Isis, you will be told how to learn the truth of the mystery of your uncle’s death.”

Avice curled her lip slightly, in a mild scorn of this statement. The caller was, then, only an advertising dodge for some clairvoyant or medium. A charlatan of some sort.

“I thank you for your thoughtfulness,” she said, rising, “but I must beg you to excuse me. I am not interested in such things.”

“Wait!” and the woman held out a restraining hand, and something in her voice compelled Avice to listen further.

“You are perhaps interested in the freedom or conviction of Mr. Landon.”

“But I do not wish to consult a clairvoyant regarding that.”

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“I have not called Madame Isis a clairvoyant.”

“Your allusion to her gives me that impression. Isn’t she one?”

“She is a seer of the future, but she reads the stars. Oh, do not tamper with fate! If you go to her she will give you definite

and exact direction for finding the real murderer, and it is not the man named Kane Landon. No, it is not!”

The tones were dramatic, but they carried a certain conviction.

“Who are you?” asked Avice. “You do not seem yourself like a fraudulent person, and yet——”

“I am not! I am a plain American woman. I was a schoolteacher, but I have not taught of late years. I—I live at home now.”

There was a simple dignity in her way of speaking, as if she regretted the days of her school work. But she quickly returned to her melodramatic pleading; “Go, I beg of you, go, to Madame Isis. Can you afford not to when she can tell you the truth, or the way to the truth?”

“What do you mean by the way to the truth? Where is she? No, I will not go! How dare you come to me with this rubbish?”

Avice was getting excited now. She was suddenly aware of a mad longing to see this clairvoyant, whoever she might be. It could do no harm, at any rate. But even as these thoughts went through her brain, came others of the absurdity of the thing she was thinking. Go to a clairvoyant to learn how to save Kane! Well, why not?

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“Why not?” said Miss Barham, almost like an echo. “It can do no harm and it will show the way to the light.”

“Are you a fraud?” and Avice suddenly stooped and looked into the woman’s eyes, taking her off her guard.

“No,” she replied so simply and calmly that for the first time Avice believed she was not.

“No, I am no fraud. I tell you truly, if you go to Isis, she will tell you. If you do not, you will never know, and,”—she paused, “you will regret it all your life.”

The last words, spoken in an emphatic and impressive manner, were accompanied by a nod of the head, and the speaker moved toward the door. “That is all,” she said, as she paused on the threshold, “I have told you. You may do as you choose, but it will be an eternal regret if you fail to do my bidding.”

She was gone, and Avice, bewildered, sat quiet for a moment. “How absurd,” she thought, as soon as she could think coherently at all. “Fancy my going to a clairvoyant, or seer or whatever she called her! And anyway, I don’t know where the Isis person is.”

Then, chancing to look down at the table near her, she saw a card lying there. Immediately she knew what it was and that the woman had left it. She picked it up, and saw the address of a palmist and fortune-teller in Longacre Square.

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“I’ll never go there,” she said to herself, but she put the card away in a book.

It was after only two or three brown studies over the queerness of the thing that she started for the address given. She had a subconsciousness that she had known all along that she would go, but she had to persuade herself first. That she had done, almost without knowing it, and now she was on her way. She had told no one, for she hadn’t even yet acknowledged to herself that she would go in, only that she would go and look at the place.

It was in an office building, unpretentious and altogether ordinary. She went up in the elevator and looked at the door that bore the given number. And in another moment she was inside.

It was the usual sort of place, decently furnished, but commonplace of atmosphere and appointments. There was no attempt at an air of mystery, no velvet hangings or deep alcoves. The room was light and cheerful. As Avice waited, a young woman came in. She wore a trailing robe and her pale gray eyes had a mystic far-seeing gaze.

“You want a reading?” she asked in a low, pleasant voice.

“I do if you can tell me one thing I want to know,” replied Avice, a little bluntly, for she had no faith in the seer’s powers.

“I am Isis,” and the clairvoyant or astrologer or whatever she called herself, looked at her client closely. “I think I can tell you what you wish to know, better, by gazing in my crystal.”

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She went to her table, and taking a crystal ball from its case set it on a black velvet cushion. Then resting her chin on her hands she stared into the changing depths of the limpid crystal.

Avice watched her. Surely, if she were a fraud, she had most sincere and convincing manners. There was no attempt at effect or pretense of occult power.

After a time, Isis began in her soft, low voice: “I see a man in danger of his life. He is dear to you. I do not know who he is or what he has done, but his life is in grave danger. Ah, there is his salvation. I see a man who can save him. The man who is to save him must be summoned quickly, yes, even at once. Waste no time. Call him to you.”

“Who is he?” and Avice breathlessly awaited the answer.

“Fleming Stone. He is the only hope for the doomed man. Fleming Stone will rescue him from peril, but he must come soon. Call him.”

“Who is Fleming Stone? Where can I find him?”

“He is a detective. The greatest detective in the city. Maybe, in the country. But he is the one. None other can do it. It is all. You do your own will, but that is the truth.”

Isis turned from the crystal, looking a little weary. She raised her pale eyes to Avice’s anxious face, and said, “Will you obey?”

“I don’t know. How can I call a detective? I am pretty sure my advisers will not approve of calling another detective on the case, for it is a case. A criminal affair.”

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Avice found herself talking to the clairvoyant as if she had known her a long time. It seemed as if she had. She could not have said that she liked the personality of Isis, but neither did she dislike it. She seemed to Avice more of a force than a person. She seemed to have no particular individuality, rather to be merely a mouthpiece for otherwise unavailable knowledge.

Avice rose to go. “That is all?” she said.

“That is all, but will you not consent to save this man?”

“Is there no hope else?”

“None. It rests with you. You will agree to call Mr. Stone?”

Compelled by the glance, almost hypnotic, that the seeress bent upon her, Avice said “Yes,” involuntarily.

“You promise?”

“I promise.”

“You will tell no one until after you have summoned Stone.” This was an assertion rather than a question, and Isis went on.

“You can find his address in the telephone book, and then write him a letter. Tell him he must come to you,—but stay,—can you afford it?”

“Is it a great price?”

“As such things go, yes. But not more than a person in fairly good circumstances can pay.”

“I can afford it, then.”

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Avice paid the fee of Madame Isis, and went away in a daze. Not so much at the directions she had received, as at the fact of this woman knowing about Kane and knowing that it was a case for a great detective. For it was, Avice felt sure of that. She had become conscious of late, of undercurrents of mystery, of wheels within wheels, and she could not rest for vague, haunting fears of evil still being done, of crime yet to be committed. The whole effect of the clairvoyant's conversation heightened these feelings, and Avice was glad to be advised to seek out Stone. She had heard of him, but only casually; she knew little of his work and had but a dim impression that he stood high in his profession.

She went to the nearest telephone booth and found his address. But she remembered she had been told to write him, not telephone.

So, not waiting to get home, and also, with a view toward secrecy, she stopped in at one of her clubs, and wrote to Fleming Stone, urging him to take this case, and promising any fee he might ask.

Then, feeling she had burnt her bridges behind her, or, rather that she was building a new bridge in front of her, Avice went home.

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CHAPTER XVIII

ALL FOR LOVE

Avice went occasionally to see Landon in The Tombs. The formalities and restrictions had been looked after by Judge Hoyt, and Avice was free to go at certain times, but she was not allowed to see Kane alone. In the warden's room they met for their short visits, but of late, the warden had been kind enough to efface himself as much as possible, and one day, as he stood looking out of a window, he was apparently so absorbed in something outside, that the two forgot him utterly, and Landon grasped the hands of the girl and stood gazing into her sad brown eyes with a look of longing and despair that Avice had never seen there before.

At last, he said, slowly, "I suppose you know I love you," and his voice, though intense, was as bare of inflection or emphasis as the room was of decoration. It seemed as if one *must* speak coldly and simply in that empty, hollow place. The very bareness of the floor and walls, made the baring of the soul inevitable and consequent.

And as she looked at Kane, Avice did know it. And the radiance of the knowledge lighted the darkness, dispelled the gloom and filled the place with a thousand pictures of life and joy.

With sparkling eyes, she went nearer to him, both hands outstretched. The three words were enough. No protestations or explanations were necessary in that moment of soul-sight.

But Kane gave no answering gesture.

“Don’t,” he said; “it means nothing. I only wanted you to know it. That is all.”

“Why is that all?” and Avice looked at him blankly.

Kane gave a short, sharp laugh. “First, because I am already the same as a condemned man; second, because if I weren’t, I couldn’t ask you to marry me and thereby lose your whole fortune.”

“I don’t care about the fortune,” said Avice, still speaking with this strange new directness that marked them both; “but I have promised Leslie Hoyt that if he frees you, I will marry him.”

“Avice! What a bargain! Do you suppose I would accept freedom at such a price? Do you love him?”

“No; I love you. I have told him so. But he will not get you off unless I will marry him, so I have promised.”

“Promised! That promise counts for less than nothing! I will get freed without his assistance, and you shall marry *me*! Darling!”

“But you can’t, Kane,” and Avice spoke now from the shelter of his arms. “No one but Leslie can get you off. He says he will do so whether you are guilty or not. He is very clever.”

“*Is he!* But so are other people. I will get a lawyer who also is able to ‘get me off whether I am guilty or not’! Oh, Avice!”

“How can you? You have no money. Leslie says you will never get that inheritance from uncle.”

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“Does he! Well, let me tell you, dear, I don’t care. My mine is an assured fact; my interests are safe and protected.”

“Where did you get the money for that?”

“Mrs. Black lent it to me. She is a fine business woman, and I turned to her, as the time was growing short and I had to have the money at once, if at all.”

“And I thought you were in love with her!”

“No; she was truly in love with Uncle Trowbridge. But she is a clear-headed financier, and saw at once the scope and promise of my mining interests. She and I will both be rich from that deal. And so, Avice, I can offer you a fortune, not so large as you would get by marrying Hoyt, but still, a fortune. Oh, darling, do you really love *me*!”

But Avice was weeping silently. “It doesn’t matter that I do, Kane; I am promised to Leslie, and you cannot be freed without his help.”

“I may not be,” said Landon, solemnly; “there is little hope as things stand now, except through Hoyt’s cleverness and,—well, shrewdness.”

“Kane, why should it require shrewdness to get you acquitted? Why, doesn’t your innocence speak for itself?”

“*Am I innocent?*”

And then the warden had to tell them the time was up, and Avice had to go away with that strange speech and that strange look on Kane’s face, indelibly impressed on her memory.

“*Am I innocent?*” If he were, why not say so; and if he were not, why not declare it to her and tell her the circumstances, which *must* have been such as to force him to the deed.

But out in the sunshine, outside that awful chill of the gloomy jail, Avice's soul expanded to her new knowledge like a flower. Kane loved her! All other good in the world *must* follow! Suddenly she *knew* he was innocent! She fought back the thought that she knew it because she knew he loved her. She *knew* he would be freed! And fought back the thought that she knew it because she knew he was hers.

From an apathetic, hopeless inaction, she suddenly sprang to activity. She would find a way to save him without Hoyt's help; then she would be free of her promise to the clever lawyer.

But how to go about it? It was one thing to feel the thrill of determination, the power of an all-conquering love, and quite another to accomplish her set purpose.

Hoyt came in the evening. With the canniness of her new-found love, Avice approached the subject in a roundabout way.

"I saw Kane this afternoon," she began.

"You did! You went to the Tombs?"

"Yes; Leslie, that man is innocent."

"Indeed! I wish you had the task of proving it to the G. P. instead of me. Avice, things are not going well. Whiting is saving up something; I don't know quite what. But I confess to you I am afraid of his coming revelations."

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"What do you mean? Has he evidence that you don't know of?"

"I'm not sure. He may have, and he may only pretend it to frighten me."

“But you promised to free Kane!”

“And I will if I can. But, dear child, I am but human. It would take almost a miracle to clear that man from the network of circumstantial evidence that trips us up at every step. I assure you I am doing my best, and more than my best. You believe that?”

“Of course, I do,” and Avice studied the earnest, careworn face that looked into hers.

“And you also know why?”

“Yes,” came the answer in a low tone.

“Not *because* I believe him innocent, though I *do* believe him so, but because of your promise. That is what makes me work for his release, as I dare to say no counsel ever worked before. That is why I fear the result as I have never feared anything in my life. Because of my reward if I win! Because of *you*, you beautiful prize, that I shall deserve, when I conquer the fight!”

“Leslie, could no one else free Kane, but you?”

“No! a thousand times No! Who else would use every means, honorable or not! Who else would jeopardize his legal standing, forget professional ethics, resort to underhand methods, fearless of censure and opprobrium, so he but win his case? And all because a girl holds my heart in the hollow of her little white hand!”

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Avice was amazed and almost frightened at his vehemence. What was she, she asked herself, that these two men should love her so desperately? Kane had not declared himself in such glowing words as Hoyt, nor had he expressed willingness to do wrong for her sake; but she knew his love was as deep, his passion as strong as that of his counsel.

“Leslie,” she began timidly, for she had determined to stake all on one throw; “if you free Kane,——”

“Don’t say if,—say when!”

“Well, then, when you free him, won’t you,—won’t you let me off from my—my promise to marry you,—if I give you all the fortune?”

“Avice, what do you mean? Are you crazy? Of course I won’t! It is you I want, not the fortune. And, besides, you couldn’t do that. If you don’t marry me, the fortune goes to found a museum.”

“Yes, I know,—but,—you are so clever, Leslie, couldn’t you somehow break the will, or get around it, or——”

“Dishonestly! Why, Avice!”

“But you’re freeing Kane dishonestly.”

“I am not! I fully believe Landon is innocent. But it seems impossible to find the real culprit, and it is to persuade the judge and jury, that I do things I would scorn to do in a less urgent case.”

“But Leslie, I don’t *want* to marry you.”

“Very well, then, don’t.”

“And you’ll free Kane, just the same?”

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“Indeed I will not! Your lover may shift for himself. And we’ll see what verdict he will get!”

“Oh, Leslie, don’t talk like that! I shouldn’t think you’d want a girl who loves somebody else.”

“I’d far rather you’d love me, dear,” and Hoyt spoke very tenderly; “but I love you so much I’ll take you on any terms. And, too, I have faith to believe I can teach you to love me. You are very young, dearest, and in the years to come you will turn to me, though you don’t think so now.”

“Then you refuse to get Kane free, except on condition that I marry you?”

“I most certainly do.”

“Then listen to me, Leslie Hoyt! Go on and do your best for him. I promise that if you get him acquitted by your own efforts I will be your wife. But I also warn you, that I shall try to get him freed without your assistance, and if I do so, by any means whatever, that are in no way connected with your efforts, I shall not consider myself bound to you!”

“Well, well, what a little firebrand it is!” and Hoyt smiled at her. “Go ahead, my girl; use every effort you can discover. You will only succeed in getting your friend deeper in the slough of despond. Without being intrusive, may I ask your intended course of procedure?”

“You may not!” And Avice’s eyes flashed. “You are to abide by our bargain, and in no way relax the vigilance of your efforts, unless I see success ahead without your help.”

“Which you never will! But, Avice, I don’t like this talk. It sounds like ‘war to the knife’!”

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“And it is! But it is fair and aboveboard. I give you full warning that I, too, am going to fight for Kane’s life, and if I win it, I am his, not yours!”

Judge Hoyt set his jaw firmly. “So be it, my girl: I love you so much I submit even to your rivalry in my own field. But to

return frankness for frankness I have not the slightest idea that you can do anything at all in the matter.”

“That’s what I’m afraid of!” And Avice broke down and wept as if her heart would break.

And it was then that Leslie Hoyt met the biggest moment of his life. Met and threw it!

For a brief instant his soul triumphed over his flesh, and flinging his arms round the quivering figure, he cried:

“Avice! I will——” he was about to say, “give you up,” and in the note of his voice the girl heard the message. Had she kept still, he might have gone on; but she flung up her head with a glad cry and with a beaming face, and Hoyt recanted.

“Never!” he whispered, holding her close; “I will never give you up!”

“You meant to!”

“For a moment, yes. But that moment is passed, and will never return! No, my sweetheart, my queen, I will never give you up so long as there is breath in my body!”

Avice sprang away from him. She was trembling, but controlled herself by sheer force of will.

“Then it is war to the knife!” she cried. “Go on, Leslie Hoyt; remember your bargain, as I shall remember mine!”

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With a mocking bow and a strange smile she left the room.

Judge Hoyt pondered. He had no fear of her ability to find any lawyer or detective who could prove Landon’s innocence by actual honest evidence. He had himself tried too thoroughly to do that to believe it possible for another. But from Avice’s sudden smile and triumphant glance as she left him, he had a

vague fear that there was something afoot of which he knew nothing. And Leslie Hoyt was not accustomed to know nothing of matters on which he desired to be informed.

As a matter of fact Avice had nothing “up her sleeve.” She had abandoned the idea of calling in Fleming Stone, as a foolish suggestion of a foolish fortune-teller. But none the less she was bent on finding some way to do what she had threatened. She had little real hope, but unlimited determination and boundless energy.

She consulted Alvin Duane, only to meet with most discouraging advice and forecast of failure.

“There’s nothing to be found out,” said the detective. “If there had been, I’d ’a’ found it out myself. I’m as good a detective as the next one, if I have a tiny clue or a scrap of evidence that is the real thing. But nobody can work from nothing. And the only ‘clues’ I’ve heard of, in connection with this case, are the lies made up by that little ragamuffin they call Fibber, or something. No, Miss Trowbridge, whatever hope Mr. Landon has, is vested entirely in the powers of eloquence of his counsel. And it’s lucky for him he’s got a smart chap like Judge Hoyt to defend him.”

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Avice went away, thinking. No clues; and every case depended on clues. Stay,—he had said no clues except those Fibsy told of. True, he was mocking, he was making fun of the boy, who was celebrated for untruthfulness, but if those were the only clues, she would at least inquire into them.

Through Miss Wilkinson she found the boy’s address in Philadelphia, and wrote for him to come to see her.

He came.

Avice had chosen a time when Eleanor would be out, and they were not likely to be interrupted.

“Good morning, Terence, how do you do?”

“Aw, Miss Trowbridge, now,—don’t talk to me like that!”

“Why not, child?”

“And don’t call me child, please, Miss Trowbridge. I’m goin’ on sixteen,—leastways, I was fifteen last month.”

“Ah, are you trying to be truthful, now, Fibsy?”

“Yes’m, I am. I’ve got a good position in Philadelphia, and I was agoin’ to keep it. But, well, I feel like I wanted to work on this here case of your uncle.”

The deep seriousness and purpose that shone in the boy’s eyes almost startled Avice.

“Work on the case? What do you mean, Fibsy?” She spoke very gently, for she knew his peculiar sense of shyness that caused him to bolt if not taken seriously.

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“Yes’m; Mr. Trowbridge’s murder, you know. They’s queer things goin’ on.”

“Such as what?”

Avice was as earnest as the boy, and he realized her sympathy and interest.

“Well, Miss Trowbridge, why did Judge Hoyt want me out o’ New York? Why did he send me to Philadelphia?”

“I think to get you a good position, Fibsy. It was very kind of Judge Hoyt, and I’m afraid you’re not properly grateful.”

“No, ma’am, I ain’t. ’Cause you see, he just *made* Mr. Stetson take me on. Mr. Stetson, he didn’t want another office boy, any more’n a cat wants two tails. Why, he had a perfectly

good one, an' he's got him yet. The two of us. 'Cause, you see I'm only tempo'ry an' the other feller, he's perm'nent. Judge Hoyt, he's payin' my salary there himself."

"How do you know this?"

"Billy, the other feller told me. He heard the talk over the telephone, an' Judge Hoyt says if Mr. Stetson'd take me fer a coupla munts, he'd pay me wages himself. Only I must go at onct. An' then the judge, he told me I must beat it, cause Mr. Stetson wanted me in a hurry."

Avice thought deeply, then she said: "Fibsy, I'd be terribly interested in your story, if I could believe it. But you know yourself—"

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"Yes'm, I know myself! That's just it! And I know I ain't lyin' now! And I won't never, when I'm doin' detective work. Honest to goodness, I won't!"

"I believe you, Terence,—not so much on your word, as because the truth is in your eyes."

"Yes'm, Miss Avice, it is! An' now tell me *why* Judge Hoyt wanted me outen his way!"

"I've no idea, but if he did, it must have been because he thought you knew something that would work against his case. Oh, Fibsy, if you do,—if you do know anything that would hinder the work of freeing Mr. Landon, *don't* tell it, will you? Don't tell it Fibsy, for my sake!"

"Land, Miss Avice! What I know,—if I know anything,—ain't a goin' to hurt Mr. Landon! No-sir-ee!"

"Well, then, Judge Hoyt thinks it is, and that's why he wanted you out of town."

“No, Miss Trowbridge, you ain’t struck it right yet. You see, Miss, I’ve got that detective instinct, as they call it, an’ I’ve got it somepin’ fierce! Now I tell you I got clues, an’ if you laugh at that as ev’rybody else does, I’ll jest destroy them clues, an’ let the case drop!”

The earnestness of the freckled face and the flash of the blue eyes robbed the words of all absurdity, and gave Fibsy the dignity of a professional detective dismissing a client.

“What are these clues, really?” she asked him in kindly tones.

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“I can’t tell you, Miss Trowbridge. Not that I ain’t willin’,—but them clues is *clues*, only in the hands of a *knowin’* detective.”

“Then tell Mr. Duane.”

“I said a knowin’ detective. That goat don’t know a clue from pickled pigs’ feet! No ma’am! ’Scuse me, but them clues is my own,—and they’ll go to waste, lessen I can give ’em to the right man.”

“And who is the right man, Fibsy?”

“He’s Fleming Stone, that’s who he is! And no one else is any good whatsumever.”

“Fleming Stone? I have heard of him.”

“Have you, Miss Avice! Well, if you want ter find out for sure who killed your uncle, they ain’t no one as can find out but that same Fleming Stone!”

“You go back now, Fibsy,” said Avice, after a moment’s thought, “and if I decide to send for this man, I’ll let you know.”

“All right, Miss Avice, but I ain’t goin’ back to Phil’delphia, I’m goin’ to stay here fer awhile. If you want see me, they’s a telephone to the house where I live. Here, I’ll write you down the number. If I ai’n’t home, leave word wit’ me Aunt Becky.”

Avice took the paper Fibsy gave her, and nodded pleasantly to him as he went away, but she was so deeply absorbed in her own thoughts she scarcely heeded the boy.

CHAPTER XIX

TWO AT LUNCHEON

Terence McGuire, potential detective, went straight to the office of Judge Hoyt.

It was about one o'clock, and he found the lawyer, about to go to his luncheon.

"Well, Terence," the Judge said, in surprise, "I thought you were busy at your Philadelphia desk."

It was on the tip of Fibsy's tongue to say that Miss Avice sent for him, but he suddenly changed his mind and said, "Yes, sir, Judge, I was, but me Aunt is awful sick an' I hadda come home. I'm all she's got, an' I can't leave her w'en she's sick."

As a matter of fact, Aunt Becky was at that moment preparing some complicated combination of pastry and fruit and whipped cream for her mendacious nephew's dinner, and was in robust health.

"So you've left Mr. Stetson?"

"Well, I jest came over to see Aunt Becky, an' she's so ailin' I simpully can't go back. I gotta stay here, I'm sorry, Judge, but say, Mr. Stetson, he don't really need me,—he don't."

"No? Is that so? Well, Terence, I want you to have a position, perhaps we can find one in New York, and then you can look after your aunt."

“Good for you, sir. That would be jest the ticket!”

“I’m just going out to luncheon. How would you like to go along with me, and we can talk things over?”

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“Go to lunch! With you, Judge? Gee!”

“Yes, come along. As Mr. Trowbridge’s trusted clerk, I feel an interest in your welfare, and I want to see what I can do for you. Yes, come on, and we’ll talk it over as we lunch.”

“Great jumpin’ cows! Say, Judge, I s’pose you’d ruther I’d talk nice an’ pretty, if I’m goin’ to eat wit’ a gentleman. Well, say, I’ll try, honust, I will.”

“Not only for this time, Terence, but don’t you think it would be a good idea, if you gave up that foolish slang for good and all?”

“You bet I do! An’ say, you don’ know how hard I’ve tried! Why, I practice at home, an’ I make Aunt Becky scowl at me every time I say a onnecess’ry woid. An’ I do sure hate to be scowled at! Yes, sir, I do! Well, I’m goin’ to keep on tryin’.”

When the strangely mated pair started out, Judge Hoyt led his guest to a restaurant of a good but plain type.

“I won’t take you to one of my clubs today, Terence,” said his host, “but as you’re ambitious, let me prophesy that some day you’ll grow up to be a man I’ll be proud to take to luncheon anywhere.”

“Say, Judge,” and Fibsy looked serious, “that’s the kinda talk that makes a feller want to rise in this world. I’m ambitious,—I am,—Aunt Becky says I’ve got more ambition ’n’ any one she ever see—”

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“Saw, Terence.”

“Yessir, I mean saw. An’ to talk wit’ you onct, makes me feel I want to go to night school, or sumpum—”

“Something.”

“Yessir, something.”

Seated at a table that was properly appointed, but not elaborate enough to embarrass his young guest, Judge Hoyt settled himself comfortably in his chair, and adjusted his napkin, while Fibsy, watching him closely, followed every motion with a like one of his own. He took a sip of water immediately after his model had done so, and replaced the glass with an imitative gesture, extending his stubby little finger in the manner of the other’s carefully manicured digit.

Judge Hoyt noticed all this, but seeing that Fibsy was in earnest and entirely unself-conscious, he ignored it and let the boy have his lessons in etiquette.

“Ain’t it a shame, Judge, that they can’t find the feller,—fellow, I mean, who moidered Mr. Trowbridge?”

“Oh, didn’t you know that Kane Landon is indicted for the crime?”

“Yep, sure I know that, but he didn’t do it, allee samee.”

“Don’t you think so? Why not?”

“Well, I loined it outen o’ my pus-shy-kollergy book.”

“Terence, if you’re going to read a book on the subject of psychology, you ought to learn to pronounce it.”

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“Yes, sir. Could you tell me, so’s I kin remember?”

“Why, yes, it’s not difficult, once you know it.” And Judge Hoyt carefully taught the young seeker after knowledge how

to pronounce the word in question.

“Well, now wouldn’t that jar you!” and Fibsy smiled, delighted at his own accomplishment. “All that fooled me was that P to begin it with. If it hadn’t been for that, I’d a loined it long ago. Well, I got that book, an’ it tells you how to know w’en a man’s a criminal an’ w’en he ain’t. An’ Mr. Landon, he’s too careless to be guilty.”

“Too careless to be guilty. What do you mean?”

“I mean, if he was guilty, he wouldn’t sling around his speech so free. He wouldn’t a told that he was in Van Cortlandt Park that day Mr. Trowbridge was killed. Nor he wouldn’t a owned up so free that he wanted money sumpun—something,—fierce. An’ he wouldn’t a taken his imprisonment so orful easy. He’d a been busy preparin’ alibis, an’ things like that.”

“How do you know these are his attitudes?”

“Pape. Every day there’s a guy writes a lot about the—psy—chology,—got it!—of crime, an’ spoke about Kane Landon bein’ a example of—of what I was a-talkin’ about.”

“But if Landon isn’t guilty, and I fervently hope he isn’t, then who is?”

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“I dunno, Judge Hoyt,” and Fibsy’s freckled little face was very earnest. “But there’s a chap as can find out. Do you know Fleming Stone?”

“The detective? Yes; that is I know him by reputation. I never chanced to meet him.”

“He’s the guy, Judge Hoyt. He can find a moiderer by clues what ain’t there! Gee, but he’s a wonder!”

“How do you know?”

“I’ve read about him a heap o’ times. I’ve read up most every case he’s ever had, if it was in the papers. Why,” and Fibsy pulled a newspaper from his pocket. “Here’s a account of a case he’s jest finished—”

“And here’s the waiter with our steak. Suppose we let Mr. Stone wait.”

“Will we!” and Fibsy’s eyes shone as he saw the platter that was offered for the Judge’s inspection. “Gee! I’ve dreamed of a steak like that, but I never spected to have one soived up to me!”

“And now,” the judge resumed, after the steak had been cut and “soived,” “let us discuss your next position of trust and responsibility. You want to be in New York? But suppose we arrange for your aunt to live in Philadelphia, and then you can keep your place with Mr. Stetson.”

“Mighty nice plan,” Fibsy’s fork paused in mid-air, while he thought, “but,—oh, hang it all, Judge,—I jest love New York! Why, its old torn-up dirty streets are more ’tractive to us, than Philly’s clean, every-day-sloshed-up w’ite marble steps.”

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“Ah, a true Gothamite,” and the Judge smiled. “Well, we must try for a place in this metropolis, then.”

“Yes, sir, please. And, too, Judge Hoyt, I gotter be here to keep me eye on that ’ere trial of Mr. Landon.”

“You have that in charge, eh?”

“Now, don’t you make fun o’ me, please. But I got a hunch that I can put in an oar, when the time comes, that’ll help Mr. Landon along some—”

“What do you mean, Terence? If you know anything of importance bearing on the case, it’s your duty to tell it at

once.”

“I know that, sir, but it ain’t of importance, ’cept to somebuddy who can ’tach importance to it. Now, I told you, Judge Hoyt, that I had some—some clues,—an’ sir, you jest laughed at me.”

“Oh, I remember. Some buttons and some mud, wasn’t it?”

“Yes sir, that’s what they was.”

“Well, I confess the mud doesn’t seem of great importance, and as for the button,—was it a coat button, did you say?”

“No, sir, I said a—a suspender button.”

“Oh, yes. Well, the detectives have examined all possible clothing for a missing button of that sort, but without success. It is, of course, a button from some other garment than any of interest to this case.”

“Yes sir, I s’pose so.”

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“You see, Terence, all clues have been traced to their last possible degree of usefulness in our investigations.”

“Yes, sir, of course, sir. Say, Judge Hoyt, I’m kinder sorry you wasn’t in town that day. If you had a been, you might a kep’ Mr. Trowbridge from goin’ to the woods at all.”

“Maybe so, Terence. We can’t know about those things. Some people hold there’s no such thing as chance; if so, it was ordained that I should be out of town.”

“Yes, sir. Funny, ain’t it? An’ sorter pathetic that Mr. Trowbridge should have your telegram, what you sent from Philly in his pocket.”

“Well, that was only natural, as he must have received it shortly before he went away from his office.”

“An’ he thought a heap of you, sir. Why, jest takin’ that telegram shows that. He wouldn’t a taken a plain business telegram.”

“Probably not. Yes, if I had been here I should doubtless have been at his office most of the day. But even then, if he had expressed a desire to go to the woods, to look for his specimens, I should not have detained him. By the way, Terence, here’s a rather interesting photograph. That day, in Philadelphia, there was a camera man in the station, taking picture postcards of the place. And, purposely, I got in his focus. See the result.”

From his pocket-book, Judge Hoyt took a picture postcard, and handed it to the boy. The great station showed up well, and in the foreground was easily distinguishable the figure of Judge Hoyt, standing in his characteristic attitude, with both hands behind him.

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“Say, Judge, that’s fine! My, I’d know you in a minute. Kin I keep this?”

“Wish I could give it to you, but it’s the only copy I have left. I’ll send for some more, if you really care to have one.”

“Sure I do,—I mean, soitenly I do.”

“Well, do all you can to improve that execrable diction of yours, and I’ll get you a card like this one.”

Seeing Fibsy look a little disappointedly at the two demi-tasses that appeared as a final course, Judge Hoyt asked the waiter to bring a cup of breakfast coffee for the lad.

“Oh, thank you,” said the guest, “I sure do like a cup o’ coffee worth botherin’ with. Is that little mite of a cup all you want?”

“Why, yes, I suppose so. I never think about it. It is my habit to take a small cup after luncheon. Some day, Terence, if you’re ambitious, you must brush up on these minor matters of correct custom. However, here’s your large cup, now. Drink it and enjoy it. Cream and sugar, I suppose?”

“Yes sir,” said Fibsy, and he watched the elegance of Judge Hoyt’s movements, as he poured cream and dropped a lump of sugar in the good-sized cup of steaming coffee. “Another?” the judge asked, poising the second lump just above the brim.

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“Yes, sir, please, sir. You’re awful good to me, Judge Hoyt, sir.”

“Well, to be honest, Terence, I want to give you a few hints as to your table manners, for you have the instincts of a gentleman, and I’m going to help you to become one, if I can.”

“Yes, sir, thank you, sir.” Fibsy looked earnestly at the kindly face that smiled at him, and then said, in a burst of determination to do the right thing, “Say, Judge Hoyt, I want to learn to be a gentleman as soon as I can. An’ I’m goin’ to begin right now, by drinkin’ this here little cup o’ coffee,—an’ I’m goin’ to drink it like you did yours, without no sugar or cream!”

Pushing to one side the larger cup, Fibsy took the demi-tasse, which had been left on the table, and with a visible effort swallowed its contents.

“Whew! some bitter!” he exclaimed, making a wry face.

“Good for you, old chap!” and the Judge laughed outright at this act of real heroism. “Now that you’ve proved you can do

it, follow it up with the other cup, that you'll enjoy."

"No sir—ee! I've begun to do the c'rect thing, an' I'm goin to stick to it!"

"Oh, pshaw, don't deprive yourself of a little pleasure. That good cup of coffee, fixed just to your taste, will be wasted if you don't drink it."

"No, sir, I'm in fer the manners today. Maybe I won't keep it up, but this is me day fer bein' a gentleman, let it rain ebber so hard!" With a merry smile in his blue eyes, Fibsy stood his ground, and then in another moment, looked crestfallen and sheepish, as finger bowls were brought.

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"That gets my goat!" he confided to his host. "Say, Judge, put me wise."

"Very well, Terence, simply do as I do."

Fibsy watched carefully, though unostentatiously, and when the judge had finished, the boy gave a perfect imitation of the man's correct and graceful motions.

Before the finger-bowls came, the waiter had taken up Fibsy's large cup of coffee to remove it. But with a longing glance, the boy had said, "Say, can't I keep that after all, Judge?"

"Certainly," Judge Hoyt had replied. But now, after the new glory of cleansed finger-tips, again Fibsy renounced the temptation, and said, "Nope, if I'm goin' to learn to be a swell, I gotter learn to say no." And without even a backward glance at the coffee, he followed the judge from the dining room.

They reached the street, when Fibsy cried out,

“Good gracious, I left me paper!” and he darted back into the restaurant, returning, after a moment’s delay, with the newspaper under his arm.

“Now we are off,” he said, and with Judge Hoyt, he walked briskly back to the lawyer’s office.

CHAPTER XX

FLEMING STONE

That same evening, Judge Hoyt went to see Avice, and he acknowledged that he was about at the end of his resources.

“Then you have failed?” said the girl.

“Not yet. But I shall, undoubtedly, unless—”

“Unless you resort to dishonest means?”

“Yes; exactly that. I don’t want to, and yet,—for *you* I would perjure my soul!”

“What would it be, this dishonest procedure?”

“I’d rather not tell you. It would be better all round that you shouldn’t know.”

“But I *must* know. Tell me.”

“I’ve not thought it all out.” Hoyt passed a weary hand over his brow. “For one thing, the worst point against Landon is that person who telephoned and called Mr. Trowbridge ‘uncle’. If I could get some one to swear that he did that, it would go a long way in Landon’s favor.”

“Some one who didn’t really do it, you mean?”

“Yes, of course. It would be perjury, and it would have to be handsomely paid for.”

“How wicked!”

“Don’t think for a moment that I don’t realize the wickedness of it! Even *you* can have no idea what such an act means to a man, and a lawyer. A hitherto *honorable* lawyer! Oh, Avice, what a man will do for a woman!”

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“I’m not sure I want you to.”

“You want Kane freed?”

“Yes, oh, yes!”

“By fraud, if necessary?”

“Y—yes.”

“Avice, you are as bad as I am! For one we love, we stop at nothing! You would perjure your soul for Landon; I, for you! Where’s the difference?”

“I won’t, Leslie. I can’t! Don’t do that awful thing!”

“And let Landon be convicted?”

“Oh, no, no! Not that! But wait, Leslie, I have a new plan.”

“Oh, yes, I forgot you were going to save Landon by your own exertions!”

“And I am. Have you ever heard of Fleming Stone?”

“Of course I have. Why?”

“I’m going to get him to find the murderer.”

“Avice! what nonsense. You mustn’t do any such thing!”

“Why not?”

“Because it is absurd. We already have Duane on the case. He is a well-known detective and would resent the employment of another.”

“Do you suppose I care for that? If Fleming Stone can free Kane he shall have a chance to do so! I have fifty thousand dollars of my own, and I’ll spend it all, if necessary.”

“It isn’t the cost, dear. But one detective can hardly succeed where another good one failed. And, too, it is too late, now. A detective must work before clues are destroyed and evidence lost.”

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“I know it is late, but Stone is so clever. He can do marvels.”

“Who told you so?”

“I won’t tell you.” For Avice knew if she said either Fibsy or the clairvoyant, Hoyt would laugh at her.

“Be guided by me in this, dear,” said Hoyt, earnestly. “Don’t send for this man. He will do more harm than good.”

“Do you mean he will find out for sure that Kane did it?”

“Never mind what I mean. But don’t get Fleming Stone on this case, I forbid it.”

“You’re too late,” returned Avice; “I’ve already written to him to come and see me.”

“In that case, there is nothing more to be said. We must make the best of it. But at least let me be here with you when he comes. I think he will want a legal mind to confer with.”

“Indeed, I shall be very glad to have you here. Why were you so averse to having him, at first?”

“Only because it is so useless. He can discover nothing. But if you want him, that’s enough for me.”

The next evening Hoyt called on Avice again.

“Heard from Stone yet?” he asked.

“No, not yet.”

“Well, I don’t believe you will. I hear he’s out West, and will be gone some weeks yet.”

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“Oh, I am so disappointed! How are things going today?”

“Slowly. But I am holding them back on purpose. I have a new plan, that may help us out a lot.”

But Hoyt wouldn’t divulge his new plan, and when he left, Avice was heavy-hearted. She was more than willing to do anything for Kane that was right, but she recoiled at perjury and deceit. And yet the thought of Kane’s conviction brought her to the pitch of any awful deed.

So, when, the morning after she lost her hope of seeing Fleming Stone, Fibsy came to see her, she welcomed the boy as a drowning man a straw.

“What about that Stone guy, Miss Avice?” he inquired, abruptly.

“We can’t get him, Fibsy; he’s out of town.”

“Yes, he isn’t! I seen him only yesterday, walkin’ up the avnoo.”

“You did! He must have come home unexpectedly. I’m going to telephone him!”

“Do it now,” said Fibsy, in a preoccupied tone. Avice found the number and called up the detective.

“Why, Miss Trowbridge,” he said, after he learned who she was; “I had a telegram from you asking me to cancel the appointment.”

“A telegram! I didn’t send you any!”

“It was signed with your name.”

“There’s a mistake somewhere.”

“’Tain’t no mistake!” said Fibsy, eagerly, as he listened close to the receiver that Avice held. “Tell him to come here now, Miss Avice.”

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“Oh, I don’t know about that. I must ask Judge Hoyt.”

“Here, gimme it!” and the audacious boy took the receiver from Avice, and speaking directly into the transmitter, said;

“’Twasn’t a mistake, Mr. Stone. ’Twas deviltry. Can’t you come right up to Trowbridge’s now, and get into this thing while the gettin’s good?”

“Who is speaking now?”

“Miss Trowbridge’s seckerterry. She’s kinder pupplexed. But she wants you to come, awful.”

“Let her tell me so, herself, then.”

“Here, Miss Avice,” and Fibsy thrust the receiver into her hand, “tell him to come! It’s your only chance to save Mr. Landon! Take it from me!”

Spurred by the reference to Landon, Avice, said, clearly; "Yes, please come at once, Mr. Stone, if you possibly can."

"Be there in half an hour," was the quick reply, and a click ended the conversation.

"What kind of a boy are you?" said Avice, looking at Fibsy, half angry, half admiring.

"Now, Miss Avice, don't you make no mistake. I ain't buttin' in here out o' freshness or impidence. There's the devil's own doin' goin' on, an' nobody knows it but me. It's too big for me to handle, an' it's too big for that Duane donkey to tackle. An' they ain't no one as can 'tend to it but F. Stone. An' gee! you come mighty near losin' him! Why, Miss Avice, when you heard somebuddy wired him in your name not to come here, don't that tell you nothin'?"

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"Yes, Fibsy, it shows me some one is working against Mr. Landon's interests. And that is what Judge Hoyt has been afraid of all along. I wish he were here."

"Who? Judge Hoyt?"

"Yes, I promised to have him here when Mr. Stone came. There ought to be a legal mind present."

"Mine's here, Miss Avice; and right on the job. My legal mind is workin' somepin fierce this mornin' an' I kin tell Mr. F. Stone a whole lot that Judge Hoyt couldn't."

"Fibsy, I don't know whether to send you away, or bless you for being here." Avice looked at the boy in an uncertainty of opinion.

"Now, Miss Avice, don't you worry, don't you fret about that. You'll be glad an' proud you know me, before this crool war is over! an' that ain't no idol thret! *Bullieve* me!"

“Well, Fibsy, if I let you stay, I must ask you to talk to me a little more politely. I don’t like that street language.”

“Sure, Miss Avice, I’ll can the slang. I mean, truly I’ll try to talk proper. It’s mostly that I get so excited that I forget there’s a lady listenin’ to me. But I’ll do better, honest I will.”

Fleming Stone came.

Avice received him alone, except that she allowed Fibsy to sit in the corner of the room.

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“I am exceedingly interested in this case,” Mr. Stone said, after greetings had been exchanged; “I have closely followed the newspaper accounts, and I admit it seems baffling many ways. Have you any information not yet made public?”

“No,—” begun Avice, and then she looked at Fibsy.

The boy sat in his corner, with eager face, almost bursting with his desire to speak, but silent because he had promised to be.

“I know so little of these things,” Avice went on, falteringly; “I hoped to have a lawyer here to talk to you. As a matter of fact, I was advised to send for you by this boy, Terence McGuire. He was my late uncle’s office boy.”

“Ah, the one they call Fibsy, and so discredited his evidence at the inquest!”

“Yes,” said Avice, “but he says he knows something of importance.”

“And I believe he does,” said Fleming Stone, heartily. “I read about his witnessing, and I am glad of a chance to talk to him.”

Fibsy flushed scarlet at this interest shown in him by the great man, but he only said, simply, "May I speak, Miss Avice?"

"Yes, Fibsy, tell Mr. Stone all you know. But tell him the truth."

"He won't lie to me," said Stone, not unkindly, but as one merely stating a fact.

"No," agreed Fibsy, looking at Stone, solemnly. "I won't lie to you. You see it was this way, sir, I've got the detective instinck,—and the day after the murder, I went to the place where it was at, to look for clues. Miss Avice, she gimme the day off. An' I found 'em, sir. The Swede woman told me where the place was where—where Mr. Trowbridge died, and right there I found a shoe button."

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"Fibsy," and Avice looked at him, "why did you tell Judge Hoyt it was a suspender button?"

"I had to, Miss Avice," and Fibsy's face looked troubled "you see I said *button* to him and the 'xpression on his face warned my instinck not to say *shoe* button. So I switched."

"Describe his expression," said Stone, who was watching the boy closely.

"Well, sir, when he said 'what kind of a buttun?' he looked as if a heap depended on my answer. An' when I said suspender button, he lost all interest. Now, maybe he *had* a int'rest in a shoe button an' maybe he didn't. But I wasn't takin' no chances."

"Fibsy, you've the right bent to be a detective!" exclaimed Stone; "that was really clever of you."

But Fibsy was unmoved by this praise. "I sorta sensed it," he went on. "Well, sir, that shoe button never came offen Mr.

Landon's shoes, sir."

"How do you know?"

"I got around the chambermaid here in this house, sir, an' she hunted all over Mr. Landon's shoes, an' they ain't no buttons missin'; an' too, sir, this button is from a city shoe, a New York shoe. An' Mr. Landon, he wears western shoes. Oh, I know; I've dug into it good."

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"Well, whose button is it?"

"I don't know, sir, but you can find out. I told Miss Trowbridge, sir, my clues was *clues* only in your hands."

"The button may be important, and may not."

"Yes, sir," and Fibsy beamed "that's jest exactly what *I* thought. Now, my other clue, sir, is this. I ain't got it here, but I got it safe home. It's a hunk o' dirt that I cut out o' the ground, right near the—the spot. You see, it has a print in it, a deep, clear print, sorta round. Well, sir, I'd like you to see it 'fore I describe it. I'd like to know if it strikes you like it does me."

The boy seemed all unaware of any presumption in the manner of argumentative equality which he had adopted toward the famous detective, and, to Avise's surprise, Mr. Stone seemed not to resent it.

"Were there other marks of this nature?"

"Yes, several. I scratched them away with my foot."

"You did! You destroyed evidence purposely! Why?"

"Because I picked out the best and clearest, and kep' it safely. I was goin' to give it to Miss Avise or Judge Hoyt, but they all made fun o' me, so I didn't. They wasn't no use o' reporters

muddlin' the case up. An' smarty-cat snoopers huntin' clues, an' all."

"You took a great deal on yourself, my boy. You had no right to do it. But I will reserve judgment. It may well be you have done a good thing."

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"It was too many for me, sir. I couldn't sling the case myself. An' Judge Hoyt wouldn't pay no 'tention; an' that gink,—I mean—that Mr. Duane, he ain't got no seein' powers so I says they ain't no one but you to take it up as it should be took up. An' glory to goodness you're here!"

Fleming Stone smiled a little, but quickly looking serious again, said to Avice, "If you want me to work on this case, Miss Trowbridge, I will start by going with this boy to look at his 'clues.' They may be of some importance."

Avice agreed, and the great detective and the small boy went away together.

"And so you are Miss Trowbridge's secretary?" asked Stone as they walked along.

"No, sir, I ain't. That was one of my lies. I said it so's you'd come."

"Look here, what's this about your lying habits? Is it a true bill?"

"No, Mr. Stone, I've quit. That is, *practically*. But I've often found a lot o' help in shadin' the truth now an then. But, shucks, they was only foolishness, to fuss up people who oughter be bothered. An' any way, I've quit, 'ceppen as it may be necess'ry in my business."

"And what is your business?"

“It’s been bein’ office boy, but I’ve always wanted to be a detective, an’ since I’ve seen you, I know I’m goin’ to be one. I have the same cast o’ mind as you have, sir.”

Stone looked sharply into the earnest face raised to his, and it showed no undue conceit, merely a recognition of existing conditions.

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“Terence,” he said, quietly, “a good detective cannot be an habitual liar.”

“I know it, sir; that’s why I’ve quit. After now, I’m only goin’ to tell lies when me work requires it. Just as you do, sir. You don’t always tell the strick truth, do you, sir?”

Stone shot a glance at him and then smiled. “Let’s discuss those ethics some other time, Fibsy. Where do you live?”

“Quite some way off, sir. I’ll show you.”

“We’d better get a taxi, then;” and soon the two detectives were on their way to Fibsy’s humble home.

Stone waited in the cab, while the boy ran in and out again with his precious clues.

“I’ve kep’ ’em careful,” he said, “and the dirt ain’t jarred nor nothin.”

First he produced the shoe button. “You see,” he said, earnestly, “if it was shiny all over it wouldn’t mean much; but it’s rubbed brown on one side, so if we could find the shoe it came off of, we’d know it in a minute.”

“Good work,” said Stone, quietly, “go on.”

“Well, sir, it ain’t Mr. Landon’s, cos he ain’t got any shoes with buttons the least mite like this, and as he came from

Denver the day before the murder, he didn't have time to get some an' wear 'em to this browniness."

"It is a point, Fibsy."

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"Yes sir, that's all it is, a point. Now look at this mud."

With great care, Fibsy opened a box and showed a piece of soil, about four inches square, in the center of which was clearly defined round hole.

"I cut it out right near the 'spot'," said he, in the awed tone in which he always referred to the scene of the crime. "It's the mark of a—"

"*Cane!*" said both voices together.

"Yes sir," went on Fibsy, eagerly, "an' that ain't all! I saw the daisies and clovers were sorta switched off all around the spot, as if by sombuddy slashin' a cane around careless-like. An' then," and the boy's face grew solemn with the bigness of his revelation, "I seemed to see in my mind a—what do you call 'em, sir?—a dirk cane, a sword cane, an'—"

"*Cane* killed me!"

"Yes, sir! Oh, Mr. Stone, I knew you'd see it!"

"Boy, you are a wonder. Even if your deductions are all wrong, you have shown marvelous acumen."

Fibsy had no idea what acumen was, nor did he care. He was not seeking praise, but corroboration, and he was getting it. The mark of a cane was perfectly clear and was unmistakable. It might mean nothing, but it was a cane mark, and some canes were murderous weapons.

"You have seeing eyes, child," said Stone, and Fibsy desired no greater commendation.

CHAPTER XXI

STONE'S QUESTIONS

"Now," went on Stone, "I'm going to begin at the beginning of this thing and I propose to take you along with me."

"Yes, sir, I'll help," and Fibsy settled back in his seat in the taxicab without a trace of presumption or forwardness on his freckled face or in his blue, 'seeing' eyes.

The beginning seemed to be at police headquarters and the two went in there.

Inspector Collins was interviewed as to the message that brought to him the first news of the murder.

He patiently retold the story, now old to him, and Stone questioned him as to the woman's voice.

"I couldn't rightly hear her, sir. Her kids was all screamin' and whoopin'-coughin' to beat the band."

"Gee!" remarked Fibsy, "Vapo-crinoline!"

"What?" asked Stone.

"It's the stuff they uses for whoopin' cough. Me kid brother had it onct. Vapo Kerosene, or sumpin."

"Also," the captain went on, "there was a phonograph goin' and there was building goin' on near. I could hear riveters."

“But who was the woman? Didn’t she give her name?”

“No, she was a dago woman,” Collins said, stroking his chin reflectively; “I couldn’t find out where she lived, nor why she sent the message. There was such a racket goin’ on where she was, I couldn’t half hear her.”

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“What sort of a racket?”

“All sorts. She said her children had whooping-cough, and they did, for sure; but there was other noises. Seemed like hammerin’ and screechin’ and music all at once.”

“Music?”

“Oh, only a phonograph goin’. Playin’ some rag-time. Dunno what ’twas; ‘My Cockieleeekie Lassie’ or some such song. Or maybe——”

“Well, never mind the song. Did you finally get the message?”

“Yes, I did.”

“What was it?”

“Only that Rowland Trowbridge was dead and for me to go to Van Cortlandt Park woods for the body.”

“Singular that an Italian woman should tell you the news.”

“Very singular, sir.”

“What did you do then?”

“Called up the Van Cortlandt Park Station, and told them to look into the matter.”

Stone asked further details concerning the finding of the body, and then inquired as to the nature of the wound.

“He was stabbed,” said Collins, “And, without doubt, by a slender-bladed dagger or stiletto.”

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“An Italian stiletto?” asked Stone.

“That is impossible to tell,” answered the Inspector a little pompously. “The wound would present the same appearance if made by any sharp, narrow-bladed weapon.”

“This weapon was not found?” went on Stone.

“No,” replied Collins, “I had vigorous search made in vain. But its absence proves the deed of an intelligent person. Whoever killed Mr. Trowbridge, went to the woods, knowing his victim would be there, and carrying his weapon with him.”

“It seems to prove that the criminal was provided with a dagger,” agreed Stone, “but it in no way convinces that it was not an accidental meeting between the murderer and his victim.”

So far the facts were bare ones. The announcement through the green cord of the telephone, the finding of the dagger-killed body, and the identification of the victim were clearly stated, but what inferences, could be drawn? There were no side lights, no implications, no pegs on which to hang theories.

Still keeping Fibsy with him, Stone returned to the Trowbridge house. It had been agreed that should he meet any one there, he was to be introduced as Mr. Green, a friend of Kane Landon’s.

As, it happened, there was quite a crowd in the library. Judge Hoyt had asked the district attorney and Alvin Duane to meet

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him there for a conference with Avice. Also, they wanted a few more words with Stryker, who had returned to his old place as butler.

As a friend of Landon's and as an acquaintance of Avice's "Mr. Green" was made welcome, and Avice asked that he be allowed to discuss the matter with them all. "Mr. Green is sure that Kane is innocent," Avice said, "and he may be able to suggest some point that we may have overlooked."

No one objected to the presence of the stranger, nor did they mind when Fibsy slid into the room, and sat down in a corner. It was no secret conclave, and any hint or theory would have been welcomed.

Stryker, who was present, was giving the best answers he could to the questions put to him.

"What were you really doing, Stryker," the district attorney asked, "that afternoon of Mr. Trowbridge's death?"

The old man shook his head. "I can't remember," he said; "I was at home when the news came, but I can't just recollect whether I had been out afore that or not."

Mr. Whiting appeared to think this a little suspicious, and questioned him severely.

But, "Mr. Green" smiled pleasantly;

"His alibi is perfect because he hasn't any alibi," he said cryptically.

"Just what does that mean to your cabalistic mind?" asked Whiting, ironically.

"Only this. If Stryker were implicated in this crime, he would have had an unshakable alibi fully prepared against your

questions. The very fact that he doesn't pretend to remember the details of his doings that afternoon, lets him out."

Whiting saw this point, and agreed to the conclusion, but Alvin Duane looked decidedly crestfallen.

"In that case," he said to Whiting, "an alibi is always worthless, for they are, according to the learned gentleman, always faked."

"Not at all," said Stone, easily. "An alibi is only 'faked', as you call it, by the criminal. Had Stryker been the criminal, he would have been shrewd enough, in all probability, to be prepared with a story to tell of where he spent that afternoon, and not say he doesn't remember."

The butler himself nodded his head. "That's right! Of course I wouldn't kill the master I loved,—the saints forgive me for even wording it!—but if I did, I'd surely have sense to provide an alibi, or whatever you call it."

As no further questioning seemed to incriminate the man, he was dismissed from the room.

Baffled in his attempt to prove his somewhat vague theory as to Stryker, Duane insisted on a consideration of the note alleged by Avice to have been found in her uncle's desk.

Judge Hoyt took up this matter somewhat at length. He admitted that Miss Trowbridge had found the note, as she averred, but he urged that it be not taken too seriously, for in his opinion, it had been written on Mr. Trowbridge's typewriter by other fingers than the owner's. And it was probably done, he opined, to turn suspicion away from his client.

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"And do you want suspicion to rest on your client?" asked Stone.

“I do not and I do not propose that suspicion shall rest on him. But I do not care to divert it from him by fraudulent means.”

Hoyt was careful not to glance toward Avice. He regretted her impulsive act in forging that note, and he felt sure that if he appeared to bank on it, the truth would come out. So he endeavored to have the note’s implication discarded, and the matter ignored.

But this attitude, of itself, roused Whiting’s suspicions.

“Might it not be,” he said, slowly, “that the note, then, is the work of the prisoner, himself? Mr. Landon has been living in the Trowbridge house and would have had ample opportunity to ‘plant’ the note which the young lady found.”

Judge Hoyt looked annoyed. The possibility of this theory being set forth had occurred to him. But, adhering to his one idea, he smiled, and said, lightly:

“That is for you to determine. As I am convinced of Mr. Landon’s innocence, I, of course, feel sure he did not write the note in question; but if you think he did, and can prove it on him, go ahead and do so. But I do not see how it can in any way help your cause.”

This was true. Were it proved that Landon wrote the note, it would be evidence of a most undecisive sort; or at any rate, Hoyt’s indifference made it appear so.

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“Perhaps Fibsy will tell us of *his* clues,” said Avice, smiling at the serious-faced boy, who was quietly listening to all that was said, but making no interruptions.

“Now, now, Avice,” said Judge Hoyt, “don’t bring our young friend into the conversation.”

“Why not?” and Avice pouted a little more at the judge’s opposition to her suggestion, than because she really thought Fibsy could be of any help.

“Well, you see, this youth, though a bright-witted boy, rejoices in the nickname of Fibsy, a title acquired because of his inability to tell the truth. I submit that a customary falsifier is not permissible as a counselor.”

“But I don’t tell lies when I testify, Judge Hoyt,” said the boy, a disappointed look on his freckled face.

“You won’t have a chance to, Fibsy,” and Hoyt smiled at him indulgently, “for you’re not going to testify.”

Fibsy stared at him, and then a strange look came over his face.

“I got you!” he fairly screamed; “I’m onto you! You know I’m nobody’s fool and you’re afraid I’ll queer your client!”

Judge Hoyt didn’t so much as glance at the angry boy. He addressed himself to Avice. “My dear, I protest. And I demand that this impossible person be removed.”

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But Fibsy possessed a peculiar genius for making people listen to him.

“Him!” he said, and the finger of withering scorn he pointed at Judge Hoyt was so audacious, that the others held their breath. “Him! He sent me to Philadelphia to get me outen his way! That’s what *he* did!”

“A sample of his celebrated falsehoods,” said the judge, now smiling broadly. “The little ingrate! I did get him a position in Philadelphia, as he could no longer be in Mr. Trowbridge’s office. But I fail to see how even his fertile imagination can

make it appear that I did this to ‘get him out of the way.’ Out of whose way may I ask. He certainly wasn’t in mine.”

Whiting stared. He was trying to put two and two together to make some sort of a four that would worry his opponent, and for the life of him he couldn’t do it.

Why, he thought, would Judge Hoyt want to get rid of this boy, unless the chap knew something detrimental to his client? There could be no other reason, and yet what could the boy know? Hoyt had said he was a bright boy, so he must be afraid of that brightness. And yet—and this point must be well considered—it might well be, if the boy were really an abandoned liar, that Hoyt only feared the falsehoods he could make up, and which might be adverse to Landon’s interests even though untrue.

And so, in spite of Hoyt’s protests, indeed, really because of them, Whiting insisted on questioning the boy.

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The first questions put to him were of little interest, but when Fibsy, in his dramatic way, announced the finding of a button on the scene of the crime, Whiting pricked up his ears. Could it be a button of Landon’s clothing? Could it be traced to the prisoner?

“What kind of a button?” he asked the lad.

“A—a sus-sus-sus-shoe button!”

The final word came out in a burst of emphasis, and Fibsy, raised a defiant, determined face, as if expecting opposition. And he got it!

“Now, I protest!” said Judge Hoyt, and he was actually laughing; “this mendacious youth told me about that button some time ago; only then, he said it was a suspender button! Didn’t you, Fibsy?”

“Yep;” was the sulky reply, “and I came near callin’ it that this time, too!”

“Well, why not? or why not a coat button?”

“That’s it!” and Fibsy’s eyes sparkled; “it *was* a coat button! I remember now! It was a coat button!”

Hoyt laughed out in triumph. “And tomorrow it will be a waist-coat button,” he said; “and the day after, a sleeve button!”

“Yep,” said Fibsy staring at him; “Yep, most prob’ly! anyway, it’s a clue, that’s what it is!”

The audience shook with laughter. The funny shock-headed boy was out of place in this serious affair, but he was there, and his comical face was irresistibly humorous.

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But Judge Hoyt was solemn enough now.

“Send away that boy!” he said sternly; “is this matter to be made a burlesque on the Law? a comic opera of ‘Trial by Jury?’ Order him out, Avise, I’ll see him later.”

And Fibsy was ordered out. No one could take seriously the sort of talk he had treated them to.

But the boy was not covered with confusion. Nor did he even appear chagrined at his misbehaviour. He looked thoughtful and wondering. He gazed at Hoyt with an unseeing, almost uncanny stare. He walked to the door, and as he left the room, he exploded his breath in a deep-toned “Gee!”

Whiting looked after the boy a little uncertainly. Hoyt looked at Whiting.

But the prosecuting attorney could see no reason to recall the lad, and though he felt there was something going on he

couldn't fathom, he could get no glimmer of an idea as to its nature.

Judge Hoyt smiled, and try as he would, Whiting could not discern the meaning or intent of that smile.

Fleming Stone remained, after the others left, for a talk with Avice.

"None of them recognized me," he said, "I've not been in New York for a year or more, and though I have seen Judge Hoyt before, we were not personally acquainted."

"The judge is doing his best," said Avice, wearily, "but he is very fearful of the outcome. It is strange there is so much circumstantial evidence against Mr. Landon, when he is entirely innocent."

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"Kane Landon is his own worst enemy," declared Stone. "I have not seen him yet, but what I've heard about him does not prepossess me in his favor."

"You don't think him guilty?"

"I can't say as to that, at this moment, but I mean his attitude and behaviour are, I am told, both truculent and insolent. Why should this be?"

"It's his nature. Always he has been like that. If anybody ever accused him of wrong, as a child, he immediately became angry and would neither confess nor deny. I mean if he was wrongfully accused. It rouses his worst passions to be unjustly treated. That's an added reason, to me, for knowing him innocent in this matter. Because he is so incensed at being suspected."

"I understand that sort of nature," and Stone spoke musingly, "but it is carrying it pretty far, when one's life is the forfeit."

“I know it, and I want to persuade Kane to be more amenable and more willing to talk. But he shuts up like a clam when they question him. You’re going to see him, aren’t you, Mr. Stone?”

“Yes, very soon. I’m glad you gave me this information about his disposition. I shall know better how to handle him. And, now, Miss Trowbridge, will you call your butler up here again, please?”

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Stryker was summoned, and Fleming Stone spoke to him somewhat abruptly.

“My man,” he said, “what is the secret understanding between you and Judge Hoyt?”

“I don’t know what you mean, sir.”

“Oh, yes, you do. You are not only under his orders, but he owns you,—body and soul. How did it come about?”

The old butler looked at his questioner and an expression of abject fear came into his eyes. “N-no, sir,” he said, trembling, “no,—that is not so—”

“Don’t perjure yourself. You do not deceive me in the least. Come now, Stryker, there’s no reason for such secrecy. Tell me frankly, why the judge holds you in the hollow of his hand.”

Stone’s manner was kindly, his voice gentle, though compelling, and the old man looked at him, as if fascinated.

“He saved my life,” he said, slowly, “and so—”

“And so it,—in a way,—belongs to him,” supplemented Stone. “I begin to see. And how did Judge Hoyt save your life, Stryker?”

“Well, sir, it was a long time ago, and I was accused of—of murder, sir,—and Mr. Hoyt, he wasn’t a judge then, he got me off.”

“Even though you were guilty?” and Fleming Stone’s truth-demanding gaze, brought forth a low “yes, sir. But if you knew the whole story, sir—”

“Never mind that, Stryker, I don’t want to know the whole story. It was long ago?”

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“Yes, sir, a matter of twenty years now.”

“Then let it pass. But ever since, the judge has held your life at his own disposal?”

“Yes, sir, and glad I am to have it so. I’d willingly give it up for him, if so be he asks me.”

“Do you think he will ever do so?”

“I don’t know, sir. It may be.”

“And it may be in connection with this coming trial of Mr. Landon?”

“It may be, sir.”

“And what has he asked you to do, so far?”

Fleming Stone shot out the question so suddenly, that Stryker replied without a moment’s thought, “He says he may ask me to testify that I telephoned to Mr. Trowbridge to go to the woods that day.”

“Ridiculous!” cried Avice. “Why, Stryker, you don’t know about the birds and insects Uncle Rowly was so fond of collecting.”

“Oh, yes, I do, Miss Avice. I used to set his traps for him, often. And I know quite a lot of the long names of the queer beetles and things.”

“Can this be, Miss Trowbridge? Is Judge Hoyt capable of using a false witness thus, to win his cause?”

Avice blushed deeply, and her eyes fell before Stone's inquiring glance.

"He wouldn't be, Mr. Stone, except for—Judge Hoyt is a most honorable lawyer. He makes a fetish of punctilious practice. But there is a certain reason why—he might—"

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"You needn't say any more, Miss Trowbridge. I understand now. It is because of—pardon me if I seem intrusive,—because of *you*."

"Yes, Mr. Stone," returned Avice, simply. "Since you are here to help in this matter, I will tell you frankly, that if Judge Hoyt succeeds in winning his case and freeing Kane Landon, I have promised to marry him."

Stryker had been dismissed, and the two were alone. With infinite pity, Stone looked at the sad-eyed girl, and intuitively understood the whole situation.

"I see," he said, gently, "Judge Hoyt is going to sacrifice Stryker for you. It is a clever idea, and he will see to it, somehow, that the old man does not suffer penalty."

"Yes, it is so. Judge Hoyt told me the only way to get Kane off, is to get somebody else to swear to that telephone message. If Stryker does this, they can't prove Kane's guilt."

"It's a desperate move," observed Stone.

"It is; but Judge Hoyt is a desperate man. If he determines to do a thing, he sweeps away all obstacles."

"A strong nature. And a most capable mind. I was impressed today by his marvelous faculty of making other people see things as he does."

“Yes,” and Avice sighed. “He can do that. It is that power that I am banking on in his conduct of the trial.”

CHAPTER XXII

JUDGE HOYT'S PLAN

As soon as possible, Avice went to see Landon again, and to tell him what Fleming Stone had said. Though she was not allowed to see him alone, the warden had deep sympathy for the lovers, as he had discovered they were, and he sat as far away from them as possible, apparently immersed in a most engrossing newspaper.

Knowing of his sympathy, Avice promptly forgot his presence, and under the spell of her beauty and love, Landon did likewise.

“And you will be more—more humble, won’t you?” she was saying as hands clasped in hands, they read each other’s eyes.

“Humble! Avice, you’re crazy! Humble? I rather guess not! I didn’t kill Uncle Rowland, and, if they say I did, let them prove it, that’s all. Why, dear, they can’t prove a thing that isn’t so!”

“Do you know, Kane, this is the first time you’ve ever said to me that it isn’t so!” Avice’s eyes were gleaming with joy at the assurance.

“Because, oh, darling, because it hurt me so to have you harbor even a glimmer of doubt! How could you, dearest? Eleanor didn’t.”

“Didn’t she?” Avice showed a flash of jealousy. “What is she to you, Kane?”

“Merely an old friend. We were good chums in Denver.”

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“Then why did you pretend you were strangers?”

“Oh, you know, Avice, I wanted that money right then and there. When Uncle wouldn’t give it to me I telephoned and asked Eleanor to lend it to me. She said she’d meet me at the library and bring some bonds that I could sell.”

“Why didn’t you come to the house?”

“I didn’t want to,—on that errand. I suppose I was foolish, but my pride stood in my way. And, too, there was haste. I wanted to send the money out West at once, and then, knowing the mine business was all right, go and see you with a free mind.”

“Well, and then you did meet Eleanor at the Library, but you said at the inquest that you didn’t get the money.”

“What a little cross-examiner it is! No, the bonds she brought me, were some that are now at a low price, but are sure to go up soon. I couldn’t do her the injustice of selling them at the present market, so I refused.”

“And she telephoned you late that night.”

“Yes, to tell me of Uncle’s death. She was the only one who knew I was at Lindsay’s apartment. Of course, dear, I had expected to see you that day, but I was so upset by my quarrel with Uncle Rowland,—he was pretty hard on me,—that I couldn’t trust myself to see him till my temper had cooled off a little. Don’t be jealous of Eleanor Black, Avice, she is a firm friend of yours. She is a frivolous, shallow-hearted woman, but she is a strong and loyal friend. And she was really fond

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of Uncle, though she doesn't seem to mourn for him very deeply."

"And she doesn't care who killed him!"

"That is part of her volatile nature. She never looks back. To her, only the future counts. I don't believe she does care who the murderer is. Who do you think, Avice?"

"I can't form any idea, Kane. I suppose it must have been some stranger, a robber or Black-Hander. Don't you?"

"I don't know. It doesn't seem altogether likely,—Avice, is Fleming Stone coming to see me?"

"Yes, don't you want him to?"

"Indeed I do. I've formed some theories myself, during the long lonely hours I spend here, and I'd like to talk them over with Stone. Avice, what about Stryker? I mean about his bolting, when he feared he would be suspected."

"He says that was sheer fright. He knew he was innocent, but he couldn't prove an alibi, so he ran away. He's very nervous and frightened of late, anyway. And if Judge Hoyt makes him swear he sent that telephone message, I just know he'll break down and they'll think he's the murderer, sure."

"Perhaps he is. There's the handkerchief, you know. And—oh, don't bother your poor little tired brain over it, darling! Leave it to the detectives. Duane doesn't amount to much, does he?"

"No. But Mr. Stone will, I'm sure of that."

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"And Harry Pinckney, what's he doing?"

Avice looked embarrassed. "I had to snub him, Kane. He—he was—"

“He fell in love with you! Oh, Avice, you heartbreaker! Who doesn’t adore you! Look out for this Stone!”

“Oh, he’s married. Almost a bridegroom, in fact. Most romantic affair, I believe. But you know, Kane, if you are freed by Leslie’s efforts, I’ve promised—”

“You’ve promised me, my girl,” and Landon’s voice rang out exultantly, “promised me all your love and faith and trust, now and forever. Do you suppose for a minute, that Leslie Hoyt can take you from me? Never!”

But Avice only shook her head sadly. Kane was young and impetuous and hopeful. But Judge Hoyt was older and more experienced, and if he said Kane could be freed only by his efforts, Avice strongly believed it was so.

Avice went away, and it was not much later when Fleming Stone was admitted to an interview with Kane Landon. Still posing as Mr. Green, an old friend of the prisoner, admittance was granted him under the regular rules for visitors. But a disclosure of his real identity to the authorities secured for him a private session and, wasting no time, the detective began to talk earnestly of the murder and the impending trial.

Kane at first showed a spirit of truculence and answered curtly the remarks of his visitor. But seeing at once that Stone presupposed his innocence, Landon became friendly, and talked and listened with eagerness.

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“My uncle and I wrote occasionally,” Kane said, “and his letters had been most friendly of late, and he had urged me to come back East to live. I was ready to do so, as soon as I had enough money to marry and settle down. Then the chance for a splendid mining investment turned up, and I lit out for New York, feeling sure I could put it to Uncle Rowland in such a way that he would give or lend me the money necessary. But he wouldn’t, and he was so harsh and unjust that I decided to

wait a day or two before going to his house. So I went to Lindsay's, an old chum of mine, and, as he was going away for a few days he lent me his diggings. But you know all this. Let us get to the things to be discussed."

"To my mind," said Stone, "the main clue is that handkerchief. Without a doubt it is Stryker's, but Stryker never left it there. It is a plan to incriminate the old man. I'm sure of that. Now, who did it?"

"I can't agree with you about that, entirely. It seems to me, that that handkerchief was in my uncle's pocket when he was killed, and was used by the murderer and left there. I know my uncle's careless habits, of old, and he was quite as likely to have the butler's handkerchief in his pocket as his own. When I lived with him, he wore my cap or picked up my gloves quite unconsciously. It wasn't exactly absentmindedness, but extreme carelessness in such matters. Why, I remember his going to church once, and at prayer time he shook out a clean, folded handkerchief from his pocket, and it was one of Avice's! I drew her attention to it, and we both snickered right out in meeting. No, Mr. Stone, that handkerchief is Stryker's, of course, but it's no clue."

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"I didn't know of this carelessness of Mr. Trowbridge; it does put a different light on the matter. Well, then, there's the pencil picked up at the scene of the crime. The police have paid little, if any, attention to that, and it seems to me important. You don't know, I suppose, as to the pencils your uncle used?"

"No; but they all said,—the office people and the home people both,—that Uncle Rowland used that make and letter always. So it was doubtless his."

"I only saw it for a moment. I shall examine it more closely. But I observed it was sharpened with an automatic sharpener. Did you notice one on your uncle's desk?"

“No, and I don’t believe he would have one. He was too old-fogy to use modern contraptions much. Maybe the murderer dropped it.”

“Maybe he did. It is often on such small things that great conclusions hinge. What do you think of that office boy?”

“Fibsy? He’s a case. A little fresh, perhaps, but a bright chap, and devoted to my uncle’s memory.” [265]

“I don’t think he’s fresh, exactly. But I do think he’s bright,—exceptionally so, and I have asked him to help me—”

“Fibsy! To help Fleming Stone! Excuse me if I seem amused.”

“Oh, I don’t mind your amusement. Now, here’s the case as it stands, Mr. Landon. You didn’t telephone to Mr. Trowbridge that afternoon at two, calling him ‘Uncle’ did you?”

“I did not.”

“And there are no other nephews?”

“None, that I know of.”

“Then, somebody did it to throw suspicion on you. There seems to be no getting away from that.”

“Quite right.”

“Again, if I am right about the handkerchief being a ‘planted’ clue, some one tried to throw suspicion on Stryker.”

“Yes.”

“Again, if the pencil was purposely left there, and it may have been, that’s another effort to mislead.”

“Well?”

“Well, if these ‘clues’ were arranged with such meticulous care and precision, it surely argues a clear, clever brain that planned them, and diverts our search from such criminals as thugs or highway robbers.”

“That’s all true, Mr. Stone, and I wonder our police didn’t see that point at once.”

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“Police are a capable lot, but rarely subtle in their deductions. The obvious appeals to them, rather than the obscure. But that boy, Fibsy, has the brain of a thinking detective. With training and experience, he ought to develop into something remarkable. Now, I must be going. I fancy my time is up, and I have an appointment with young McGuire this afternoon.”

Fleming Stone went away, better pleased with Kane Landon than he had expected to be. Several people had told him of Landon’s perverseness and flippancy, and after seeing him, Stone had concluded that while Landon’s nature was irritable and his temper quick, he could be easily managed by any one who cared for him and understood him.

Meantime Judge Hoyt was calling on Avice, and was telling her, exultantly, that he had plans laid that augured success for his case.

“You’re going to do something wrong!” Avice exclaimed.

“Hush! Never put that in words! The walls have ears. If I do, Avice, you must never ask what I have done. My God, girl, isn’t it enough that I perjure my soul, jeopardize my reputation and forfeit my self-respect, for you, without having to bear your reproaches? Rest assured, it is only after failing in every honorable attempt, that I can bring myself to do—what you call something wrong.”

“Forgive me, Leslie,” and Avice was touched by the look of agony on the strong man’s face. “I do know you do it for me, and I will never reproach you. But you know, if I can accomplish Kane’s acquittal myself—”

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“But you can’t! How can you? Avice, you haven’t engaged Stone, have you?”

“Why, you told me not to,” said the girl, prevaricating purposely.

“That’s right,” and the judge took her words to mean denial, as she hoped he would. “There’s no use calling him in, for, dear, he is very clever, I am told, and if I do this thing,—this wrong,” the fine eyes clouded every time Hoyt referred to his projected plan, “Fleming Stone might discover it,—though Duane never will.”

“Then you’re afraid of Mr. Stone?”

“In that way, yes. If I do something secret to win our cause,—to win *you*, it must remain secret or be of no avail. If Stone were here and discovered my—my plan,—he would expose it, and I should be disgraced for life,—and our case would be lost.”

“You still think Kane guilty, then?”

“Avice! Who else is there to suspect? Where is any other possible way to look? And so, I must invent a suspect. I beg of you, my darling, do not impede or prevent my progress,—it is all for you. You asked of me what is practically an impossibility. If I achieve it, it will be at great,—at colossal cost. But I undertake it, for your sweet sake. Avice! Beloved! Can you imagine, have you the faintest idea of how I love you? Who else would sin for you? Do you know the impeccability of my past record? Do you know what it would mean to me to have the slightest smirch on my untarnished

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honor? Yet I chance this for you. I do not expect to be found out, but there is, of course, a risk. That risk I take, my glorious girl, for you. And I take it willingly, gladly, whatever the penalty, because—I love you.”

The last words, whispered, thrilled Avice to the soul. She did not love Judge Hoyt; her heart was bound up in Kane Landon, but this impassioned declaration, every word throbbing with truth, moved her,—as it must have moved any woman. She felt a guilty sensation at the thought of Fleming Stone’s connection with the case, but she was not willing to retract. It must go on. Kane must be exonerated, if possible, without Leslie’s help, and then she would be free to join her heart’s true love. And if Kane were freed by Judge Hoyt’s plans,—Avice shuddered to think of her promise. Well she knew that the judge would hold her to it, no matter how much Landon protested the contrary. Landon was determined, but his determination was a weak thing compared with the iron will of Judge Hoyt.

CHAPTER XXIII

IN KITO'S CARE

The case of "The People vs. Kane Landon" was before the court and jury. Few, if any, of the listening audience realized the great amount of time, thought and skill that had been expended in preparation or had any idea of the care with which the district attorney had framed his opening speech.

Whiting well knew the responsibility resting on the jury's first impression of the case, and also their judgment of himself. He knew too, his jurors' records, and he was alert and alive to all the effects of his short but comprehensive statement.

Judge Hoyt was warily on the defensive, and though Whiting had built up his case most carefully, Hoyt hoped to prove that the evidence was not crucial.

First came the details of the crime. Mysterious rather than revolting were the circumstances related of Rowland Trowbridge's death.

Proceedings went on slowly, for the two lawyers were masters of their profession, and each foresaw and was prepared to evade the traps of the other.

Moreover the situation was difficult because of the lack of material. There were no star witnesses. The clues led only to conjecture and theory, and while facts were conceded, the inferences to be drawn from them were bitterly contested.

The two men eyed each other thoughtfully. Whiting, big and burly, with a stubborn jaw and belligerent air; Hoyt, tall and aristocratic, with the dominating manner of one accustomed to dictate terms.

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When Whiting emphatically urged Landon's motive, Hoyt assented, but added that since that alleged motive was merely to receive at once his legacy, any other beneficiary under the will must be admitted to have had the same.

Regarding the district attorney's insistence on Landon's opportunity, Hoyt agreed that the prisoner was in the woods at the time, but any one else might also have been there. And, moreover, the fact that the prisoner had voluntarily told of his presence there, was not a sign of a guilty conscience.

The quarrel between Landon and his uncle, Hoyt dismissed with the comment that that was the story of a boy who was an acknowledged prevaricator, and could not be taken into consideration.

"The evidence is vague, general and inconclusive," he said; "It is not enough to condemn the prisoner, and indeed it in no instance connects the accused with crime. I myself knew Mr. Trowbridge well, and I knew he often used figurative language. It was entirely like him to say, 'Cain killed me!' meaning a reference to an unknown murderer. But it was utterly unlike him to say to the Swede, a perfect stranger, 'Kane killed me,' meaning his nephew. Why should he speak of Mr. Landon by his first name to a stranger? He never did any such thing! The similar sound of the two names is a mere coincidence, and must be regarded as such by all fair-minded people."

Aside from the argument, Judge Hoyt was pinning his faith to his marvelously wide knowledge of the law governing every aspect of the matter in hand. He well knew that a prosecutor with a really clear case, may lose it because he has neglected

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to look up some points of law which may unexpectedly arise, and the defence was hoping for something of this sort.

Again, it is a fact, that juries are more likely to acquit in a murder trial than in case of other crimes. Unless the prisoner at the bar is of the depraved criminal class, a jury is inclined to give him every possible benefit of doubt.

And, knowing this, and knowing many other “tricks of his trade,” Judge Hoyt took advantage of every condition and every circumstance; and as the trial proceeded from day to day, the probabilities of the outcome vibrated from one side to the other largely in proportion to the oratorical eloquence of the two counsels.

Fleming Stone attended the trial only occasionally. He had his own agent there, reporting it for him, and he himself was busy untangling clues whose existence others were unaware of or had ignored.

On one particular afternoon, Stone had told Fibsy to meet him at his office at two o’clock, and the boy did not appear.

This was a most unusual thing, for Fibsy, working with Stone,

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had proved absolutely reliable in the matter of obeying orders. After waiting fifteen minutes, Stone telephoned to the boy’s home.

“Why,” responded “Aunt Becky,” “Fibs went out an hour ago. Somebody telephoned for him,—I don’t know who,—and he flew right off. No, it must have been important, for he went off without his dessert.”

Like a flash, it came to Stone that there was something wrong.

But what it was, even his cleverness failed to fathom. He telephoned the Trowbridge house, Judge Hoyt’s office, the

courtroom, and any place he could think of where there was a chance of finding Fibsy, but all without success. Then, setting detectives in search of the missing boy, Stone went on with his own work of drawing in his widespread net.

And Fibsy?

The telephone message had said that he was to come at once to the corner of Broadway and Thirty-second Street, where Mr. Stone would meet him in a taxicab.

Fibsy grabbed his cap and sped to the appointed place. There he found a waiting cab, whose driver nodded, and said, "Hop in."

Fibsy hopped in, and found inside a Japanese boy apparently about his own age.

"All light," the Japanese observed, with a stolid countenance. "Mr. Stoan, he tell me bling you. All light."

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Fibsy, though a little surprised, accepted it all, for Fleming Stone frequently sent for him in unexpected ways, and sent him on unexpected and strange errands.

The cab went quickly uptown, and turning into a cross street in the upper West Seventies, stopped before a rather fine-looking house.

"Get out," said the Jap, briefly, and Fibsy obeyed. The house was not Mr. Stone's, of that Fibsy was sure, but he was accustomed to obey orders, even through an emissary, and nothing had ever gone wrong by so doing.

The Japanese produced a latch-key, dismissed the cab, and the two went into the house.

“Mr. Stoan, he upstairs,” the taciturn guide vouchsafed, leading the way.

Fibsy followed, up two flights, and was ushered into a large room, in the location known as “the middle room”; that is, it was between the front and back chambers, and had no outside window, save on a small airshaft.

A little curious, but in no way alarmed, he entered, and the Jap followed him, and turned on an electric switch. By this illumination, Fibsy discovered that he was in a bedroom, a fairly well-appointed and tidily kept chamber, apparently in the abode of the well-to-do.

By this time, and perhaps more because of the expression on his companion’s face, than the situation itself, Fibsy felt a slight thrill of doubt.

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“Where am I?” he said, pleasantly. “Where’s Mr. Stone?”

“No Mr. Stoan here,” and the Japanese grinned. “You fall in tlap. Hee, hee! You fall eas’ly! Well, Mr. Flibsy, you here to stay.”

“To stay! Trap! Whaddye mean, you yellow sneak? Lemme out this minute, or I’ll show you who’s who wit’ the wallop! I’ll fuss up that map o’ yourn till your own grandmother wouldn’t know it!”

“Aexcuse me, Mr. Flibsy, you don’ say nawthin’ ’bout my ancestors! They sacred to Jap’nese. You be p’lite or I thing I quarrel with you.”

“Oh, you thing you will, do you? Now, stop this nonsense, and—”

“Aexcuse me. This not non-senze. Behole! You here,—here you stay. I *bed* you stay!” and the Japanese with low, mocking

bow, went out at the door and began to draw it to after him.

“Here, you, come back here!” and Fibsy’s quick perceptions took in the fact that he had been trapped by some one, and that he was about to be locked in. “Come back, what’s-your-name?”

“My name Kito, an’ I ask you be rev’re’n ’bout my august ancestors.”

“Bother your ancestors! I mean—bless ’em!” for Kito’s eyes narrowed at the first word. “Now, you come back a minute, and put me wise to this song and dance. What house is this?”

“My master’s.”

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“And you’re his valet? cook? head stuff? what?”

“His ver’ humble servant,” and Kito bowed low. “An’ at his orders, I mus’ log you in. Goo’ by.”

“No, you don’t!” Fibsy sprang at the Japanese and fully expected to land his clenched fist at its destination, when instead, he gave a shriek of pain, as Kito deftly caught the descending arm and with a peculiarly dextrous twist, almost,—it seemed to Fibsy,—broke it.

“I had a hunch I was pretty good,” the injured one said, ruefully, “but I hand it to you! Show me how, will you, It’s that thing they call juicy jitsoo, ain’t it?”

“Jiu jitsu, yaes. Now you know who goin’ be who? eh? What you thing?”

“I think you’re a wonder, an’ you gotter crack me wise to that some time, but not now. Now I’m mainly int’rested in gettin’ outa here.”

“Yaes?” And the Japanese looked mildly amused.

This made Fibsy serious. "Say," he said, without bluster, for Kito was gazing at him steadily, "tell a feller a few things, can't you? Who is you master?"

"I thing I not say it good. This United States names too much for me. So I carry card, this-away." Kito drew from his pocket a worn card and held it out for inspection.

"Mr. James Brent Auchincloss," it read.

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"Huh," said Fibsy, "don't wonder it's too much for you, son. But looky here, you've got in wrong, somehow. I don't know Mr. Autchincloss, myself. Lemme go, there's a pal,—an' I'll call it square."

"Aexcuse; my orders to log you in," and this time, Kito slid out of the door, and the next instant Fibsy heard the key grate in the lock.

First he gave a long whistle, then he blinked his eyes several times, and then he set to work, systematically, to investigate his prison.

A few quick glances showed him he was in a woman's room, and one recently occupied. There were hairpins on the dresser and a pair of curling tongs beside them. The furniture was of black walnut, old-fashioned but of good workmanship. The bed was neatly made up, and the closet, into which Fibsy looked, was empty, save for a pair of woman's shoes and an old skirt or two.

There was one other door, and pulling it open, the boy found it led to a bathroom, plain and clean, not at all luxuriously appointed.

He put his head out of the bathroom window. There was a sheer drop of three stories to the ground. This was on the same airshaft as the bedroom window gave on. The windows

on the other side of the shaft were in the next house, and were all with closely drawn shades.

“Gee!” thought Fibsy, “I must set me bean to woikin’—”

In critical moments, Fibsy, even in thought, reverted to his street slang, though he was honestly trying to break himself of the habit.

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“I’m in a swell house,” he assured himself, “an’ this is the woik-goil’s room. Folks all gone to the country, an’ neighbors all gone, too. Oh, I’m on. Dis ain’t no mistake, I’m kidnapped,—that’s what’s come my way! Now, who does it?”

But though he had the whole afternoon to put uninterrupted thought on that question, it remained unanswered. He cudgeled his brain to remember any one by the name of Auchincloss, without success. He pondered deeply over the possible reasons any one could have for incarcerating him in this way, but could think of none. He returned at last to his theory of mistaken identity, and concluded that he had been mistaken for some one else.

Though with a subconsciousness of its futility, he banged on the door, and he hung out of the window and yelled, and he stamped and pounded and banged in every way he could think of, without getting the least response of any sort.

The awful thought struck him that he was to be left here to starve to death, and this so awed him that he sat perfectly still for two minutes, and then began to make a racket with redoubled vigor.

At last, worn out by mental and physical exertion, he threw himself on the bed and dropped into fitful slumber.

He was roused by the opening door, and beheld the Japanese enter with a tray of food.

“Nixy on the starvation stunt, then,” he cried, joyously. “Why, I say Kito, if you don’t come across with ’most as good eats as me Aunt Becky, an’ that’s goin’ some!”

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Kito stood, with folded arms, watching his prisoner’s appetite assert itself. Then he said, “You make ’nother piece racket like those, an’ I break your honorable arm.”

“You will!” And for a moment, Fibsy sprang to action. Then remembering the skill of his foe, he fell into dejection again.

“Aw, now Kite,” he began, in a conciliatory tone, “let’s chew this over,—me’n you. There’s some mistake, you know.”

“Aexcuse, no mis-take. You here to stay. You can’t get aout. You holler an’ bang-bang, I break your arm. You jump out window, you break your leg. So.”

“Then I’m to stay here and be mousy-quiet?”

“Yes, so as a mice.”

“Yes, I will! Say, Kite, be a sport. I’ll make it up to you, if you’ll just lead me to a telephone, an’ let me fix up this here mistake. I don’t know any Auchincloss—”

“No mis-take. My honorable master never make mis-take.”

“Oh, don’t he? Well, tell me this. How long do I live here—on the house?”

“In the house?” corrected Kito gravely. “I not know. Two, t’ree, fo’ weeks’ mebbe more.”

“Mebbe nothing!” roared the irate Fibsy. “Stay here all that time! Why, you yellow-gilled crab—”

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Fibsy paused, for the Japanese merely lifted his hand and flexed his long yellow fingers in a suggestive way, that was

decidedly unpleasant.

“There, there, I didn’t mean anything. Oh, well, if you wanta be fussy!”

Fibsy saw at once the utter uselessness of trying to threaten, cajole or reason with the Oriental. Though he looked no older than the boy, he was a man, and one skilled in his country’s athletic and wrestling methods.

Without further words, Kito waited for Fibsy to finish his supper, and then took away the tray, locking his prisoner in the room.

This went on for three whole days. Fibsy was comfortably housed, all his physical wants provided for, and Kito even brought him a pile of old magazines to read, but no further information was given him as to the reason for his imprisonment.

By the fourth day the nervous strain had begun to tell on the captive boy. No amount of thinking could reveal the reason of his plight, and no theory account for it. Hours at a time he tried to escape or tried to plan some means that might lead to freedom, but there was no chance for ingenious attempt, or possibility of conquering or eluding Kito.

It was this very day that Fleming Stone came to the house, but Fibsy did not know it, nor did Stone have the slightest idea that the boy he sought so diligently was there.

Kito answered Stone’s ring at the door, and when that gentleman pushed his way a little brusquely through the reception room to the library, the Japanese followed, politely, but with a wary eye and a tense arm.

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“Good!” Stone exclaimed, looking over the appointments of the large library table. “Your master has no pencil sharpener.

Now, my man, I am an agent for these,” and Stone took from his bag a small contrivance for sharpening lead pencils. “And our new method of selling these goods, is to leave one with a prospective customer, feeling sure that a trial of it will mean a quick sale. Has your master ever used a thing, like this?”

Kito had not followed all Stone’s speech, his English being somewhat limited, but by the actions of the “agent” the Japanese understood.

“No good,” he said, scornfully, “my master no want it.”

“How do you know?”

“I know.”

“Has he one?”

“No.”

“Did he ever have one?”

“Yaes.”

“Not like this.”

“Yes, just all same like that one.”

And then Stone, with his almost hypnotic power of suggestion, so hinted and insinuated and urged, that finally Kito, after a short search in a closet, triumphantly showed a pencil-sharpener exactly like the one Stone had offered.

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Looking chagrined and disappointed, Stone returned his to his bag.

“Why did your master stop using it?” he asked, noting the pencil on the desk tray, undoubtedly sharpened with a knife.

“Two, four weeks, mebbe more.”

“But when?” and Stone picked up a calendar. “When?”

Slowly tracing back through his memory, Kito suddenly smiled.

“Then!” he exclaimed pointing to a date. “I know, be-cause, the same day almost, my birt’day. An’ I hoped my master give him to me for plesent. But no.”

“That’s too bad,” agreed Stone. “Well, if your master doesn’t care for his, of course he won’t buy mine. Good-day.”

Picking up his bag, he went away, and Kito closed the door behind him.

The date the Japanese had pointed to, was the day after the murder of Rowland Trowbridge!

CHAPTER XXIV

ESCAPE

Fibsy was at his wits' end. And the wits' end of Terence McGuire was at some distance from their beginning. But he had scrutinized every step of the way, and now he disconsolately admitted to himself that he had really reached the end.

He had been shut up in the strange house nearly a week. He was most comfortably lodged and fed, he had much reading matter supplied for his perusal, though none of it was newspapers, and Kito offered to play parchesi with him by way of entertainment. The Japanese was polite, even kindly, but he was inflexible in the matter of obeying his orders. And his scrupulous fidelity precluded any possibility of Fibsy's getting away, or even getting out of the rooms allotted to his use.

But when the boy rose one morning after a refreshing night's sleep and had a satisfying breakfast, and was at last locked in his room for the morning, he sat down on the edge of the bed, and clinched his impotent young fists in rage and despair.

"I gotta make me bean woik better," he groaned to himself, the tenseness of the situation causing him to revert to his use of street slang. "I gotter get outen here, an' most likely it's too late now. I'm a nice detective, I am, can't get out the fust time I'm in a hole! Gee! I'm gonta get out!"

Followed a long session of hard thinking, and then a gleam of light came to him. But he needs must wait till Kito brought up his dinner.

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And at noon or thereabouts, Kito came with the usual well-appointed tray of good food.

Fibsy looked it over nonchalantly. "All right, Kite," he said, "but say, I gotta toothache. I wish you'd gimme a toothpick,—not quill,—the wooden kind."

Sympathetic and solicitous, the Japanese produced from his own pocket a little box of his native toothpicks, of which Fibsy accepted a couple, and pocketed them. And then, came the strategical moment. His purpose must be effected while the Jap was still in the room. And it was. Sidling to the half-open door, Fibsy called Kite's attention to a dish on the tray, and then thrust a toothpick quickly in beside the bolt of the lock, and broke it off short.

In order to keep his jailer's attention distracted, Fibsy then waxed loquacious, and dilated on the glories of a wonderful movie show.

Kito listened attentively, and though he said no word about going to see it, he inquired carefully where it was, and Fibsy's hopes began to rise.

"But if ever you go, Kite," he said, "you want see the very beginnin', 'relse you lose all the fun."

At last, Fibsy finished his dinner and the Jap took up the tray. Breathlessly, but unnoticeably, Fibsy watched him, and as he went out of the door, and turned the key in the lock, he didn't notice that the bolt didn't shoot home as usual, but the door was really left unlocked.

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Fibsy's heart beat like a trip-hammer as he heard the catlike footsteps go down stairs.

Unable to wait, he tried the door, and found it was open. He slipped out into the hall. Down two flights, he could hear the Japanese, going about his business. Warily, Fibsy crept down one stair-case. Then he stepped into the front room on that floor. It was evidently the room of a grand lady. Silver trinkets were here and there, but Fibsy's quick eyes noted that the bureau was dismantled, and there were no appearances of actual occupancy.

"Mrs. Autchincloss is away fer the summer," he said, sapiently. "Lessee funder."

It was a risk, but Kito rarely came upstairs so soon after dinner, so the boy went through to the back room on the second floor.

"Bachelor," he said, nodding his head at the appointments on the chiffonier. "Stayin' in town. Kinder Miss Nancy,—here's a little sewin' kit some dame made fer him. An' the way his brushes an' things is fixed, shows he ain't got no wife. So this ain't Mr. Autchincloss. Well, lemme see. Writin' table next. Not much doin'. Fixin's all fer show. Spose he writes down in the liberry. Wisht I could git down there. Here's a lot of his friends."

Fibsy had spied a pack of snapshots and small photographs, and hastily ran them over. They were all unknown faces to him, except one which chanced to be the postcard of Judge Hoyt taken in Philadelphia station.

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"Hello! The guy wot lives here is a frien' o' Judge Hoyt. No, not a friend, but a nennermy. Cos, I dope it out, that friend guy's locked me up here fer fear I'll help Judge Hoyt's case. Oh, no, I dunno, as it's that. I dunno what it is. I wisht I could get word to Mr. Stone. If I only dared use that telephone. But

Kite would fly up here quicker'n scat! Well, I'll swipe this card, cos it looks interestin'."

Then Fibsy, still with a wary eye on the hall door, searched the room and its dressing-room and closets, and was rewarded by some further discoveries, one of which was a dirk cane. This article was among a number of other canes and umbrellas in the far end of a deep closet.

"Now, o' course," he mused, "maybe tain't the right cane, an' maybe 'tis. But if it is, then this here's the moiderer's house, an' he locked me in cos he's scared o' me. Well, it's all too many fer me. Hello, wot's this?" He opened a small door in the side of the deep closet. There seemed to be an elevator shaft, with no car. As a matter of fact, it was a laundry chute, but Fibsy was unacquainted with conveniences of that sort, and didn't know its purpose. But he saw at once that the shaft led to the basement, and that it went upward, to a similar opening in the room above. And the room above was his room!

Softly he crept back upstairs, and re-entered his room. He dislodged the fragment of toothpick, and closed the door. If Kito discovered it was unlocked, he couldn't help that now. He went straight to his own closet, and sure enough there was the same sort of a slide door, and it gave onto the same chute, hung over it. At last a possible way of exit. Precarious, for he had not yet decided on a safe way of descending a bare shaft, but his mind was at work now, and something must come of it.

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And his mind produced this plan. He knew where Kito was now. Always at that time in the afternoon, the Japanese was in his own room in the rear part of the first floor of the house. Previous desultory chat had brought out this fact. And Fibsy's plan was to make a soft bed at the foot of the shaft and jump down. Dangerous, almost positively disastrous, but the only chance.

“‘Course I’ll break me bloomin’ back or legs or suthin’, but anyway the horsepital’d be better’n this, an’ then I could get aholt of Mr. Stone.”

So, swiftly and noiselessly, he removed all the bedding from his bed, and down the chute he threw the mattress, dropping on it the blankets and pillows.

“Here goes!” he said, not pausing to consider consequences, and, balancing for an instant on the ledge, he let himself go, and came down with a soft thud on the pillows.

Whether it was because he relaxed every muscle and fell limply, or whether it was because of a kind fate looking after him, he sustained no injuries. Not a bone broke, and though the jar was stunning, he recovered after a few minutes, and sat up half-dazed, but rapidly becoming alert, and looking about him.

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The semi-darkness of the shaft showed him the exit, and it proved to be into the laundry in the basement of the house.

The rest was easy. Listening intently for a sound of Kito, and hearing none, Fibsy deliberately walked out of the basement door, and into the street.

He did not hurry, being desirous not to attract attention in any way, and as he went through the area gate, he looked up and noted the number of the house. It was as he had surmised, a house closed for the summer during the absence of the family. The Japanese butler had been retained as caretaker, and whoever was Fibsy’s captor, gave the orders. Kito was so trustworthy and faithful, there could have been no chance of Fibsy’s escape save by some such ingenious method as he had used.

“Only,” he blamed himself, “why the dickens didn’t I think of it sooner?”

Reaching the corner, he noted the street the house was on, but the fashionable locality, in the upper West Seventies, was unfamiliar to him, and he had no idea whose house he had been living in.

Nor had he had time to find out. An investigation of a street directory might have told him, but he concluded to lose no time in communicating with Fleming Stone.

But first, he telephoned his aunt to relieve the anxiety he knew she must be feeling.

“It’s all right, Aunt Becky,” he announced, cheerily. “Don’t you worry, don’t you fret. I’m on important business, and I’ll be home when I get there. So long!”

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Then he called up Fleming Stone’s office. The detective was not in, but Fibsy made it so plain to a secretary that Mr. Stone must be found at once, that the finding was accomplished, and by the time Fibsy in his taxicab reached the office, Fleming Stone was there too.

“Terence!” exclaimed the detective, grasping the boy’s hand in his own. “Come in here.”

He took the lad to his inner sanctum, and said, “Tell me all about it.”

“There’s such a lot, Mr. Stone,” began Fibsy, breathlessly, “but first, how’s the trial goin’? I ain’t seen a pape since I was caught. I wanted to get one on the way here, but I got so int’rested in this here card,—say, look here. This is a pitcher of Judge Hoyt in the Philly Station the day of the moider. You know he was in Philly that day.”

“Yes, he was,” and Stone looked harassed. “He certainly was. He wrote from there and telegraphed from there and I’ve seen

a card like the one you have there, and that settles it. I wish I could prove he wasn't there."

"Well, Mr. Stone, he prob'ly was there, all right, but this here picture wasn't took on that day."

"How do you know?"

"De-duck-shun!" and Fibsy indulged in a small display of vanity, quite justified by his further statement. "You see, this card shows the big news stand in the waitin' room. Well, the papers on the news stand ain't that week's papers!"

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"What?"

"No, sir, they ain't. You see, I read every week 'The Sleuth's Own Magazine', an' o' course I know every number of that 'ere thing's well's I know my name. An' here, you see, sir, is the magazine I'm speakin' of, right here in the picture. Well, on it is a cover showin' a lady tied in a chair wit' ropes. Well, sir, that roped lady was on the cover two weeks after Mr. Trowbridge was killed, not the day of the moider."

"You're sure of this, Terence?" and Stone looked at the boy with an expression almost of envy. "This is very clever of you."

"Aw, shucks, tain't clever at all. Only, I know them magazines like a mother'd know her own children. I read 'em over an' over. An' I know that picture on that cover came out more'n two weeks later'n what Judge Hoyt said it did. I mean, he didn't have that card taken of himself on the day he said he did."

"Motive?"

"That I dunno. I do know Judge Hoyt is tryin' sumpin' fierce to clear Mr. Landon—has he done it yet?"

“No, Terence, but the trial is almost over, and I think the judge has something up his sleeve that he’s holding back till the last minute. I never was in such a baffling mystery case. Every clue leads nowhere, or gets so tangled with contradictory clues that it merely misleads. Now tell me your story.”

Fibsy told the tale of his imprisonment, and the manner of his escape. He told the street and number of the house, and he told of his discovery of a dirk cane in a cupboard.

“An’ Mr. Stone,” he went on, “I found the shoe the button came off of.”

“You’re sure it was a shoe button?” and Fleming Stone smiled at recollection of the button that had been described as of several varieties.

“Yes, sir. An’ every time I said that button was a kind of button that it wasn’t, I was glad afterward that I said it. Yes, Mr. Stone it’s a shoe button an’ in that same house I was in, is the shoe it useter be on.”

“Look out now, Terence, don’t let your zeal and your imagination run away with you.”

“No, sir, but can’t you go there yourself, and get the shoe and the cane, or send for ’em, and if they fit the cane mark in the mud, and if the button I’ve got is exactly like those on that shoe, then ain’t there sumpin in it, Mr. Stone? Ain’t there?”

The freckled face was very earnest and the blue eyes very bright as Fibsy waited for encouragement.

“There’s a great deal in it, Fibsy. You have done wonderful work. In fact so wonderful, that I must consider very carefully before I proceed.”

“Yes, sir. You see maybe the place where I was, might be the house of that Mr. Lindsay, he’s a friend of Mr. Landon’s—”

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“Wait a bit, child. Now you’ve done much, so very much, have patience to go a little slowly for the next move. Do you remember what the inspector told about the noises he heard when the Italian woman first telephoned him about Mr. Trowbridge?”

“Yes sir, every woid. Rivetin’ goin on. Phonograph playin’ an’ kids whoopin’-coughin’ like fury.”

“Well, from the Board of Health I’ve found the general location of whooping-cough cases at about that time, now if we can eliminate others and find the Italian ones—”

“Yep, I und’stand! Goin’ now?”

“Yes, at once.”

Calling a taxicab, they started, and Stone went to an Italian quarter near 125th Street, where whooping-cough had been prevalent a few weeks previous.

“Find the house, Fibsy,” he said, as they reached the infected district.

Unsmilingly, Fibsy’s sharp, blue eyes scanned block after block.

“New buildin’,” he said, at last, thoughtfully; and then, darting across the street, to a forlorn little shop, he burst in and out again, crying, “Here you are, Mr. Stone!”

Stone crossed the street and entered the shop. There was a swarthy Italian woman, and several children, some coughing, others quarreling and all dirty.

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A phonograph was in evidence, and Fibsy casually looked over the records till he found the rag-time ditty the inspector had recalled.

He called up headquarters and asked Inspector Collins if that were the music he heard before. "Yes," said Collins, and Stone shouted, "Hold that wire, Fibsy, wait a minute," and dragging the scared woman to the telephone he bade her repeat the message she had given the day of the murder.

"Same voice! Same woman!" declared the inspector, and Stone hung up the receiver.

Then he soothed the frightened Italian, promising no harm should come to her if she told the truth.

The truth, as she tremblingly divulged it, seemed to be, that some man had come to her shop that afternoon, and forced her to telephone as he dictated. She remembered it all perfectly, and had been frightened out of her wits ever since. He had given her ten dollars which she had never dared to spend, as it was blood money!

"Describe the man," said Stone.

"I not see heem good. He hold noosa-paper before his face, and maka me speak-a telephone."

"How did he make you? Did he threaten you?"

"He have-a dagger. He say he killa me, if I not speak as he say."

"Ah, a dagger! An Italian stiletto?"

"No, not Italiano. I not see it much, I so fright'. But I know it if I see it more!"

After a few more questions, Stone was ready to go. But Fibsy sidled up to the woman. “Say,” he said, “what you give your bambinos for the cough, hey? Med’cine?”

“No, I burna da Vaporina, da Vap’ da Cressar lina——”

“Gee! Quite so! All right, old lady, much obliged!”

After that matters whizzed. On the ride down town, Fibsy told Stone much. Stone listened and made that much more. The two acted as complements, the boy having gathered facts which the man made use of.

CHAPTER XXV

THE WHOLE TRUTH

The two went straight down to the office of the district attorney. "I must send a message to Mr. Whiting at once," Fleming Stone said to a secretary there.

"Mr. Whiting is in the Court of General Sessions, just below this office here, and I'd rather not disturb him. Can your business wait?"

"It cannot," declared Stone, "not an instant. Please send this message immediately. Mr Whiting will not be annoyed at the interruption."

As Fleming Stone and Fibsy entered the courtroom District Attorney Whiting was reading the note in which the detective asked the privilege of speaking to him a moment, and partially told why.

At that instant also, the jury were filing into the box prepared to give their verdict.

"Gentlemen of the jury," said the clerk of the court, "have you arrived at a verdict?"

"We have," replied the foreman.

"What is it?"

“We find the defendant guilty, as charged in the indictment, of ___”

“Excuse me, your Honor,” said the district attorney, hurriedly, to the judge on the bench, “I would like to interrupt here,” and he walked toward the bench.

A strange and expectant hush fell over the courtroom, as the judge and the district attorney conferred in whispers. The conference continued a few moments, and then the judge said suddenly, “This is a matter that should be discussed with the lawyer for the defense. Judge Hoyt, will you please step to the bench?”

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The three held a short parley, and then the judge on the bench said, “Mr. Fleming Stone, will kindly come here?”

“If it please your Honor, I ask to be heard.”

Leslie Hoyt looked round angrily, and as Stone’s calm, clear voice was followed by the appearance of his stalwart figure, there was a stir throughout the room.

“As a detective recently employed on this case,” Stone said, “I wish to tell of my discoveries.”

“Tell your story in your own way, Mr. Stone,” instructed the judge, and Stone began.

“As you are all aware, the dying words of Mr. Trowbridge are said to be, ‘Cain killed me!’ implying, it was at first supposed, an allusion to the first murderer of Scripture history. Later, it was adjudged to mean a reference to Kane Landon. But I submit a third meaning, which is that Mr. Trowbridge was killed by a cane in the hands of his assailant, said cane being of the variety known as a dirk or sword cane. This type of walking-stick, the carrying of which is forbidden by law, has a dagger concealed in it, which may be drawn forth by the

handle. An imprint has been found of a cane near the place of the crime, and to this print has been fitted a cane of the dirk or sword variety. The ownership of this cane has been traced to a man, who is known to have benefited by the death of the victim. I refer to Judge Leslie Hoyt, the counsel for the defense!”

A sudden commotion was followed by an intense hush. Hoyt’s face was like carved marble. No emotion of any sort did he show, but waited, as if for Stone to proceed.

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And Stone did proceed. “Here is the cane,” he said, taking a long parcel from a messenger. “Is it yours, Mr. Hoyt?”

Hoyt glanced at it carelessly.

“No, I never saw it before,” he said.

“It was found in the closet of your dressing-room,” went on Stone.

“By whom?”

“Terence McGuire.”

A look of hatred dawned on Hoyt’s face, also the first expression of fear he had shown.

“That self-avowed liar!” he said, contemptuously.

“His word is not in question now,” said Stone, sternly. “This cane was found in your apartments. It is a dirk, as may be seen.”

Stone drew out the slender, sharp blade, and the audience shivered.

Disregarding Hoyt, Stone continued his address to the court.

“Additional evidence is a shoe button picked up at the scene of the crime. It is proved to be from one of Mr. Hoyt’s shoes. True, these do not connect Mr. Hoyt directly with this murder, but I can produce a witness who will do so.”

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Stone then proceeded to tell of the Italian woman and her story.

“The connecting link is this,” he said; “the day after the murder, during the coroner’s inquest, our bright young friend, McGuire, noticed on Mr. Hoyt’s coat an odor familiar to him as a remedy used to burn for whooping-cough. The scent is strong and unmistakable and clings ineradicably to a garment that has been worn, even for a few moments where the remedy is used. Mrs. Robbio’s children had the whooping-cough; she was using the remedy the day the murderer stopped in at her little shop and threatening her with this very dirk, forced her to deliver the message he dictated to the police station.

“It was a clever ruse and would have remained undetected, but for the quick-witted youth who noticed the odor, and remembered it when whooping-cough was mentioned.”

“A string of lies,” sneered Hoyt. “Made up by the notorious street gamin who glories in his sobriquet of liar!”

Still unheeding, Stone went on.

“In search for a motive for the murder of Rowland Trowbridge by Leslie Hoyt, I examined the will of the deceased, and discovered, what I am prepared to prove, that it is, in part, a forgery. The instrument was duly drawn up by Judge Hoyt, as lawyer for the testator. It was duly witnessed, and after,——”

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Fleming Stone paused and looked fixedly at Hoyt, and the latter at last quailed before that accusing glance.

“And after, at his leisure, the lawyer inserted on the same typewriter, and with greatest care, the words, ‘*and herself become the wife of Leslie Hoyt.*’ This clause was not written or dictated by Mr. Trowbridge, it was inserted after his death, by his lawyer.”

“You can’t prove that!” cried Hoyt springing to his feet.

“I can easily prove it,” declared Stone; “It is written on a new ribbon known to have been put into the typewriter, the afternoon the murder took place. And, too, it is of slightly different slant and level from the rest. Of course, it was only by microscopic investigation I discovered these facts, but they are most clearly proven.”

“Gee! he’s goin’ to brash it out!” exclaimed Fibsy, under his breath, as Hoyt rose, with vengeance in his eye.

But the judge waved him back as Stone proceeded.

“I understand Mr. Hoyt claims as an alibi, that he was in Philadelphia that day.”

“I was,” declared the accused; “I brought home an afternoon paper from that city.”

“The paper was from that city, but you bought it at a New York news stand to prove your case, should it ever be necessary.”

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“What rubbish! I wrote Mr. Trowbridge the day before, that I was going. The letter was found in his pocket.”

“Where you placed it yourself after the murder!” shot back Stone.

“Ridiculous! I also telegraphed to——”

“The telegram was faked. I have examined it myself, and it is typewritten in imitation of the usual form, but it never went through the company’s hands. That, too, you placed in Mr. Rowland’s pocket after,—after the cane killed him! You remember, Mr. District Attorney, a lead pencil was found on the ground at the scene of the crime. I am prepared to prove this pencil the property of Judge Hoyt. And this is my proof. Until the day of the crime, Judge Hoyt had been in the habit of using a patent sharpener to sharpen his lead pencils. I have learned from Judge Hoyt’s Japanese servant, that the day after the murder, Judge Hoyt discarded that sharpener, and used a knife. This was to do away with any suspicion that might rest on him as owner of the pencil. On that very date, he resharpened, with a penknife, all his pencils and thus cleverly turned the tide of suspicion.”

“Also a clever feat, the finding of this out,” murmured Whiting.

“The credit for that is due to the lad, McGuire,” said Stone. “At the time of the inquest, the boy noticed the pencil, particularly; and afterward, telling me of his surmises, I looked up the matter and found the proof. Again, the man I accuse, secured a handkerchief from Stryker’s room, and carried it away for the purpose of incriminating the butler. It seems, owing to a past secret, the butler was in the power of Judge Hoyt. However, circumstances led suspicion in other directions. The tell-tale handkerchief seemed to point first to the Swedish couple. Later it seemed to point to the butler, Stryker, and later still, was used as a point against Kane Landon. But it is really the curse that has come home to roost where it belongs, as a condemnation of Judge Leslie Hoyt. This arch criminal planned so cleverly and carried out his schemes so carefully, that he overreached himself. His marvelously complete alibi is *too* perfect. His diabolical skill in arranging his spurious letter, telegram, newspaper, and finally a picture postcard, which I shall tell of shortly, outdid

itself, and his excessive care was his own undoing. But, in addition to these points, I ask you to hear the tale of young McGuire, who has suffered at the hands of Judge Hoyt, not only injustice and inconvenience, but attempted crime.”

Fibsy was allowed to tell his own story, and half shy, half frightened, he began.

“At first, Judge Hoyt he wanted me to go to woik in Philadelphia, an’ I thought it was queer, but I went, an’ I discovered he was payin’ me wages himself. That was funny, an’ it was what gimme the foist steer. So I came back to New York an’ I stayed here, makin’ b’lieve me aunt needed me. So then one day, Judge Hoyt, he took me to dinner at a restaurant, sayin’ he took a notion to me, an’ wanted me to learn to be a gent’man. Well, when we had coffee, he gimme a little cup foist, an’ then he put some sugar in it fer me. Well, I seen the sugar was diff runt—”

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“Different from what?” asked Whiting.

“From the rest’rant sugar. That was smooth an’ oblong, and what the judge put into my cup, was square lumps, and rougher on the sides. So I s’picioned sumpin was wrong, an’ I didn’t drink that coffee. I left it on the table. An’ soon’s I reached the street I ran back fer me paper, what I’d left on poipose, and I told the waiter to save that cup o’ coffee fer evidence in a moider trial. An’ he did, an’ Mr. Stone he’s had it examined, an’ it’s full of—of what, Mr. Stone?”

“Of nitro-glycerine,” asserted Stone, gravely.

“Yes, sir, Judge Hoyt tried to kill me, he did.” Fibsy’s big blue eyes were dark with the thrill of his subject rather than fear now. He was absorbed in his recital, and went steadily on, his manner and tone, unlettered and unschooled though they were, carrying absolute conviction of truth.

“When I seen that queer sugar goin’ in me cup, me thinker woiked like lightnin’ an’ I knew it meant poison. So I thunk quickly how to nail the job onto him, and I did. Then soon after that, I was kidnapped. A telephone call told me Mr. Stone was waitin’ fer me in a taxi, and when I flew meself to it, it wasn’t Mr. Stone at all, but a Japanese feller, name o’ Kite. He took me to a swell house, and locked me in. If I tried any funny business he gave me a joo jitsy, till I quit tryin’. Well, I didn’t know whose house it was, but I’ve sence found out it was Judge Hoyt’s. He lived with his sister an’ she’s away, but the Jap told me it was another man’s house. Well, in that house, I found one o’ them postcard pictures o’ Judge Hoyt in the Philadelphia station. I didn’t think even then, ’bout me bein’ in his house, I just thought maybe it was a friend o’ hisen. But when I ’zamed that picture, I saw the judge had pertended it was took a diffrunt date from what it was. Now, I thought he kinda lugged it in by the ears when he showed it to me anyway, an’ I began to s’picion he meant to make me think sumpin’ what wasn’t so. ’Course that could only be that he wasn’t in Phil’delphia when he said he was. An’ he wasn’t.”

Fibsy’s quietly simple statements were more dramatic than if he had been more emphatic, and the audience listened, spellbound.

Judge Hoyt sat like a graven image. He neither denied nor admitted anything, one might almost say he looked slightly amused, but a trembling hand, and a constant gnawing of his quivering lip told the truth to a close observer.

“And you were held prisoner in Judge Hoyt’s house, how long?”

“Nearly a week.”

“And then?”

“Then I jumped down a clothes chute, and ran out on the basement door.”

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“A clothes chute? You mean a laundry slide?”

“Yes, sir. I’m told it’s that. I didn’t know what it was. Only it was a way out.”

“You jumped?”

“Well, I sorter slid. I threw down pillers and mattresses first, so it was soft.”

“You are a clever boy.”

“No, sir, it ain’t that,” and Fibsy looked embarrassed. “You see, I got that detective instick, an’ I can’t help a usin’ of it. You see, it was me what got Miss Trowbridge to send for Mr. Stone, an’ then Judge Hoyt he tried to head him off.”

“How?”

“Well, I jest knew for pos’tive certain sure, that this case was too big fer anybody to sling but Mr. Stone. Well, I got Miss Trowbridge to send fer him, and Judge Hoyt he told Miss Avice, Mr. Stone was outa town. Then I said I seen him on the street the day before, an’ we called him up, an’ he was right there on the spot, but said he’d had a telegram not to come. Well, Judge Hoyt, he sent that telegram. But the way I got Miss Avice to do it in the first place, was to get me Aunt Becky to go to her an’ tell her she’d had a revelation, and fer Miss Avice to go to a clairvoyant. Well, an’ so Miss Avice did, an’ that clairvoyant she told her to get Mr. Stone. You see, the clairvoyant, Maddum Isis, she’s a friend of me Aunt Becky’s, so we three fixed it up between us, and Miss Avice went an’ got Mr. Stone. If I’d a tried any other way, Judge Hoyt he’d found a way to prevent Mr. Stone from comin’ ’cause he knew he’d do him up.”

“This is a remarkable tale,—”

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“But true in every particular,” averred Fleming Stone. “This boy has done fine work, and deserves great credit. The final proof, I think, of the guilt of Judge Hoyt, is the fact that the cane found in his room exactly fits a round mark found in the soil at the scene of the crime and cut from the earth, and carefully preserved by McGuire. Also, a shoe button found there corresponds with the buttons on shoes found in Judge Hoyt’s dressing room. And it seems to me the most logical construction is put upon the dying words of Rowland Trowbridge, when we conclude that he meant he was killed by a cane, thus describing the weapon. Judge Hoyt also is conversant with the Latin names of the specimens of natural history which Mr. Trowbridge was in the habit of collecting, and it was he, of course, who telephoned about the set trap and the Scaphinotus. And, as his motive was to win the hand of Miss Trowbridge by means of a forged clause in her uncle’s will, we can have no further doubts.”

“You have done marvelous work, Mr. Stone,” said the judge on the bench. “And you say this young lad helped you?”

“No, your Honor, I helped him. He noticed clues and points about the case at once. But he could persuade no one to take him seriously, and finally, Judge Hoyt, for reasons of his own, sent the boy to a lucrative position out of the town.”

There were many details to be attended to, much business to be transacted, and many proofs to be looked up. But first of all the name of Kane Landon was cleared and the prisoner set free.

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Leslie Hoyt was arrested and held for trial.

As Avice passed him on her way out of the courtroom, he detained her to say: “*You* know why I did it! I’ve told you I would do anything for you! I’m not sorry, I’m only sorry I

failed!” His eyes showed a hard glitter, and Avice shrank away, as if from a maniac, which indeed he looked.

“Brave up, Miss Avice,” whispered Fibsy, who saw the girl pale and tremble. “You orta be so glad Mr. Landon is out you’d forget Judge Hoyt!”

“Yes, brave up, darling,” added Landon, overhearing. “At last I can love you with a clear conscience. If I had known that clause about your marriage was not uncle’s wish, how different it would have been! But I couldn’t ask you for yourself, if by that you lost your fortune!”

“Why wouldn’t you straightforwardly tell me you were innocent, Kane?” asked Avice as they rode home together.

“I couldn’t, dear. I know I was foolish, but the fact of your doubting me even enough to ask me, made me so furious, I couldn’t breathe! Didn’t you *know* I *couldn’t* kill Uncle Rowly?”

“I *did* know it, truly I did, Kane; but I was crazy; I wasn’t myself all those dreadful days!”

“And you won’t be now, if you stay here! I’m going to marry you all up, and take you far away on a long trip, right now, before we hear anything more about Leslie Hoyt and his wickedness!”

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“I’d love to go away, Kane; but I can’t be married in such a hurry. Let’s go on a trip, and take Mrs. Black for chaperone, and then get married when I say so!”

This plan didn’t suit Landon so well as his own, but he was coerced into submission by the love of his liege lady, and the trip was planned.

Fibsy was greatly honored and praised. But the peculiar character of the boy made him oblivious to compliments.

“I don’t care about bookays, Miss Avice,” he said, earnestly; when she praised him, “just to have saved Mr. Landon an’ you is enough. An’ to knock the spots out o’ Judge Hoyt! But it’s the game that gets me. The whole detective business! I’m goin’ to be a big one, like Mr. Stone. Gee! Miss Avice, did you catch on to how he ran Judge Hoyt down, the minute I gave him the steer? That’s the trick! Oh, he’s a hummer, F. Stone is! An’ he’s goin’ to let me work with him, sometimes!”

Fibsy spoke the last words in a hushed, rapt tone, as if scarcely daring to believe them himself.

“But I say,” he went on suddenly; “what about that guy as telephoned and called Mr. Trowbridge ‘Uncle’?”

“It wasn’t I,” said Landon; “I called up uncle that afternoon, but couldn’t get him.”

“Then I know,” said Avice. “It was Judge Hoyt. You see,” and she blushed as she looked at Landon, “he was so sure he would marry me, he frequently said ‘uncle’ to my uncle. And Uncle Rowly sometimes called him, ‘nephew’. They used to do it to tease me.”

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“Your uncle really wanted you to marry him, then?” and Landon looked anxious.

“Yes, he did. But not to the extent of putting it in his will! Uncle often said to me, that as I didn’t seem to care for any one else I might as well marry Leslie.”

“And now, you do care for somebody else?”

Landon had forgotten the presence of the boy. But Avice had not, and she looked around.

“Sure, Miss Avice,” said Fibsy, politely, as if in response to her spoken word, and he slid swiftly from the room.

And then Avice answered Kane Landon’s question.

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